CHAPTER ONE

INTRODUCTION TO CIVIL LITIGATION

Here you will be taught sources of civil litigation, the applicable laws, and the various rules of court. Under this course, only Abuja and Lagos are focused on for now (although reference may be made to other jurisdictions). Therefore, in addition to the general applicable laws like the Constitution of the FRN, the Evidence Act, Sheriffs and Civil Processes Act etc.; civil litigation is regulated mainly by the High Court Rules of various states. For example in Abuja, the **High Court of Federal Capital Territory Abuja (Civil Procedure) Rules 2018** applies while the **High Court of Lagos State (Civil Procedure) Rules 2019** applies in Lagos State.

For exam in any mode/step youre adopting state it first then the procedure to achieve the step (VERY IMPORTANT each is ½ mark

ALTERNATIVE DISPUTE RESOLUTION (ADR):

This means other methods of resolving civil disputes other than litigation. It includes; **Arbitration, Negotiation, Mediation, Conciliation** etc.

Under the **Abuja Rules 2018**, ADR was made an integral part of civil process**. Order 2 Rule 7 of the 2018 Rules** provides that the Chief Judge of FCT can refer any matter considered appropriate for ADR to Abuja Multi-Door Court or to other appropriate ADR institutions or practitioners.

Also under, the new **2019 Lagos Rules**, ADR has been included as one of the fundamental overriding objectives of the Rule. Parties are therefore mandated to seek amicable resolution of the dispute with the court as the last resort; see **Order 2 Rule 1 of the 2019 Lagos Rules**.

Under the 2018 Abuja and 2019 Lagos Rule, the scope of ADR is wider. The court or judge is now duty bound to encourage settlement of matters via ADR. Where a matter is suitable for ADR, the Judge shall by enrolment order refer the case to the Abuja Multi Door Court House (AMDC) for resolution within 21 days except otherwise ordered by the court.
Where a party refuses to submit to ADR and loses the case in court, he shall pay a penalty as may be determined by the court; **see Order 19. R. 2(1) of the 2018 Abuja Rules; Order 28 Lagos Rules 2019.**

It is therefore one of the ethical responsibilities of a lawyer to advice the parties to seek amicable resolution of their dispute and should only go to court where amicable resolution fails or is not possible; **Rule 15(3)(d) Rules of Professional Conduct for Legal Practitioners (focus)**

Advantages of ADR are as follows: (the following are reasons why you will advise your client to resort to ADR other than litigation)

1. It saves time and cost
2. Promotion of good cordial relationship
3. It is litigant friendly as no much legal technicalities are needed
4. De-congests the Court of cases
5. Promotion of confidentiality of party's matters
6. Promotes party autonomy
7. Enforcement of Resolution by the parties is easier
8. It encourages the use of experts on an aspect of Law.

Disadvantages of ADR

1. Parties can easily re-open the matter **except** in Arbitration

2. Does not create precedents
3. It does not generate revenue for the State
4. Its application is limited in some cases
5. Decisions are not binding on the parties like judicial judgments (except Arbitration).

LIMITATIONS OF ADR

ADR mechanisms are not available in respect of the following matters:

1. Election petition
2. Divorce or nullity of marriage as regards to declaration of status
3. Capital offences which are not compoundable
4. Injunction restraining an immediate act
5. Interpretation of statutes or the Constitution.
6. Enforcement of fundamental rights
7. Declaration of rights

N.B - August 2011 No 1 (e)

Where a Defendant has been served with an originating process and he still wants the matter referred to Arbitration, he must file a **Motion on Notice + Affidavit + Written Address for STAY OF PROCEEDINGS PENDING ARBITRATION**. If the motion is granted, he can then commence arbitration proceedings.

The application must be filed before he takes further actions in the case, otherwise he will be deemed to have waived the right**. Kaduna State Urban Development Board v Fanz Construction Ltd.**

Possible EXAM QUESTIONS, you may be asked the following questions:

1. State the ethical obligations you owe the parties before instituting an action in court?
2. Other than going to court highlight other methods you may adopt in resolving the dispute?
3. State why it is advisable to adopt alternative means in resolving the dispute other than litigation?

CHAPTER TWO
JURISDICTION IN CIVIL CAUSES

It is very important for you to know the courts that will assume jurisdiction in any given scenario. **N/B** law school will not ask you to define jurisdiction, however for the purpose of emphasis;

Jurisdiction is the power of a Court to decide or sit over a matter, which is fundamental. ***Madukolu v. Nkemdilim***

The issue of jurisdiction **can be raised at any time in trial, and even on appeal for the first time** **Arjay v AMS Ltd (focus)**

Preferably raised at the earliest point ***Madukolu v. Nkemdilim***. It may be raised by:

a. Motion on notice
b. Notice of preliminary objection challenging the courts jurisdiction
c. Oral application challenging the Court's jurisdiction, or
d. By the Court suo motu. **Elabanjo v Dawodu.; Arjay v AMS Ltd.**

NB – Where the court of first instance lacks jurisdiction there can be no appeal

TYPES OF JURISDICTION

1. **Substantive Jurisdiction**: This is the jurisdiction imposed on the court by the law establishing the court or any other statute; e.g. **section 251 CFRN** which conferred exclusive jurisdiction on the Federal High Court over certain issues.
2. **Procedural Jurisdiction**: This jurisdiction based on the rule and practice of the court. A good example is the issue of giving pre-action notice before instituting an action against some government agencies. Such procedural jurisdiction may be waived where the defendant fails to raise objection timeously; ***Mobil v LASEPA***

3. **Territorial Jurisdiction:** This is **jurisdiction based on the subject of the dispute and where the cause of action arose or where the parties are**. E.g. the Defendant resides or carries on business in Lagos and the contract which is the subject matter of the suit was executed in Lagos, its the High Court of Lagos that has jurisdiction to entertain the action. The High Court of another State lacks jurisdiction to entertain the action**. Akintunde v Ojo (May 2012)**

NOTE:

Where the court lacks jurisdiction, the trial no matter how well conducted will be a nullity: ***Anih v. Nna***

FACTORS DETERMINING JURISDICTION OF A COURT;

1. **Nature and Subject Matter of Dispute:** for example, if it is **contract**, then the court that will have jurisdiction is determined by where the contract is to be performed or where the defendant resides; **Order 4 Rule 1(3), Lagos Rules** and **Order 3 Rule 3 of the Abuja** Rules.

If it is **land** then the court in the place where the land is situate will assume jurisdiction **see Order 4 Rule 1(1) Lagos Rules and Order 3 Rule 1 Abuja.**

2. **Parties**: The parties to the dispute will also determine the court, for instance, where it involves the Federal Government or its agency in relation to its statutory functions or disputes between two Banks in relation to Banking policies, **the FHC will have jurisdiction**. The proper parties must be before the court and they must be juristic persons for the court to assume jurisdiction.
3. **Mode of commencement of action**: Some actions must be instituted using a specific mode for instance election matters must be by **PETITION**. If it is instituted by any other mode, it will be entertained by the court.
4. **Geographical area** (this is determined by the cause of action for example matters of interest in land is to be instituted where the land is situate)
5. **Presence of any legal requirements or condition precedents** (for example actions requiring pre-action notice or leave of court before it can be instituted.)
6. Constitutional provisions.

COURTS WITH CIVIL JURISDICTION

1. **SUPREME COURT (Check December 2020 Re-sit Exam Q 2(a-f))**

   This is the apex (highest court) in Nigeria.

   - **COMPOSITION**: It is composed of the Chief Justice of Nigeria (CJN) and not more than 21 Justices, as may be prescribed by an Act of the National Assembly; **section 230 (2) CFRN.**

- Constitution: This means the number of the Justices that can sit to entertain a given matter or appeal. **For an appeal** from Court of Appeal; at least **5 justices** of the SC will sit to entertain it, but if it relates to an appeal involving the interpretation of the constitution or matters relating to the **original jurisdiction** of the SC, it will **sit with not less than 7 Justices**; **section 234 CFRN**

Examples of matters that fall within the Original Jurisdiction of the Supreme Court are: TAKE NOTE

a. Disputes between the **Federation and a State** (AGF v AGS) or **States v State (AGS v AGS)**: **section 232(1) CFRN, AG Lagos v AGF (Bar final 2009)**
b. Dispute between the **National Assembly and a State** (**NASS v State**) in so far as the dispute involves any question whether of law or fact none which the existence or extent of a legal right depends
c. Disputes between the **National Assembly and the President**
d. The **National Assembly and any State House of Assembly.**

NOTE items (c-d) were made pursuant to **Section 1 of the Supreme Court (Additional Original Jurisdiction) Act and S. 233(2) CFRN** (the latter allows the National Assembly to confer additional original jurisdiction on the Supreme Court by an Act).

The SC does not have original jurisdiction over individuals - MCQ

NOTE - Section 2 of the S.C (Additional Original Jurisdiction) Act also, that neither the National Assembly nor State House Assembly shall institute or initiate legal proceedings **EXCEPT upon the resolution** of the

House **passed by a simple majority** of the members of that **House present and sitting at the time the resolution is put to vote**; **(Dec 2020 Q 2f)**

The nominal Parties in the suit shall be:

- National Assembly vs. AGF or AGS;
- If it is House of Assembly of a state then the Speaker of the House of Assembly will be the nominal party; **S. 3 Supreme Court Additional Jurisdiction Act, 2002.**

Qualification of Supreme Court Justices: To be appointed as a Justice of the Supreme Court: the person must be a legal practitioner in Nigeria of at **least 15 years post call experience** - **S. 231(3) CFRN**

Appointment: The Justices of the Supreme Court are appointed by the **President of Nigeria on the recommendation of the National Judicial Council (NJC) and all** such appointment shall be subject to confirmation by the **Senate**; **Section 231(1) & (2) CFRN**

Appellate Jurisdiction: the SC has exclusive appellate jurisdiction over appeals from the Court of Appeal. Appeals to the Supreme Court could be as of right or with leave. Its decision is final and not appealable. **S. 235 CFRN**

Retirement Age: Section 291(1) CFRN: A judicial officer appointed to the Supreme Court or the Court of Appeal may retire when he attains the age of **(65)** sixty-five years and he shall cease to hold office when he attains the age of **seventy years (70).**

Commented [MOU1]: Nominal Parties
State: A.G. State.
Federation: A.G. Federation.
..
National Assembly: National Assembly
State House: Speaker of the House of Assembly
Section 20. Supreme Court Act, Section 3. Supreme Court (Additional Original Jurisdiction) Act, 2002.

Where the principal parties are sued instead of the nominal parties, the Supreme Court has held it to be a mere irregularity which can be waived or overlooked. *Plateau State v. A.G. (Fed.)*

Note that the office of the President is created by the Constitution and can sue or be sued in its own name. (**President, Federal Republic of Nigeria** is different from **The Federal Republic of Nigeria**)

Conditions For Invoking Original Jurisdiction of The Supreme Court:

a. The **action must be brought by the ATTORNEY GENERAL** of the State or the Federation-**section 20 Supreme Court Act**
b. **Subject matter of dispute** must be one where State government /Federal **government are direct beneficiaries** - ***AGF v. AG Imo;***
c. Must pertain to existence of a legal right.

2. COURT OF APPEAL: See S. 237 CFRN

Composition: Composed of the President **with not less than 49 justices** and **3 to be learned in customary law** and **3 learned in Islamic personal law**: **section 237(1) CFRN**

Qualification for Appointment: must be a legal practitioner in Nigeria of **not less than 12 years** post-call experience: **S. 238(3) CFRN**

Appointment: It is done by the **President** on the recommendation of the National Judicial Council (**NJC**): **S. 238(2)** while **only the appointment of the President of the Court** is subject to confirmation by the Senate: **S. 238(1) CFRN**

Constitution: while sitting to hear an appeal, it **shall sit with at least 3 Justices** sit on a matter: **S. 239(2) CFRN**

Original Exclusive Jurisdiction: S. 239(1) CFRN

a. It has jurisdiction to determine if a person has been validly elected to the office of the President or Vice President
b. Whether the term of office of the president has ceased
c. The office of President or Vice President has become vacant.

Exclusive Appellate Jurisdiction: It has exclusive appellate jurisdiction on decisions from the Federal High Court, High Court of the States and the FCT, Sharia Court of Appeal, Customary Court of Appeal, National Industrial Court, Code of conduct Bureau, Court Martial and the National and State Houses of Assembly Election Tribunals - **S. 240 CFRN**

Final Decisions of the Court of Appeal: The Court of Appeal shall be the final appellate Court in the following matters: TAKE NOTE

a. Decisions on appeals from the National and State Houses of Assembly Election Tribunal are final - **S. 246(3), Awuse v Odili**
b. Decisions on appeals from the National Industrial Court are final; **S. 243(4) CFRN**

3. FEDERAL HIGH COURT S. 249 CFRN.

Composition: It is composed of the Chief Judge and such other number of Judges as prescribed by an Act of the National Assembly – **S. 249 (1) CFRN**

Constitution: it shall sit with **at least one** judge on a matter - **S. 253 CFRN**

Qualification for Appointment: must be a lawyer of at least **10 years post-call experience** -S. **250 (3) CFRN**

Appointment: It is done by the **President** on the recommendation of the National Judicial Council (**NJC**) while **only the Chief Judge's appointment** is subject to confirmation by the Senate. See **S. 250 (1) & (2) CFRN**

Commented [MOU2]: The **Federal High Court** has one jurisdiction but with various divisions.
For Administrative convenience, parties are advised to institute actions in divisions where the contract took place or where the subject-matter is situated. ***Abiola v. FRN***

Jurisdiction: The FHC has exclusive jurisdiction over all matters contained in section **251 of the Constitution** and any other matter as may be conferred on it by an Act of the National Assembly.

Original Exclusive Jurisdiction:

The Federal High Court has the exclusive jurisdiction to sit on the following matters:

1. Matters under *Section 251(1)(a)-(o). CFRN*, relating to:
    a. The revenue of the Government or any of its agencies.
    b. The taxation of Companies and other business corporations or persons subject to Federal taxation.
    c. Customs and Excise, Export duties. Claims by or against the Nigerian Customs Service.
    d. Banks and Banking or other financial institutions matters, actions by or against the Central Bank of Nigeria arising from, legal tender; Forex; Bills of Exchange; Fiscal Measures; Letters of Credit; Promissory Notes
    e. Matters arising from the **operation of the Companies and Allied Matters Act** and other enactments regulating the operation of Companies.
    f. Federal enactments **dealing with Intellectual Property** and industrial standards i.e. Copyright/Patents/Passing Off/Business Names. (**anton piller comes in here so you file it at FHC**)
    g. Admiralty/Shipping,
    h. Diplomatic and Trade Representation,
    i. Citizenship and Aliens/Extradition,
    j. Bankruptcy and Insolvency,

Commented [M.I Ezeh3]: Other areas covered by the Federal High Court include:
Census, Carriage of Passengers and Goods by Air, Meteorology, Insurance including 3rd Party Claims and the National Provident Fund, any matter pertaining to Law made under *Section 11. CFRN* (relating to public order or security), any matter in the Concurrent Legislative List, any matter in respect of which the FG has power to make laws (Excluding the Formation, Annulment and Dissolution of Marriages other than Marriages under Islamic and Customary Law including Matrimonial Causes relating thereto).

Commented [g4]: Parties - "Federal Government of Nigeria"/ "President, Federal Republic of Nigeria"/ Organ of Federal Government

Commented [MOU5]: The action must flow from performance or purported performance of any duty under the Customs & Excise Management Act.

k. Aviation/Safety of Aircraft, (Negligence and Plane Crashes included)
l. Arms and Ammunition,
m. Drugs and Poisons,
n. Mines and Minerals; (including oil fields, mining geographical surveys and natural gas)
o. Weights and Measures

2. Any matter related to the decision or act of the Federal Government or any of its agencies. ***Section 35. CBN Act, Section 251. CFRN***:
    a. The administration, management, and control of the Federal Government or any of its agencies.
    b. The operation or interpretation of the Constitution as relating to the Federal Government or any of its agencies
    c. The validity of an executive or administrative action by the Federal Government or any of its organs or officers

It should be noted that where an action against the Federal Government or any of its agencies is based on any Federal Enactment, a Law, or the Doctrines of Equity, a party is not prevented from seeking reliefs of damages, injunctions, or specific performance.

3. Any questions as to:
    a. Whether the term of office of a senator or a member of the house of representatives has ceased.
    b. Whether the office of a senator or a member of the house of representatives has become vacant. ***Sections 251(4) & 272(3). CFRN, Section 27 & 28. 1st Alteration Act.***

NB - focus

An **action** by a person **challenging the appointment of a judge** by the President **should be commenced at the Federal High Court**. This is because the Constitution in **Section 251(1), (q), and (r)** confers jurisdiction on the Federal High Court with respect to

1. **Interpretation of the Constitution as it affects the Federal Government**; and
2. **Interpretation of the Constitution with respect to any action for declaration affecting the validity of any executive or administrative act or decision of the Federal Government**

N.B - focus

When parties to a suit aren't federal agencies, **a suit can't be brought to the FHC under the contemplation of Section 251**

4. STATE HIGH COURT AND THE HIGH COURTS OF THE FCT

They are established by **S. 270 and S. 255** of the CFRN respectively.

Appointment: The Chief Judge and other Judges of the High Courts of the States are appointed by the **Governor** on the recommendation of the **National Judicial Council** while the **Chief Judge's appointment is subject to confirmation of the House of Assembly**. See **S. 271 (1) & (2) CFRN**

While the appointment of the Chief Judge and other Judges of the FCT High Court is done by the President on the recommendation of the National Judicial Council and the **Chief Judges of the FCT appointment is subject to the confirmation of the Senate**. See **S. 256(1) & (2) CFRN**

Qualification: At least **10 years post call experience**. See **S. 271(3) CFRN**

Constitution: **At least** one judge can sit over a matter. **See S. 273 CFRN**

Jurisdiction of the State High Courts: This is provided under section 272 of the 1999 Constitution. It can assume jurisdiction over any civil proceeding, which is not covered by section 251 of the Constitution.

Appellate Jurisdiction of the High Court: Have appellate jurisdiction over decisions of Magistrate Courts, Area Courts, Customary Courts

POSER

In a case of conflict between residents of a community and the State Government, which Court has jurisdiction to hear the matter. Why? 2010 No 1(b)

> The action will be commenced before the Lagos State High Court because the Constitution has conferred general jurisdiction on the High Court on all matters except those matters in respect of which exclusive jurisdiction has been conferred on the Federal High Court by Section 251 CFRN. **Section 272 CFRN. Onuorah v KRPC;**

5. **NATIONAL INDUSTRIAL COURT**

It is recognised as a Superior Court of record pursuant to Section 6 (Altering S. 254'CC') of the Third Alteration Act 2010 to the CFRN and the National Industrial Court Act 2004.

Composition: It is composed of a President and other number of Judges to be determined by the Act of the National Assembly **– section 254A CFRN**

Constitution: At least **one judge can sit over a matter or not more than 3 Judges as directed by the President of the Court**; **S. 254E of the Third Alteration Act 2010 to the Constitution**.

Appointment: The appointment of the **President** and other Judges of the Court is done by the **President** on the recommendation of the **National Judicial Council** and the **President of the NIC appointment is subject to the confirmation of the Senate**. **S. 254B CFRN**

Qualification for Appointment: A Lawyer with at least **10 years post call** experience and has considerable **knowledge in the law and practice of industrial relations/employment conditions in Nigeria**.**S. 254B (3) CFRN**

Jurisdiction: It has exclusive jurisdiction in **civil** causes and matters to try all labour, trade unions, industrial relations or employment related matters notwithstanding the provisions of sections 251, 257 and 272 of the CFRN

Commented [MOU6]: JURISDICTION

1.Labour, employment, trade unions, industrial relations and matters arising from workplace, conditions of service, health, safety etc.

2.Factories Act, Trade Dispute Act, Trade Unions Act, Labour Act, and any Law or Act relating to labour, employment etc.

3.Matters relating to the grant of any Order restraining any person or body from taking part in any strike, lock-out or any industrial action, or any conduct in contemplation or in furtherance of a strike, lock-out or any industrial action.

4.Relating to any dispute over the interpretation and application of the provisions of Chapter IV of the Constitution in relation to employment, labour, industrial relations, trade unionism, employer's association or any matter which the Court has jurisdiction to hear
5.Relating to any dispute arising from national minimum wage for the Federation or any part thereof and matters connected therewith
6.Relating to unfair labour practice or international best practices in labour, employment and industrial relations matters
7.Relating to any dispute arising from discrimination or sexual harassment at a workplace
8.Relating to the application or interpretation of international labour standards
9.Connected with child labour, child abuse, human trafficking or any matter related thereto
10.Relating to the determination of any question as to the interpretation and application of any collective agreement, award or judgement of the Court, terms of settlement of any trade dispute, award or order made by an arbitral tribunal in respect of trade dispute, trade union dispute or employment dispute as may be recorded in a memorandum of settlement, trade union constitution etc.
11.Relating to the payment or non-payment of salaries, wages, pensions, gratuities, allowances, benefits and any other entitlement of an employee, worker, political or public office holder, judicial officer or any civil or public servant in any part of the Federation and matters incidental thereto.
12.Relating to appeals from decisions of the Registrar of Trade Unions or matters related thereto, appeals from decisions or recommendations of any administrative body or Commission of enquiry arising from employment, labour, trade unions or industrial relations;
13.Relating to or connected with the registration of collective agreements;
14.Applications for the enforcement of the award, decision, ruling or order made by any arbitral tribunal or commission, administrative body, or board of inquiry relating to, connected with, arising from or pertaining to any matter of which the National Industrial Court has the jurisdiction to entertain.

6. JURISDICTION OF MAGISTRATE COURT

In the **North**, they are known as **District Courts (Abuja)** in the exercise of their civil jurisdiction.

By **Section 28 of the Magistrate Court Law of Lagos State**, vest civil jurisdiction over:

a. All **personal actions arising from contract, tort**, or both, where the debt or damage claimed, whether as a balance of account or otherwise is not more than **Ten million, N10, 000,000.00 at the time of filling.**
b. actions between landlord and tenant for possession of any land, agricultural, residential or business premises or house claimed under

agreement or refused to be delivered up, where the annual rental value does not exceed **Ten Million Naira** (N 10,000,000.00) at the time of filing;

This amount is **exclusive of claim of arrears of rent and mesne profits,** which may be claimed in addition not minding the fact that the total claim exceeds **Ten Million Naira** (N10,000,000.00);

c. In **Abuja** civil matters involving **monetary claim of not more than 7 million** are to be instituted before the **District Court**
d. Actions of recovery of penalties, charges, rates, taxes, expenses, cost of enforcement of statutory provisions, contributions or other like demands, which may be recoverable by virtue of any existing law.

JURISDICTIONAL CONFLICT BETWEEN THE FEDERAL HIGH COURT AND THE STATES HIGH COURTS

1. FUNDAMENTAL RIGHTS ENFORCEMENT ACTIONS

The issue of the court that will assume jurisdiction in fundamental rights enforcement cases always comes out in the bar exams. Generally, both the FHC and SHC has concurrent jurisdiction over fundamental rights matters; **section 46(1) & (2) CFRN**

It is settled by the recent decision **F.U.T Minna v Olutayo** , and **EFCC v Reinl**. The position is that both the Federal High Court and the State High Court can try fundamental Rights Cases **irrespective of the Subject matters of enforcement**.

- ⇨ Check the subject matter or facts leading to the breach and the parties involved before determining the appropriate court to approach; ***Tukur v Government of Gongola State,***
- ⇨ For example, if the breach arose from matters like tort, contract, civil offences etc. and it involves individuals or police, then the appropriate court should be **State High Court**; **(Dec 2020 Re-sit Q 4b)**

- ⇨ On the other hand, where the breach arose issues like terrorism, treason or financial fraud and involving a federal government agency like **EFCC, NDLEA** etc. then the action should be filled before the Federal High Court; ***Adegbite v Amosu;***

2. BANKS AND ITS CUSTOMER

In cases of banker-customer relationship for example where the customer of a bank wants to sue the bank or vice versa, both the Federal High Court and the High Courts of the States will have jurisdiction under the proviso to **S. 251(1)(d) CFRN**. ***Federal Mortgage Bank v. NDIC and NDIC v Okem Enterprises***

A good example is where the customer is suing for negligence or breach of contract; ***SGB v. DELLUCH***

If it's an action between a bank and another bank and it is **not an ordinary banker customer relationship**, **the FHC will have exclusive jurisdiction**

Non-customer of Bank suing for negligence –FHC has exclusive jurisdiction

3. SIMPLE CONTRACTS

In **simple contracts** between a Federal Government agency and an individual, **THE STATE HIGH COURTS** **has exclusive jurisdiction to try the matter**. ***Onuorah v. KRPC Ltd.***

TRANSFER OF CASES TO THE STATE HIGH COURT BY THE FEDERAL HIGH COURT

This will occur when a matter is wrongly instituted at the Federal High Court **which lacked the jurisdiction to entertain it**. The only thing the Federal High Court will do is to **transfer the case to the State High Courts and not to strike it out.** **See S. 22 of the Federal High Court Act,** ***Fasakin Foods Ltd v. Shosanya*** **and** ***AMC Ltd v. NPA*****; August 2011 No 6 (iv)**

NOTE

The **STATES OR FCT HIGH COURTS** **cannot transfer a matter**, which it lacked jurisdiction to try to the Federal High Court, the appropriate step to take in such instance is to **strike out the matter**; ***Fasakin Foods Ltd v. Shosanya*** **(see Bar Final April 2019 Q. 4C)**

NOTE: Below is with regards to **wrong division** in the High Court

In **Abuja**, cases instituted in wrong judicial divisions may be transferred **only by the Chief Judge** if need be, see **Order 3 Rule 6 (Abuja Rule).**

In Lagos, the action may be heard in that division unless the Chief Judge directs otherwise; **Order 4 Rule 3 Lagos Rules**.

POSER

Assuming in an action for breach of contract between a person (Claimant) and a Company (Defendant), the Defendant Counsel raised a preliminary

objection that the State High Court is not the proper venue for the action since it involves the operation of the CAMA 2020 and so the appropriate Court with jurisdiction is the Federal High Court. What would be your response as Plaintiff's Counsel; and at what time, and how could an objection of this nature be properly raised. August 2011 No 5(b) (i) & (ii)

My response to the objection by Defendant's Counsel would be that although Section 251 CFRN 1999 confers jurisdiction on the Federal High Court over matters pertaining to the operation of CAMA, the cause of action in this case involves a simple contract over which the Constitution has conferred general jurisdiction on the State High Court **Section 272 CFRN. Onuorah v KRPC;**

An objection to jurisdiction is fundamental and can be raised at any stage in the proceedings even for the first time on appeal. **Madukolu v Nkemdilim;** However, it is preferable to raise such objection at the earliest opportunity.

Such objection can be raised in any manner, by

1. a Motion,
2. by Notice of Preliminary Objection challenging the Court's jurisdiction,
3. by oral application challenging the Court's jurisdiction, or
4. even by the Court suo motu. **Elabanjo v Dawodu.**

ETHICAL ISSUES ON JURISDICTION: (Every topic has its own ethical issues):

1. A Lawyer should avoid commencing an action in the wrong court or judicial division.
2. A lawyer should advise the client on the importance of ADR **R 15(3)(d)**
3. A lawyer should represent the client competently **R. 16 of RPC**

4. Dedication and devotion **R. 14 of RPC.**
5. Avoid conflict of interest; **R. 17 RPC**

POSSIBLE EXAM QUESTION FROM JURISDICTION

In the bar exam, you may be asked the following questions in relation to the issue of jurisdiction:

1. **In which court will you institute the action and why? (April 2018 Q 1a & c)**

   To answer the above question, **check the cause of action and the parties.**

2. **Comment on the jurisdiction of the court to entertain the suit above?**

   If you are asked the above question, it means the scenario must have mentioned a particular court where the action was commenced. Therefore **you are expected to check from that given scenario if that court has jurisdiction and if not; state the appropriate court**. **(See August 2019 Q 3a, December 2020 Q 1a)**

CHAPTER THREE

PARTIES TO A CIVIL SUIT

Your interest here is only to ascertain the proper designation of parties in different jurisdictions.

In Abuja & Lagos: Presently in Abuja and Lagos the party suing is the **CLAIMANT** while the party sued is the **DEFENDANT**; **see Order 1 and Order 13 of the 2018 Abuja Rules.**

In other states it's called: Plaintiff and Defendant

All federal courts use Plaintiff and Defendant: (FHC/CA/SC)

NOTE the following:

- **Claimant and Defendant** is used when the action is **instituted by Writ of summons**
- **Applicant and Respondent** is used when instituted by **originating summons/or motions)**
- **Petitioner and Respondent** is used when the **action is instituted by Petition**
- **On appeal**, parties are known as **Appellant & Respondent**
- In Counter-Claim, Parties are Known as **Counter-Claimant & Defendant to Counter- Claim**
- A party to an action (both claimant & defendant) must be competent to institute or defend the action; must be a legal person (a person in law). **Else, action would incompetent and liable to be struck out**. **SHITTA v LIGALI (Focus)**
- **Failure to join the appropriate person to an action, or joinder of an inappropriate person may be fatal**; hence the need to identify the various types of parties. **Okomu Oil Palm v Iserhienrhien**

TYPES OF PARTIES

N/B law school may not ask you to define the various types of parties but you should be able to identify from every given scenario who is suing and who is to be sued.

a. **Proper parties**. These are parties who are directly affected/involved by the suit and whose interest will be directly affected by the outcome of the action. ***Mobil v. Lasepa.*** i.e., the claimant who alleges to have suffered the damage and Defendant who occasioned the damage - **2009**

b. **Desirable parties**. These are those who have an interest or who may be affected by the outcome of the suit. Hence, their interest will be prejudiced if they are not joined as parties. ***YAKUBU v GOV, KOGI STATE, INAKOJU v ADELEKE***

c. **Necessary parties**: A person:

(1) who is interested in the subject matter;

(2) whose presence is essential for the just, effectual and complete determination of the suit; and

(3) Who would be affected by the outcome of the suit

Where an agent acts on behalf of a disclosed principal, the principal is a necessary party. **Union Beverages v Pepsi Cola, Ojo v Ogbe**

d. **Nominal parties**. These are parties who have no direct interest in the subject-matter but are made parties by virtue of their office e.g.

Commented [MOU7]:
These are those who are interested in the subject matter of the proceedings and in whose absence, the proceedings cannot fairly be dealt with.
i.e those whose presence are necessary for the proper determination of the suit. **Green v. Green, Babayeju v. Ashamu**.

A person who is ordinarily a necessary party and who is aware that a case is pending in court in which he is interested and the outcome of which would affect him, but neglects, fails or refuses to apply to join the suit, may be treated as a Party "By Standing By," and as such would be estopped from re-opening the case after the conclusion of the case. **KAMALU V UMUNNA**

Attorney General, Corporate Affairs Commission, INEC. **Padawa v Jatau**

N.B

The Attorneys General of the State who are the Chief Law Officers of the States **are the proper party in actions involving the State**.

POSER:

Assuming a landlord executed a Power of Attorney in favour of a Solicitor to manage his property and recover possession from tenants and other incidental matters, who will be the proper parties in the suit against James Peters to recover possession. Draft the parties heading on the Plaint. August **2011 No 4 (c)**

Name of donor of POA Claimant

(Suing through his Lawful Attorney [NAME])

AND

James Peters Defendant

SPECIAL PARTIES TO A SUIT:

1. **INFANTS**: infants are categorised as persons with legal disability therefore, they can sue and defend actions through their ***guardian ad litem;*** **Order 1 Rule 5 of the 2018 Rules** and **Order 15 Rule 9 Lagos Rules 2019**.

   NOTE: such guardian must however **file a written authority** for that purpose signed by that person in the registry; **Order 15 Rule 10 Lagos Rules (Bar final August 2016 Q 1 and 2020 Q4**).

   Sample draft as it would appear in the originating process if a minor is suing; (**very important**)

   BOBO KELS

   (Suing through his Guardian, MR. JIDE KELS)'……..CLAIMANT

   (defending through his Guardian, MR. JIDE KELS)'……..DEFENDANT

Commented [MOU8]: ABUJA CAMPUS:

An infant, Suing through his Guardian, MR. JIDE KELS

An infant, defending through his Guardian, MR. JIDE KELS)

2. **LUNATICS/ MENTALLY ILL**: can sue OR defend actions through a **Guardian**

   John Martin

   (Suing through his Guardian, Dele Obi) --- CLAIMANT

3. **TRUSTEES/ Executors and Administrators of Estates**: the name of the trustee or Executor must appear on the Court processes stating that they sue as the executor of the deceased or the administrator if there is no will: **Order 13 Rule 15 Abuja 2018; Order 15 Rule 11 Lagos Rules 2019**

   Sample draft:

   Musa Ardo

   (**Suing as Trustees/Executor/Administrators of the Estate of Sani Abacha deceased**) …… **Claimant**

4. **Registered associations such as Charitable organisations/non-trade organisation, schools, churches etc.**; can sue and be sued in the name of its Incorporated Trustees.

   DRAFT:

   Incorporated Trustees of J &J School……...Claimants or Defendants;

   N.B where it's a school established by statute, **they will be sued in their name** eg **University of Lagos……. Claimants or Defendants**

5. **Partnerships**– could sue in the firm's name, individual name as partners or one or more could sue representing the other parties e.g. **(see August Bar Final 2018 Q1a & 2019 Q 1d);**

   Obi John and James King

   (Trading under the Name and Style of Bus G. Enterprises) ……..Claimant

6. ATTORNEY:
   JOHN MARTIN
   (Suing through his Lawful Attorney, **DIM DOYE**) ----- CLAIMANT

7. **The Government of a State or Federation**: can sue and defend actions through the AGS or the AGF. This is because they are the Chief Law officers of the Government. **S. 150, 195 CFRN**

8. **Unincorporated Association:** They generally cannot sue or be sued in their names, as they are not legal personalities. They sue or are sued through representatives. ***Fawehinmi v. NBA*** (**focus**)

9. **Statutory Bodies:** These are bodies like, NITEL, etc. which can sue and be sued in their statutory names depending on the instrument creating the body.

10. Trade Unions can sue and be sued in their registered names.
    In **Bonsor v Musicians Union** it was held that though an unincorporated body, the Musicians Union could be sued for breach of contract as a legal entity and that damages could be recovered out of the Union funds
    NOTE
    Diplomats and members of their families are immune to all forms of civil action and therefore cannot be sued**, Section 1(1) Diplomatic Immunities and Privileges Act; *Ishola Noah v British High Commissioner*; (August 2019 Bar Final Q. 3b&c)**

EFFECT OF SUING OR BEING SUED IN A WRONG CAPACITY

a) It is fatal to the action if the person is the claimant; **Order 13 Abuja Rules**; **Order 15 Rule 2 Lagos.** This is because only juristic persons known to law can sue.

b) **Order 15 Rule 5 Lagos**: Where an action has been instituted against a wrong defendant or where the name of a defendant has been incorrectly stated a judge may upon application order a substitution or addition of any person as defendant or correction of any such name on any term as may be just.

JOINDER OF PARTIES TO AN ACTION

In the a given case, if **a person who was ordinarily supposed to be a party was omitted in the suit**, such a person or any of the parties who intends to join the person to the suit can bring an application by **MOTION ON NOTICE** supported with an **AFFIDAVIT** and a **WRITTEN ADDRESS** to be joined in the suit; **Order 14 Rule 5 of the Abuja Rules;; Order 15 Rule 16 Lagos,** ***Awoniyi v. Registered Trustees of ARMOC***

The joinder of parties takes **effect from the date the court** so orders and not from the date the writ of summons was filed before the court–***Oduola v. Ogunjobi.***

NOTE: The court may in its **discretion** ***suo motu*** order that a person be joined in a suit.

Commented [MOU9]:
The court who made the order **cannot** Review it is possible only on appeal **ONWUKA V MADUKA**

Time to apply for Joinder:

Although an application for joinder may be made at any time even on appeal, it is however **preferable** to do so at Case Management Conference in Lagos or Pre-trial Conference in Abuja.

NOTE: The application must be coupled with;

1. statement of claim or defence,
2. list of the exhibits to be relied on and
3. written deposition of the witnesses.

Conditions for Grant of the Application:

A party complaining of not being joined in the suit must satisfy the court that:

a. He is **entitled to some share or has interest in the subject matter of the suit;**
b. He is **likely to be affected by the outcome of the suit**; and
c. **If he is not made a party, the case cannot be decided with finality**

Order 14 Rule 5(1) Abuja High Court Rules;

MISJOINDER OF PARTIES

It is used where a wrong person who is unconnected to the suit in any way is joined in an action or a person who is immune to a civil action is sued for instance a diplomat, an application praying the Court to strike out the name of the party wrongly joined will be made. See **O. 14 R. 5(5) FCT Rules, O. 15 R. 16(2) Lagos Rules 2019; (August Bar final 2019 Q 3C)**

The application is by a **MOTION ON NOTICE** supported with an **AFFIDAVIT** and a **WRITTEN ADDRESS.** Or the court can do it Suo Motu

DEATH OF PARTIES IN A CIVIL SUIT

A dead party ceases to have legal personality from the time of his death either personally or in a representative capacity. The **action then abates**: ***Okotie v Olughor***.

The only **EXCEPTION** is where the cause of action **is not a personal action**. This is captured in the Latin maxim: *action personalis moritur cum persona* meaning "**a personal action dies with the person**".

However, where the action survives the sole claimant, an application may be brought by his legal representatives to be **substituted** for the dead party; **Order 14 R. 39 Abuja**

Procedure for Substitution of Party: It is applied for by a **Motion on Notice + affidavit + written address.**

MISNOMER

Misnomer occurs when the correct person is described under a wrong name: **Emespo continental v. Corona.** Misnomer would not be fatal unless parties are misled or there is miscarriage of justice – **Kalu V Odili**

Where amendment would amount to substitution, court would not grant the application. **Ibrahim v Chairman, Kachia LG**

CLASS ACTIONS - Order 13 rule 15 Abuja; Order 15 rule 13 Lagos – March 2021

Class actions are also known as group litigation. It is used where the wrong complained of affects a wide spectrum of persons

It will apply in a situation where in any proceedings the class of persons or some other members of that class that may be interested in the subject matter cannot be ascertained or if ascertained cannot be found or if ascertained and

found, it is expedient for the purpose of efficient procedure that one or more persons be appointed to represent that person or class or member of the class.

The difference between class action and representative action is that in the latter, persons involved know each other unlike a class action where the persons involved are not determinable

PROCEDURE: **Motion Ex Parte + Affidavit + Written Address**

SCOPE: **LAGOS**

1. Construction any written instrument including a statute
2. Administration of estate
3. Property subject to trust
4. Land held under customary law as family/community property

SCOPE: **ABUJA**

1. Torts
2. Construction any written instrument including a statute
3. Administration of estate
4. Property subject to trust
5. Land held under customary law as family/community property

STEPS TO TAKE FOR CLASS ACTION STEPS – (focus)

1. Commence class action in view of the inability to identify all the claimants
2. Application will be by leave of court to permit representative of one or some of the persons to commence class action
3. The application is by **Motion Ex-Parte + AFFIDAVIT + Written Address**

Commented [MOU10]:
1.Appointment of persons that will represent others in the suit

2.Apply to the court by way of Motion Ex-parte + AFFIDAVIT + Written Address for approval to institute a class action on behalf of all both the ascertained and unascertained

3.Approval by the court to institute a class action

4.Institution of class action on behalf of all parties involved

4. If leave is granted any member of the class including those not before the court will benefit from the judgement. They will also be bound by the outcome of the case UNLESS there is
    a. Fraud
    b. Non-Disclosure of material facts

POSSIBLE EXAM QUESTIONS ON PARTIES

1. **Identify the necessary parties in the above case and their designation?**

   If you are asked the above question check if any of the following is involved:

   i. A minor (mention the name of the minor and add 'suing through the guardian……..)
   ii. State or federal government (write A.G of the State or Federation)
   iii. Registered associations/schools/churches (add 'Incorporated Trustees of……(add the name of the school or association))
   iv. Business name (write the name of the persons doing the business and add 'trading under the name and style of…….)
   v. Representative action (write the name of the appointed representatives and add 'suing for themselves and on behalf of…….. (name of the group to be represented))

2. **Draft the heading of the court up to the parties as it would appear in the originating process to be filed in the above suit? (See Sept. 2016 Q1a, Jan. 2020 Q 4b March 2021)**

POSER

Can the Governor of a State be sued? 2009 No 1(b)

No civil proceeding can be instituted or continued against any person holding the office of Governor or Deputy Governor, or President or Vice President while he is in office. **Section 308(1)(a) CFRN**

Also, the appearance of such person cannot be compelled by any process of court. **Section 308(1)(c) CFRN.**

Therefore, the Governor of a State can neither be sued nor can his presence in such proceedings be compelled by any process of the Court. The action against him will be incompetent and cannot be entertained by the Court. **Tinubu v IMB Securities;**

CHAPTER FOUR

PRELIMINARY ISSUES TO CONSIDER BEFORE COMMENCEMENT OF ACTION

Before commencing an action, there are certain factors a legal practitioner should consider. Some of such matters include: **(see August bar final 2019 Q 1a, Dec 2020 Re-sit Q 5b)**

1. **Existence of reasonable Cause of action** (this relates to the facts which entitles the claimant to sue)
2. **Parties/capacity** (proper parties must be brought before the court and must be juristic/natural persons. Where the wrong parties are sued, the matter will be struck out)
3. **Availability of ADR methods**
4. **Jurisdiction of the court**
5. **Locus standi**- i.e the legal right to sue which is determined by interest in the subject matter
6. **Limitation of time**
7. Cost of litigation
8. **Venue**
9. Requirement of pre action counselling
10. **Satisfaction of condition precedents** like Pre-action notice

    The following must be noted with respect to pre-action notices:

    a. The provision of any law providing for pre-action notice is mandatory

Commented [MOU11]:
Public officers – 3 months
Libel and slander – 3 years
Simple contract – 6 years from the time the breach occurred
Contract under seal – 12 years

Land matters (Individual) –
North & east – 12 years
West – 10 years

State government lands – 20 years

b. Non-issuance of such pre-action notice, where required, **is fatal to the suit as such suit will be incompetent against the party who ought to have been served with the notice.**

c. This right may, however, be waived by the defendant not taking steps in the proceedings. ***NNPC vs. SELE***

d. Failure to serve a pre-action notice must be pleaded by the defendant. Failure to plead it amounts to a waiver. ***Amadi vs. NNPC***

COMMENCEMENT OF ACTION IN THE MAGISTRATE COURT IN LAGOS STATE

There are 2 main methods:

1. **Claim**
   a. **Ordinary Summons (contentious matter)**
   b. **Summary Summons (liquidated Money demand)**
2. **Originating Application** (**Non-contentious Matter, Interpretation of document**)

See **Order 1 Rules (1) and (2) of the Magistrate Court (Civil Procedure) Rules 2009 Schedule 4 to the Magistrate Court Law No.16 2009 of Lagos State**.

SMALL CLAIMS COURT LAGOS STATE

(January 2020 Bar Final Exam MCQ Qs. 1-5)

The objective of the small claims procedure which was recently introduced in Lagos to provide easy access to an informal, inexpensive and speedy resolution of **simple debt recovery disputes in the Magistrates' Courts**.

COMMENCEMENT OF ACTION AT SMALL CLAIMS COURT -

An action may be commenced in the Small Claims Court where:

(a) The Claimant or one of the Claimants resides or carries on business in Lagos State;

(b) The Defendant or one of the Defendants resides or carries on business in Lagos State

(c) The **cause of action arose wholly or in part in Lagos State.**

(d) The claim is for a liquidated monetary demand in a sum not exceeding N5, 000,000 (**Five Million Naira**), excluding interest and costs.

(e) The Claimant has served on the Defendant, a **LETTER OF DEMAND** as in **Form SCA 1**.

(f) The action shall be commenced by **CLAIM** (by completing the Small Claims Complaint; **Form SCA 2**) **(ORIGINATING PROCESS)**

SERVICE OF THE SUMMONS

The Summons shall be served on the defendant **within seven (7) days** of filing by the Sheriff of the Small Claim Court.

NOTE: if personal service is not possible, the claimant will apply for substituted service.

FILING OF DEFENCE/ADMISSION/COUNTERCLAIM

1. Upon service of the Summons, the **Defendant** shall file his Defence/Admission or Counterclaim **within Seven (7) days** by completing **Form SCA 5**.
2. The **Claimant** may file a reply to the defence or counterclaim **within 5 days** of service and **NO further pleadings will be filed thereafter.**

Note that the defendant can counterclaim up to an amount not exceeding **N10, 000,000** (Ten Million naira) (interest and cost not included).

NON-APPEARANCE OF THE PARTIES

- Where on the date fixed for hearing, **neither party appears**, the Magistrate shall unless he sees good reason to the contrary, **strike out the claim.**
- Where the Claimant appears but the **Defendant does not appear, provided there is proof of service**, the Magistrate shall proceed with the hearing of the claim and enter Judgment as far as the Claimant can prove his claim.
- Where the Defendant appears but the **Claimant does not appear**, the Defendant if he has no counterclaim shall be entitled to an Order **striking out the claim**, but if he has a counterclaim, the Magistrate shall proceed to hear the counterclaim and enter Judgment accordingly.

DURATION OF PROCEEDINGS BEFORE THE SMALL CLAIMS COURT - MCQ

1. Before hearing, the parties will be given **7 days to explore amicable settlement of the matter.** If they fail, the matter will proceed to hearing.
2. The entire **hearing period shall not be more than thirty (30) days** from the first date of hearing, **inclusive of the seven (7) days** for amicable settlement.
3. The entire period of proceedings **from filing till judgment** shall not exceed **Sixty (60) days.**

4. The Magistrate must deliver its judgment **within 14 days** of completion of hearing; however, any judgment delivered after the 14 days period is not invalid.
5. Hearing shall be from day to day and adjournment will only be granted in exceptional cases for a short period.
6. The judgment when entered shall be enforced 14 days after it was given.

APPEALS

1. Appeals from Small Claims Court **lies to the High Court**
2. Where either party is aggrieved with the Judgment, such party shall fill the Appeal form, as in **Form SCA 8 within 14 days** of the delivery of the Judgment.
3. The Appeal shall be by oral hearing of the parties and on the records of the appeal.
4. The whole Appellate Process from the assignment of the Appeal to Judgment **shall not exceed thirty (30) days**

SEE ARTICLE 2-14 OF THE SMALL CLAIMS PRACTICE DIRECTION

CHAPTER FIVE

COMMENCEMENT OF ACTION IN THE HIGH COURT

This is one of the most important topics in civil litigation. This is because the High court is a court of unlimited jurisdiction; therefore it can entertain any matter except where the law clearly stipulates that such matter should go exclusively to another court**.**

NOTE, all matters relating to contract, tort (negligence, nuisance, defamation etc.), land matters etc. are commenced at the state high court.

PLACE OF COMMENCEMENT/VENUE: (this will help you to answer questions like **"In which Court will you institute the action?" see August 2013 Q2, 2014 Q2, 2016 Q3, April 2018 Q1 & 4)**

1. For **Land** matters/disputes the matter can be instituted in the High court of the State **where the land is situated** (lex situs)**: Ors 3 R 1 Abuja Rules; Ors 4 R 1(1) Lagos.**

2. An action arising from **contracts** is to be instituted **where the contract is to be performed** or **where the defendant resides** or **does his business**: **Ors 3 R 3 Abuja; Ors 4 R 3 Lagos.**
   If a company is a party in the suit, action is to be commenced in the judicial division **where it has its central place of business, management and control or its registered head office**- ***Kraus Thompson v UNICAL***

3. For any other type of breach like tort, fundamental rights breach etc. you institute the action where the breach occurred or where the defendant resides.

ACTION COMMENCED IN THE WRONG JUDICIAL DIVISION

- **In Abuja,** it is only the Chief Judge that can consider a case for transfer to another judicial division if the action was commenced in a wrong one. **See Ors 3 R 6.**
- **In Lagos, the matter could proceed** in that court's judicial division **UNLESS the Chief Judge directs otherwise**: **Ors 4 R 3 Lagos.**

FORM/MODES OF COMMENCEMENT OF ACTION (This is also known as Originating Processes). Ors 2 ABJ, Ors 5 Lagos

Actions are commenced in the High Court through four different processes via:

a. Originating motion
b. Originating summons
c. Petition
d. Writ of summons

1. **ORIGINATING MOTION**

This is used only when provided for by a statute or a rule of court. **Examples of actions to be commenced** by this way are;

a. Application for habeas corpus,
b. Order for mandamus,
c. Prohibition or certiorari,
d. Application for judicial Review
e. Action for the enforcement of fundamental rights under the Fundamental Rights Enforcement Procedure Rules 2009.

Note: parties are usually referred to as 'Applicant and Respondent'.

Commented [MOU12]:
FOCUS
NATIONAL INDUSTRIAL COURT

MODE OF COMMENCEMENT: Ors 3 R 1 NIC RULES 2017
1.COMPLAINT FORM 1 (Writ)
2.Originating Summons
3.Originating Motion
4.Application for judicial review
5.Petition

DOCUMENTS TO ACCOMPANY: Ors 3 R 9 NIC RULES 2017

1.STATEMENT OF FACTS ESTABLISHING THE CAUSE OF ACTION (Statement of claim)

2.LIST OF WITNESSES TO BE CALLED

3.WRITTEN STATEMENT ON OATH OF ALL WITNESSES LISTED TO BE CALLED BY THE CLAIMANT

4.LIST AND NUMBER OF COPIES OF DOCUMENTS AND OTHER EXHIBITS TO BE TENDERED

Documents to be attached to the application:

1) Affidavit
2) written Address and
3) other exhibits to be relied on.

2. ORIGINATING SUMMONS – August 2011

This is used whenever there is interpretation of a written law, documents or other agreements. It is used **generally for non-contentious matters** i.e. those matters where the facts are not likely to be in dispute. **Director of State Security Service v Agbakoba, National Bank v Alakija.**

In Abuja, the defendant has 8 days to respond

in Lagos, the **Respondent has 21 days to respond**.

Examples of some actions to be commenced by This Mode Are:

a. Action for interpretation of the constitution or other laws, documents etc.
b. **Actions between States and federal government or between National Assembly and the President**; **(Dec 2020 Q 2b)**
c. Interpretation of any instrument or deed,
d. Construction of Wills, clauses in contracts, agreement or some other question of law. **O. 2 R. 3(2) Abuja; O. 5 R. 4 (Lagos 2019 Rules)**

Documents that will accompany the Originating Summons are: - August

a. An Affidavit setting out the facts to be relied on
b. Exhibits to be relied on at trial
c. A written address in support of the application

d. Pre-Action Protocol Form 01 with necessary documents (**Lagos**) or Certificate of pre-action counselling Form 6(**Abuja**);

Ors 5 R. 4(3) Lagos Rules; Ors 2 R 3(5) Abuja Rules

Where an action is wrongly commenced by originating Summons, the trial court may either **strike it out or convert it** to a writ of summons and order for pleadings. **PDP v Atiku**

Note that where the question to be determined arises in the administration of an estate or a trust, then the summons is titled "**In the matter of the estate or trust**"

N.B – focus

Challenge an originating summons by filling a counter affidavit. The consequence of failure to file counter affidavit is that the facts in the process of the claimant will be deemed to have been admitted

3. PETITION

This is a written application made to court setting out a party's case. It **is** only used where a statute or the rule of court provide for its use.

Some examples of Suits to Be Commenced by Petition Include:

a. Dissolution of marriage matrimonial proceedings,
b. Election petitions; **section 133 Electoral Act**
c. Winding up of companies and other applications under the CAMA.

NOTE: that in a petition, the parties are referred to as **PETITIONER** and **RESPONDENT**.

4. WRIT OF SUMMONS (This is exam focus **August 2013 Q 2b, 2014 Q 2b, 2016 Q 3b; April 2018 Q 1(b & d), April 2019 Q 4b, Jan 2020 Q 4a and Dec 2020 Q 1d)**

(If you are asked in the exam, by what Mode/originating process will you commence the action? Your answer is below)

Writ of summon is used to commence every action **EXCEPT** if a particular rule or law, provides otherwise: **Ors 2 Rule 2(1) Abuja; Ors 5 R 1 Lagos**

The writ is **the default or main mode** of commencing all actions in the High Court **FOR CONTENTIOUS MATTERS.**

Generally, when counsel is in doubt as to how to commence a proceeding, it is most appropriate to use the writ of summons- ***Doherty v. Doherty*.**

Thus, in the exam, all actions relating to contract or interest in land, tort e.g. negligence or defamation, trespass etc. which mostly are contentious should be commenced by writ of summons.

COMMENCEMENT OF ACTION

An action is commenced when all of the following has been done:

1. Filing fees are paid on the processes.
2. Any Affidavit or Witness Statement on Oath have been taken before the Commissioner of oaths
3. The processes are duly served on the adverse parties
4. The Registrar of the Court gives it a suit number and it is entered in the Cause Book; see ***UBA v. Mode Nig. Ltd; Alawode v. Semoh***

FRONTLOADING OF DOCUMENTS (Focus) 🔄

This means the **Document That Accompany the Writ of Summons:**

a. Statement of claim;
b. List of witnesses to be called at the trial;

c. Written statements on oaths of the witnesses **except** subpoenaed witnesses
d. Copies of every document to be relied on at trial
e. Pre-Action Protocol **Form 01** with necessary documents **(in Lagos)** OR Certificate of Pre-Action Counselling as in **Form 6 (in Abuja); O. 2 R. 2(2) Abuja and O. 5 R. 1(2) Lagos**

NOTE: Students are always asked in the exam to list the documents that will accompany a writ of summons: (see, August 2018 Q 1b, 2019 Q 3h, April 2018 Q 4c, Dec 2020 Q 1d)

Effect of Not Filing the Requisite Documents Along With the Writ: May 2011

- In **Abuja,** the Registrar **shall not issue the writ– Order 2 Rule 2(4),** its to be **treated as irregularity and shall not nullify the proceedings**, judgment or document. **Ors. 5 .**
- In **Lagos**, failure to include the accompanying documents **will nullify the action**–**Order 5 Rule 1(3) Lagos; (Dec 2020 Q 1d(iii))**
- **In *Jabita v Onikoyi*,** it was held that a writ unaccompanied by the prescribed documents shall be struck out.

Application to set-aside for irregularity is made by **motion in Lagos** and **summons/motion in Abuja** with grounds of the objection stated in the motion **– Ors 5 R2(2) Abj , Ors 7 R 2(2) Lagos**

When Is A Writ Said To Be Issued?

The **Registrar issues the writ of summons**, but it **could be issued by any other officer** authorised by the court.

In **ABUJA,** the writ is issued when it is signed by the Registrar provided it is accompanied with the necessary documents required above–**Order 2 Rule 1 Abuja.**

In **LAGOS,** a writ is said to be issued when the Registrar seals the writ; **O. 8 R. 1(1) Lagos 2019 Rules.** But in practice, it is also signed.

NOTE:

the writ must be signed by a legal practitioner, who is duly called to the Nigerian bar and duly enrolled. Law firms cannot sign legal processes; ***Nweke v Okafor*; (August 2019 Q 3d March 2021).**

POSER - March 2021

What objection if any, would you raise to the writ of summons being signed by a law firm as an opposing counsel, using relevant authorities

Answer: As an opposing counsel, **I will raise objection that the action be struck out because the writ of summons was signed in the name of a firm which is a non-juristic person and therefore defective**. This is because, a court process can on be signed in the name of a legal practitioner and not in the name of the firm; ***Nweke v Okafor***

CONCURRENT WRITS Ors. 8 Lagos Rules, Ors. 6 Abuja Rules

When a writ is to be served on a defendant within jurisdiction and also on another defendant outside jurisdiction, the writs are described as concurrent writs; **O. 8 R. 9 & 10 of the Lagos Rules 2019, O. 6 R. 9 Abuja Rules**

It must be endorsed on top of the Writ that it is issued by the Court for service outside the jurisdiction of the Court and marked 'CONCURRENT'.

LIFE SPAN OF A WRIT (August 2013 Q2, 2014 Q2, 2016 Q 3) O. 6 Abuja Rules; O. 8 Lagos Rules

This means how long a writ will remain valid until served on a defendant by the claimant.

The life span of writ in **ABUJA** and **LAGOS is 6 months** renewable for a period of **3 months each.** The second renewal may only be granted for good cause**; O. 6 R. 6 & 7 Abuja; O. 8 R. 6(1) Lagos Rules.**

NOTE: where a defendant is served with an expired Writ without renewal, he may :

a. raise a preliminary **objection**

b. file a motion on notice **for the writ to be set aside.**

RENEWAL OF A WRIT

Once a writ is expired, it cannot be served on the defendant until it is renewed. A writ can be renewed by filling a **MOTION EX PARTE** for renewal supported with **AFFIDAVIT stating cogent reasons for the delay** and **Written Address**

In **Abuja and Lagos** you can only apply for renewal **before the expiration of the writ**: **O. 6 R. 6(2) Abuja; O. 8 R. 6 (2) & 7 Lagos.**

NOTE

that in Kolawole v. Alberto the Supreme Court held that **a writ of summons can be renewed even after its expiration.**

POSER:

Within what time must a writ of summons (in Lagos) be served after the date of issue and what steps would the claimant take if he is unable to serve within that period. **2009 No 2(d)**

The life span of a writ of summons in Lagos is 6 months in the first instance, after which it becomes invalid except renewed.

Where the Claimant is unable to serve the process during the 6 months period, he should apply for renewal of the writ for a further period of three months. The Court can only grant 2 renewals in each case provided that an originating process shall not be in force longer than a total period of 12 months. This should be done before the expiration of the writ. But the Claimant can still apply for renewal after the expiration of the writ. **Kolawole v Alberto**

EFFECT OF ACTIONS COMMENCED BY WRONG MODE

Commencing an action by the wrong mode is no longer interpreted to be fundamental **EXCEPT** where the law specifically provides otherwise.

For example, if an action is commenced by originating summons instead of by writ of summons, the court will order a conversion of the originating summons to a writ of summons and order the parties to file their pleadings; ***Uchendu v Ogboni.***

SERVICE OF ORIGINATING PROCESSES

Purpose of Service-

The general purposes of service of process is to give notice to the defendant **where an originating process is not served on the adverse party, the court lacks jurisdiction to entertain the action**- ***NBN v. Guthrie; Ezomo v Oyakhire.***

Any decision arrived at without service to an adverse party **will be set aside on appeal or even by the same court**; ***Mark v Eke***

MODES OF SERVICE OF PROCESSES:

There are two types of service:

a. Personal service
b. Substituted service

PERSONAL SERVICE:

- Originating processes **must be served personally on the defendant (or defendants if more than one)** unless where substituted service become necessary upon order of the court; **Order 7 Rule 2 (Abuja 2018); Order 9 Rule 2 (Lagos Rules 2019).**
- **Note:** where the Claimant authorized a Legal Practitioner in writing to accept services on his behalf and the Legal Practitioner enters appearance, the processes may be served directly on the LP; **O. 9 R. 3 Lagos Rules 2019**

SUBSTITUTED SERVICE: (Important area for Bar Final Exams see August 2018 Q. 6a, August 2019 Q. 5e) O. 7 Abuja; O. 9 Lagos

This is usually applied for when an attempt to effect service personally on a party has failed or that the party is evading service. Sometimes the court may order substituted service without an attempt at personal service. **O. 7 R. 11 Abuja; O. 9 R. 5 Lagos**

Procedure for applying for Substituted Service: (This is very important and it is usually asked)

1. Apply for **leave of the court** **by** **MOTION EX PARTE** supported with an **AFFIDAVIT** stating the grounds for the application (**why personal service had been difficult or impossible**) and **WRITTEN ADDRESS**.
2. State in the application (**prayer**) the proposed means of serving it on the party. This may include the following:
   a. Newspaper publication
   b. Pasting at the last known address of the defendant
   c. notice put up at the principal court house, or some other place of public resort in the judicial division
   d. Delivering it to an adult occupant of the defendants last known place of abode
   e. Sending it via email or other electronic means see **Order 7 R 11(1) & (2) Abuja; O. 9 R. 5(1) & (2) Lagos Rules**

DRAFT PRAYER: AN ORDER granting leave to the claimant/applicant to serve the processes in the suit to the defendant by substituted means by (any of the above 5)

NOTE: Companies

You serve a **company**

a. by delivering the process to a director or any principal officer of the company or

b. by leaving it at the registered address of the company within jurisdiction of the court;

O. 9 R. 9 Lagos; Order 7 Rule 8 of Abuja, *Mark v Eke* (Dec 2020 Q 1f)

Service of a process on a messenger **is invalid service**. **Mark v Eke.** Service of a process at the Branch or other office of the Company, not being the Registered Office is invalid service.

when you want to challenge the irregular service

As a Defendant Counsel, I will raise a preliminary objection to challenge the service as irregular.

Service of Originating Processes Outside Jurisdiction of the Court – MAY, Section 97 Sheriffs and Civil Processes Act (SCPA)

IN ABUJA, the Procedure is as follows**:**

1. A special endorsement must be made on the writ by the Registrar indicating that it is for service out of Jurisdiction **- Section 97 (SCPA).** The endorsement may be drafted thus**:**
   'This (originating process) is to be served out of the Federal Capital Territory, Abuja and in ……..State' see Order 2 Rule 4 of the Abuja Rules 2018
2. The defendant must be given **not less than 30 days after service** to enter appearance: **section 99 of the SCPA.**

IN LAGOS, the only procedure required is:

That the Registrar will only endorse on the writ that it is to be served outside jurisdiction. The special endorsement may be drafted vice versa as the sample given for Abuja above; i.e.

'This (originating process) is to be served out of Lagos State and in ……..State' Order 9 Rule 16 Lagos

NOTE: in Lagos, there is no need to give the defendant 30 days to enter appearance since the Lagos Rules provided for a period of 42 days which is longer than the period provided under the **section 99 of the SCPA.**

Effect of Non-Compliance with Procedure for Service Outside Jurisdiction:

Where a writ to be served out of jurisdiction did not comply with the procedure above, **it will be defective and may be set aside by the court**; ***Sken-Consults Limited v Ukey.***

Therefore, if you are counsel to the defendant, you will raise a preliminary objection against such writ; ***Adegoke Motors Ltd. v. Adesanya & sons***

POSER

Write a one-page opinion on the ruling of the Court who dismissed an application on the grounds that the Writ need not be endorsed for service outside jurisdiction – **May 2012**

The ruling of the Court would be wrong because where the Defendant resides or carries on business in another State and is to be served with an originating process, there needs to be an endorsement, that the process is for service outside the jurisdiction of … state and in … state. **Section 97 SCPA** and the writ must also provide that the Defendant is given not less than 30 days to answer to the writ (42 days in the case of Lagos). **Section 99 SCPA**

Service Of Originating Processes Outside Nigeria (this has never been asked in Bar Final Exam)

The procedure is as follows:

1. Apply by **Motion Ex Parte** for leave to issue Writ out of the jurisdiction of Nigeria and **for substituted service** stating how the process should be served.

2. The proposed Writ of Summons to be served will be **attached as an exhibit to the affidavit in support of the Motion**; **Order 8 of Abuja Rules 2018; Order 10 of Lagos Rules 2019.**
3. The defendant must also be given 30 days to enter appearance.

TIME OF SERVICE OF PROCESSES (MCQ question)

In **Abuja and Lagos**, processes of courts are to be served between **6am and 6pm d**aily (Monday to Saturday) **EXCEPT** on **Sundays and Public Holidays.** However, in exceptional circumstances, by a court order process may be served on a Sunday or Public Holiday**: O. 9 R. 14(1) & (2) Lagos 2019 Rules; O. 7 R. 15(1) & (2) Abuja Rules 2018.**

Refusal to Accept Process or Threat of Violence:

Where a defendant or any person to be person to be served refuses to accept the process, the Bailiff or the process server should leave the process within the reach of the Defendant. **The Bailiff has to swear an affidavit stating what transpired**: **O. 9 R. 12 Lagos Rules** and **O. 7 R. 12 Abuja 2018.**

Options Open to Defendant After Being Served With A Defective Writ

1. The defendant can enter a **conditional appearance** and **by filing a Motion on Notice to set aside the service for the Writ for being defective**: ***Sken Consult Ltd. v. Ukey.***
2. **File a Notice of preliminary objection** challenging the jurisdiction of the court with or without entering appearance: ***AG Eastern Nigeria v. AGF***

TIME FOR ENTERING OF APPEARANCE (Exam Focus April 2018 Q.4g & August 2018 Q.1b)

- In **ABUJA** the defendant has **14 DAYS** within which to enter appearance. If the defendant is outside jurisdiction, then he has **30 DAYS; Order 9 Rule 1 of the 2018 Rule**
- In **LAGOS,** the defendant is to enter appearance **within 42 DAYS** after the service of the writ whether the defendant is within or outside the jurisdiction. – **O.11 R. 1-3 Lagos 2019.**
- The defendant will **enter appearance** by filing his **MEMORANDUM OF APPEARANCE.** This Memorandum of Appearance must be **served** on the **claimant**(s) and other defendants if more than one defendant was sued within **7 DAYS** of entering appearance.

Documents that will accompany Memorandum of Appearance:

a. Statement of defence
b. Witness Statement on Oath
c. Copies of the documents to be relied upon during trial
d. List of witnesses (both Abuja and Lagos).

Types of Appearances that may can be entered by the defendant:

1. **Conditional Appearance:** this is used to challenge the action at an early stage without allowing full trial. For example, where the writ was defective or there was no proper service or the court lacks jurisdiction, the defendant may simply enter a condition appearance also known as **'Appearance in Protest'.**

After the entry of conditional appearance, the defendant must promptly and without taking any further steps, raise the objection by way of motion on

notice otherwise, he would be taken to have waived his right of objection. The court will rule on the objection before proceeding with the substantive suit.

2. **Unconditional Appearance:** this is used where the defendant simply intends to join issues with the claimant by defending or denying his claims.

APPEARANCE OUT OF TIME

1. Where the defendant is unable to enter appearance within the stipulated time as indicated above, the **claimant may apply for default judgment**. **However**, the defendant through his counsel may avoid a default judgment given against him by **seeking the leave of the Court to enter appearance out** of time. This application will be by **MOTION ON NOTICE** supported with an **AFFIDAVIT** disclosing cogent reasons for non-appearance within time/delay and a **WRITTEN ADDRESS**.
2. The Motion will be supported with the following:
   a. Statement of defence
   b. Witness Statement on Oath
   c. Copies of the documents to be relied upon during trial
   d. List of witnesses (both Abuja and Lagos); **(see Jan 2020 Q 6a & b)**

NOTE: the defendant will pay cost of **₦1000** per each day of default in LAGOS**; see O.11 R. 5 Lagos Rule** and in **ABUJA** cost of **N200** for each day of default for entering appearance out of time.

POSSIBLE EXAM QUESTIONS FROM COMMENCEMENT OF ACTION AT THE HIGH COURT

1. **In which court will institute the action? Give reasons for your answer.** (To answer this question check whether the issue is land matter, contract or tort) for e.g. **see January 2020 Q 4a** (**Answer**: I will institute the action in the high court of Lagos state. This because the incident took place in Lagos and the defendant resides in Lagos).
2. **By which mode/originating process will you adopt in commencing the action and why?** (Always choose WRIT OF SUMMONS unless the question talks about interpretation or it involves breach of fundamental right.), see Dec 2020 Q 1d (reason is because the facts of the case is likely to be contentious)
3. **State/list the documents you will file together with the originating process.**
4. **Assuming you are counsel to the defendant, what step will you take to defend the action? (Answer:** you will enter appearance by filing Memorandum of appearance with 14 days or 42 days)
5. **Assuming the defendant is evading service, what step will take to ensure he is duly served? (Answer:** you will for leave of court for substituted service by motion ex-parte, supported with affidavit and written address).
6. **Possible Drafts:** Memorandum of Appearance, Motion on Notice for Extension of time, Motion ex parte for substituted service.

CHAPTER SIX

INTERLOCUTORY APPLICATIONS (VERY IMPORTANT)

Generally, interlocutory applications are applications made in the course of pending proceedings. Once an action has been commenced, all subsequent applications are referred to as interlocutory applications–***NALSA Team & Associates Ltd. v. NNPC, Kotoye v. Saraki.***

PURPOSES OF INTERLOCUTORY APPLICATIONS

1. To cure defects in substantive suit e.g., to amend pleadings.
2. To obtain some temporary relief especially when time is of essence.
3. To nip an action in the bud e.g., a preliminary objection to the Court's jurisdiction to hear the matter.
4. To fulfill a condition precedent to the commencement of a substantive suit e.g., a man suing in a representative capacity and he needs leave of court to sue.

NOTE: all Interlocutory Applications are by **MOTION** which may be on **Notice** (to be served on the adverse party**) or Ex parte (**no address for service)**.**

Once an application has been filed except it is withdrawn, the court is duty bound to hear the application and make pronouncement. **Dandume Lgc v Yaro** Where a motion for extension of time to file defense was not heard and judgment was delivered. It was set aside on appeal

APPLICATIONS BY MOTION ON NOTICE

1. All applications extension of time to do any act or to file any process:

N.B

For an application for extension of time the rules require the defendant to show good cause/defense. This is **done by exhibiting such defense in the affidavit**

2. Application for **interlocutory injunction**
3. Application for striking out of a suit or name
4. Application for adjournment a case (Motion on Notice or by a formal letter to the Judge in chamber)
5. **Interpleader summons**
6. Application for amendment of any court process
7. Application for joinder of party in a suit
8. Application for installment payment of judgment sum

APPLICATIONS BY MOTION EX PARTE

1. Leave to sue in a representative capacity.
2. Class action
3. Anton Pillar Injunction
4. Mareva injunction
5. Application for substituted service
6. Application for third party proceedings.
7. Application for Interim injunction
8. Application for renewal of writ of summons.

SPECIFIC INTERLOCUTORY APPLICATIONS

A. REPRESENTATIVE ACTIONS Ors 13 Rule 14 Abuja, Ors 15 R 12

Where several persons have similar interests in a suit, one or more of them may, **with the leave of the Court (Motion Exparte)**, be authorized by the others interested or defend the suit on behalf of all parties. ***Atanda v. Olanrewaju*** It is mostly **used for family, community or unregistered associations.**

(See August 2017 Q 4a and April 2018 Re-sit Q 4b March 2021)

Matters Where Representative Actions Can Be Filed: The **Abuja (Civil Procedure) Rules** provides and specifies matters where representative actions can commence, they are matters under:

i. Administration of estate
ii. Property subject to trust
iii. Land devolved under other interest as family or community property
iv. Construction of any written instrument including a statute
v. Torts. **See order 13(15) Abuja (Civil Procedure) Rules 2018; Order 15 Rule 13 Lagos Rules 2019**

Procedure for Bringing Representative Action[1] (March 2021)

The representatives will first seek the leave of the Court to sue in a representative capacity by a **MOTION *EX PARTE*** supported with an **AFFIDAVIT** exhibiting the **letter of authority or memorandum** signed by a majority of members **authorising the representation indicating** the names of the appointed representatives and a **WRITTEN ADDRESS.**

[1] Under both rules the need to seek leave of court to sue in a representative capacity seems to have been dispensed with.

Commented [MOU13]:
The judgment in a rep action is binding to all, both the representatives and the represented, including those whose names do not appear individually on the writ, provided they fall the membership of the group represented. **OKETIE V OLUGHOR**

Commented [MOU14]:
See 2021
THIS COULD TAKE ANY FORM e.g extract of minutes

The Conditions/Factors for Representative Action (August 2017 Q4,).

Commented [MOU15]:
1.Common interest in the subject matter of the suit
2.Relief sought must be the same
3.Consent of all parties must be obtained

The court will consider the following before granting the leave:

1) Common interest and grievance of all the persons sought to be represented. It must be the same.
2) The reliefs sought must be beneficial to all represented. See ***Atanda v. Olarenwaju***
3) The applicants must be duly appointed by the persons to be represented (written authority).

POSER

In an action instituted by an association of which you are a member, write a short reflective opinion on the suggestion by the association that you represent them and also be one of the claimants. **2010 No 1(d)**

A Legal Practitioner can be made a party to Representative action if he has a common interest in the subject matter of the suit with the rest of the Claimants. However, by **Rule 17(5) RPC**, a Lawyer shall not appear as Counsel for a client in a matter in which the Lawyer is himself a party. He may however appear but only to represent himself. **Fawehinmi v NBA.**

POSER II

Draft a paragraph of the statement of claim which will disclose the fact that the family is being represented by the claimants.

The Claimants family, in a family meeting held on……nominated the 1st, 2nd and 3rd claimants respectively to represent it in the above suit; a copy of the minute of meeting where the 1st to 3rd claimants were appointed will be relied on during the trial.

B. THIRD PARTY PROCEEDINGS (Bar Final August 2016 Q 1d & 2017 Q. 1C, August 2018 Q 4E)

This procedure is only **available to a defendant or a claimant who is a defendant to a counter-claim**. ***Bank of Ireland v. UBA***; **Order 13 Rule 21 Abuja Rules; Order 15 Rule 19 (1) Lagos Rules.**

Circumstances When Third Party Application Is Needed:

The watch word to look out for in the exam is **LIABILITY**.

a. Where the third party will bear eventual **LIABILITY** in whole or in part or
b. will **INDEMNIFY** the defendant for contributing to the breach.

So, if in the scenario in exam you see any of the above elements and they ask you to advise the defendant on what to do, your answer will be that he should bring an application for third party proceedings.

PROCEDURE for 3rd Party Proceedings: (very important)

a. The defendant will **apply for leave of the court** by way of **MOTION EX PARTE** to issue and serve third party notice.

b. The application will be supported with an **AFFIDAVIT** stating the grounds for wishing to join the third party and a **WRITTEN ADDRESS**.

c. If the order is granted a copy of the order and all other necessary processes in the matter will be served on the third party.

Commented [MOU16]: Steps to be taken after the grant

d. The **third party to be joined has 8 days to enter appearance if within jurisdiction** and **if not within jurisdiction he has 35 days** to enter appearance; **O. 13 R. 21 Abuja FCT Rules 2018;** ***Okafor v. ACB Ltd.*** **O. 15 R. 19 Lagos Rules 2019.**

C. APPLICATION FOR INJUNCTIONS

Injunctions are applications aimed at stopping the doing of an act or to maintain the status quo of the parties in certain case either pending the determination of the suit or pending the hearing of the dispute between the parties. An injunction is an order of court restraining the Respondent from doing an act

Types of Injunctions:

Commented [MOU17]:
MANDATORY INJUCTION

•It is an order compelling a party to do an act in some cases (e.g. to forestall executive lawlessness).

•It is to compel a Respondent to retrace his steps and to restore the parties to the ***status quo ante bellum.*** See **SULU GAMBARI V BUKOLA**

1. Interim Injunction

An interim injunction is one granted to preserve the status quo until a named date or until further order or until an application on notice can be heard. It is granted in situations of extreme urgency made by **MOTION *Ex Parte*** – **Order 43 R. 3 (1) Abuja and Order 43 Rule 3(1) Lagos**. The **affidavit** must disclose the urgency the urgency otherwise it will not be granted

The Main Features of An Interim Injunction Are:

i. In the exam, once you see the phrase ***"Pending when the parties will be heard or pending the hearing of the suit"*** **choose INTERIM INJUNCTION**

ii. It is made to preserve the status quo until a named date, or until a further order, or until an application on notice for interlocutory injunction is heard or determined. It is only meant to last for a short period especially in cases of extreme urgency.

iii. In Abuja and Lagos an ***ex parte*** **interim order lasts for 7 days** and may be **extended for another 7 days only**; **O. 43 Rule**

3(2)&(3) Abuja Rules 2018; O. 43 Rule 3(3) & (4) Lagos Rules 2019

iv. It is applied via a **MOTION EX PARTE** supported with an **AFFIDAVIT** of urgency and a **WRITTEN ADDRESS**.

NOTE: where there is no urgency or where the right of the adverse party will be affected the court will hardly grant an order of interim injunction.

2. Interlocutory Injunction

This is **granted pending the determination of the suit** or unless discharged by the court. It is applied for through a **MOTION ON NOTICE** **only after a suit has been properly commenced**. It is aimed at protecting or preserving the subject matter of the dispute or to order the parties to maintain status quo PENDING THE DETERMINATION OF THE SUIT**.**

N/B in the EXAM once the words: 'PENDING THE DETERMINATION OF THE SUIT' is used in the question; the correct answer will be interlocutory injunction.

CONDITIONS FOR GRANT OF INJUNCTION APPLICATIONS – FOCUS *CBN v. Kotoye*, Obeya Memorial Hospital v. AGF

1. **Existence of a legal right** – Injunctions are usually granted to protect legally recognized rights – ***Green v. Green***
2. There must be a **substantial issue to be tried.**
3. **Balance of convenience**. This is a question of who will stand to lose more if the *status quo ante* is restored and maintained in the final determination of the suit.

4. **Irreparable damage or injury:** The applicant has to show that damages will not adequately compensate him for the injuries he will suffer if the injunction is refused; ***Ayorinde v. A-G. Oyo State*.**
5. **Conduct of the parties;** the applicant must not be guilty of misconduct.
6. **Undertaking as to damages**

N.B –

A claim for damages is not an automatic bar against an interlocutory injunction. The issue is whether such damages will be adequate compensation for the loss the applicant stands to suffer - **Kotoye v CBN**

An order of injunction **will not be granted where damages will be adequate compensation for the loss the applicant stands to suffer.**

3. Mareva Injunction (Bar Final April 2019 Q. 2B)

Used to restrain that defendant from removing the assets from the jurisdiction or from disposing of them, pending the trial of the action. See ***Mareva Compania Naveira SA v. International Bulk Carrier Ltd; Sotinminu v Ocean Steamship,***

It is by a **MOTION EX PARTE** supported with an **AFFIDAVIT** which must state the fact that the subject matter of the dispute which is in possession of the adverse party is at risk of being taken out of jurisdiction, and a **WRITTEN ADDRESS**.

The guiding principles are laid in **SOTIMINU's** case follows:

a) That he has a **cause of action which is justifiable**

b) That there is **real and imminent risk of the Defendant removing his assets from jurisdiction** and thereby rendering nugatory any judgment which the claimant may obtain

c) That the **applicant has made a full disclosure of all material facts relevant in the application**

d) That he **has given full particulars of the Defendant's assets within the jurisdiction**

e) That the **balance of convenience is on the side of the applicant**

f) That he is **prepared to make undertakings as to damages.**

4. Anton Pillar Injunction

It is particularly useful to claimants who are victims of commercial malpractice like breach of copyrights, patent rights, etc. (alleging breach of intellectual property). ***Anton Pillar K.G. v. Manufacturing Process Ltd.***

It permits the Applicant to enter into the premises of the Respondent to search and seize, detain and preserve goods or articles in possession of the Respondent. - **S. 25(1) Copyright Act**

It is by **MOTION EX PARTE** + **AFFIDAVIT** + **WRITTEN ADDRESS**.

NOTE: that it is the **Federal High Court** that can entertain an application for Anton Pillar injunction since it is aimed at Copy Rights protection

PRINCIPLES GUIDING GRANT OF ANTON PILLER - FERDO LTD v UNIBRO STORES

1. The Applicant must show **that there is an infringement against his trademarks, copy right, patent right or designs.**

2. The Applicant must show that the **infringing property is in the possession of the Respondent.**

3. The Applicant must **show that if an application is made on notice, the Respondent is likely to destroy or hide the property away**.

4. The Applicant must further **show that his case would be seriously frustrated if the court refuses to make the order for Anton piller injunction against the Respondent.**

D. INTERPLEADER SUMMONS (Order 47 Lagos and Order 48 Abuja) (exam focus)

We have two types of interpleaders to wit:

1. Stakeholder Interpleader (May)

This is an **application** to be made to the court **by a person who is in possession of a property subject to two adverse claims of which he is not certain of the owner and he has no interest in the subject matter**. It is aimed at urging the court to ascertain between the two adverse claimants who is the rightful owner of the property. For example

Commented [MOU18]: where a tenant whose landlord has died is been pressured by two sons of the landlord from different mothers to pay rent and the tenant has no idea who amongst the two sons to pay to.

The PROCEDURE is that the applicant will file an Interpleader Summons supported with an **AFFIDAVIT** which MUST state the following facts: MCQ and THEORY) + **Written Address**

i. That the **applicant has no interest in the subject matter** in dispute **EXCEPT** charges or costs;

ii. That the applicant **does not collude with any of the claimants**; and

iii. That the Applicant is **willing to transfer the subject matter into court or to dispose of it as the court may direct**

Order 48 R. (2) &(5) Abuja; O. 47 R. 2 Lagos

N.B – May bar final

If on the date fixed for the hearing of an interpleader application, one of the Respondents failed to appear in Court **despite having been served**, the Court may make an **order** declaring him and all persons claiming under him **forever barred against the applicant**.

However, such order shall not affect the rights of the claimants as between themselves. **Order 48 R 9 Abuja**, **Order 47 R 8 Lagos**

2. **Sheriffs Interpleader: (Bar Final August 2019 Q 1f & g)**

This arises where a third-party claims that the property on which execution of a judgment by the **Sheriff** is levied or about to be levied belongs to him **and not to the judgment debtor**.

The essence of this proceeding is to determine whether the property belongs to the judgment debtor or not–***Nwekeson v. Onuigbo.***

Interpleader proceedings enables the Sheriff to ask the court to determine whether the goods or property belong to the judgment debtor or the rival claimant, **Section 34 of the Sheriffs and Civil Process Act.**

AFFIDAVIT EVIDENCE

All motions whether on **Notice or Ex-parte** must be supported with an affidavit and written address.

An affidavit is a written declaration of facts made voluntarily and confirmed on oath or affirmation of the party making it.

NOTE THE FOLLOWING ABOUT AN AFFIDAVIT:

a) Where the **deponent is not a party, he must state the authority on whom he deposes**;

b) Where the deponent deposes to facts not within his personal knowledge, the source and circumstances of his information must be stated – ***Ajayi Farms Ltd. v. NACB***

c) It **must contain only relevant facts and NOT extraneous matters or law, legal arguments, prayers or conclusion**. **section 115 E.A.**

d) It must be written in chronological order and in numbered paragraphs.

e) An affidavit **shall not be sworn** before a Notary public who is a Counsel **to the party for whom the affidavit is to be filed, it shall be inadmissible.** In such circumstance any affidavit or witness statement on oath is inadmissible. **Section 19 Notary Public Act. Buhari v INEC. – May 2011**

f) Although there is no provision in the Evidence Act that prohibits a Lawyer from deposing to an affidavit in support of his client's application. However, by the Rules of Professional Conduct, it is unethical for a Counsel to depose to an affidavit in favour of his client. Counsel should not put himself in an embarrassing position of

being put into the witness box and subject to cross-examination **Elebanjo v Tijani. –** 2010 bar final

COUNTER–AFFIDAVIT

Commented [MOU19]: If the applicant, upon being served with the counter affidavit, sees the need to oppose the facts deposed to in the counter affidavit, he is expected to file a further affidavit it.

Where a party intends to challenge the facts in an affidavit, the step to take is to file a counter affidavit.

The **consequence** of failure to file counter affidavit is that the facts in the process of the claimant will be deemed to have been admitted. **Alagbe v Abimbola – May**

Where a Respondent fails to file a counter-affidavit or fails to specifically deny averments made in the affidavit in support of the motion, **the court shall act on the unchallenged or un-contradicted evidence and deem them to be admitted and treat them as such**–***Falobi v. Falobi.***

The **EXCEPTION** to this rule is that where the Respondent wants to rely on **points of law alone, he need not bother to file a counter-affidavit** – ***Badejo v. Minister of Education.***

CONFLICTS IN AFFIDAVITS (Dec 2020 Re-sit Exam Q 4h, May)

Where there is a conflict on material facts deposed to by the parties, the court will **call for oral evidence** in order to be able to resolve the conflicts and make a finding of fact – ***Falobi v. Falobi.***

However, where there is **documentary evidence** that can resolve the conflict, the court may dispense with oral evidence; see **EIMSKIP Ltd. v. Exquisite Industries (Nig) section 116 of Evidence Act.**

SWEARING OF AFFIDAVIT BY COUNSEL

It is unethical for a counsel to swear an affidavit on behalf of his client. According to **Rule 20(1) of the RPC**, a lawyer shall not accept to act in any contemplated or pending litigation if he knows or ought reasonably to know that he will be called as a witness.

However, in circumstances mentioned in **Rule 20(2) RPC**, a counsel can depose to an affidavit.

PRIORITY IN HEARING APPLICATIONS (Bar final September 2015 Q.1C and Jan 2020 Q 6D)

Generally, it is usual to take pending motions in the order in which they are filed. However, where there are two motions with adverse effect on the proceeding, one seeking to regularise (e.g. motion for extension of time), and the other to dismiss or strike out the suit (motion for default judgment), the motion seeking to regularise the proceeding will be taken first – ***A. G (Fed.) v. AIC Ltd., NALSA & Team Associates v. NNPC.***

Ethical Issues on Use of Interlocutory Applications:

a. A legal practitioner should not use frivolous applications to obstruct, delay, or adversely affect the administration of justice; **Rule 30 RPC**.
b. A legal practitioner shall not mislead the court–He shall deal candidly and fairly with the court; **Rule 32 RPC**.
c. Counsel should not file application which he ought to know will amount to an abuse of court process or an act which is dishonourable.

HOW TO MOVE A MOTION IN COURT– (August 2016 Q1 and 2018 after announcing appearance): motions are moved not heard.

1. My Lord before this Honourable Court is a motion on notice for…….(mention the purpose of the motion), dated the _____day of ___2020 and filed_____(usually lawyers will say; 'and filed the same day')
2. The motion is brought pursuant to Order….Rule…….of the Rules of the High Court of … state civil procedure rules and under the inherent jurisdiction of this Honourable Court
3. My Lord, we seek the following RELIEFS/PRAYERS (read out reliefs)
4. My Lord, our motion is supported by a 10 paragraph affidavit deposed to by one ____(name of deponent)_____We rely on all the paragraphs of the affidavit. Accompanying the affidavit is ___ exhibits marked___.
5. In compliance with the rules of court, we have also filed a written address dated and filed on the…..day of…2020 in support of our application. We wish to adopt same as our argument in support of our application
6. We humbly pray this honourable court to grant our application as prayed. Thank you, my Lord

HOW TO ANNOUNCE APPEARANCE

May it please this Honourable Court I am **C. O. Ude** appearing for the Claimant/Applicant or for the defendant. OR

<u>If you are holding the brief of a Senior Counsel or another lawyer:</u>

'May it please this Honourable Court; I am C. O. Ude, holding the brief of A. A. Yusuf SAN, appearing for the Claimant'.

(see August 2016 Q 1g)

POSSIBLE QUESTION FROM INTERLOCUTORY APPLICATIONS

1. **What step will you take to stop the defendant from interfering with the res pending the determination of the suit?**

   Answer: I will bring an application for interlocutory injunction by motion on notice supported with affidavit and written address.

2. **Assuming you are counsel to the defendant, what step will you take to join ABZ Limited to bear part of the liability?**

   Answer: I will bring an application for third party proceedings. It will be by motion ex parte for leave of court to serve ABZ Ltd with a third party notice.

3. **Considering the number of your clients, how will the action be properly instituted?**

   Answer: I will seek leave of court to bring a representative action on behalf of all my clients. It will be by motion ex parte supported by affidavit and a written address.

4. **Assuming the defendant is selling off its assets and moving same out of the jurisdiction of the court, what step will take to stop it?**

   Answer: I will bring an application for mareva injunction by motion ex parte supported with affidavit and a written address to restrain the defendant from selling or taking its properties out of jurisdiction.

5. **Assuming the claimant filed a motion for default judgment and the defendant in response filed a motion for extension of time, with the aid of decided cases, state which of the application the court should hear first?**

Answer: The court will hear the motion for extension of time first because it will give life to the proceedings; ***NALSA & Team Associates v NNPC***

CHAPTER SEVEN

SUMMARY JUDGMENT PROCEDURE – Ors 11 Abuja, Ors 13 Lagos

Summary judgment is any judgment given in favour of the claimant summarily, without going through a full trial or plenary trial of the action. The main reason for summary judgment is to save time and cost of lengthy and expensive trial where the defendant obviously has no defence to the action. ***Mcgregor Associates v. NNBN***

DEFAULT JUDGEMENT

default judgments are also judgments given summarily in default of a party:

a. **failing or neglecting to enter an appearance or**
b. **file a defence to an action commenced in court against such party.** **Order 10** rule 2 and Order 21 **Abuja**; **Order 12** rule 1 and Order 22 **Lagos**.

However, in the case of judgment entered in default it can be set aside upon an application that is brought before the court timeously in such respect.

N.B – **2009 BAR FINALS**

In an application for default judgment, **it is appropriate for the Court to set down a suit for trial where the claim is such that a default judgment**

cannot be granted, for example in **declaratory reliefs** which the claimant must prove even if the Defendant admitted the facts.

The Judge is empowered to set aside any default judgment obtained under the Rules, only on the grounds of: **O. 21 R 12 Abuja; O.22 R 12 Lagos,**

1. **fraud,**
2. **Non-service**
3. **lack of jurisdiction.**

default judgment, can be set aside or varied upon an application by the Defendant within a reasonable time showing a good defense to the claim and a 'just cause' for the default. **Ors 12** R 9 **Lagos, Ors 10** R 11 **Abuja**

Thus, any reason given by the Defendant which the Court considers to be a just cause for the default can suffice as a ground to set aside the judgment,

UNDEFENDED LIST PROCEDURE (Bar Final September 2015 Q 4f, April 2019 Q. 2a)

The Undefended list procedure is better discussed under five (5) main headings: they are: Order 35

3. **Purpose/Use of undefended list:** it is used for **recovery of debts or liquidated money demand ONLY**
4. **Procedure for Undefended list**: the action must be commenced by Application as in **Form 1 (WRIT OF SUMMONS)** + **AFFIDAVIT** stating the grounds on which the claim is based and stating that in the

claimant's belief there is no defence to the suit. ***Ahmed v. Trade Bank Nigeria PLC***; **Order 35 R. 1(1) & (2) Abuja.**

NOTE THAT:

The court, where the action is filed, shall examine the claim and the supporting affidavit and **if satisfied that there are good grounds for believing that there is no defense to the claim will enter the suit for hearing under the undefended list and mark the writ of summons accordingly.**

The **court CANNOT delegate the power to consider or place the writ in the undefended list** since it is a judicial function; ***Nwakanma v. Iko Local Government Council Rivers State***. Thus it cannot be done by the Registrar.

5. What The Defendant Will Do If He Intends to Defend

If the defendant intends to defend the suit, he shall **within 5 DAYS** file his

a. **NOTICE OF INTENTION TO DEFEND** and
b. **AFFIDAVIT** disclosing a defense on the merit. See ***Ahmed v. Trade Bank PLC, Bulet International (Nig.) Ltd v Adamu***; (**April 2019 Q. 2d)**

NOTE: where a **defendant fails to file within the time limit, he may apply for an extension of time.**

If a defendant does not within time deliver a notice of intention to defend and an affidavit required by the rules but before judgment applies to the court by motion on notice supported by affidavit disclosing a defence on the merits and satisfactorily explaining his neglect, the court may allow him to defend the matter on terms as it deems just

6. Orders The Court May Make Upon Hearing the Application

After examining the affidavit and counter affidavit of both parties, the court may make any of the following orders:

a. Where the court is satisfied that no defense has been disclosed in the defendant's affidavit, the case will be heard as an undefended list and judgment thereupon given to the claimant. ***Bature v. Savannah Bank.***

b. Where the defendant has disclosed a defense, the action shall be removed from the undefended list and transferred to the ordinary cause list; ***Gwagwada v. ACB Ltd.***

c. The court may order the parties to file their pleadings, or proceed to hearing without further pleadings or make such order as it deems fit – **Order 35 Rule 3(2) Abuja.**

7. Effect of Judgment Obtained Under Undefended List

The general rule is that any judgment obtained under the undefended list procedure **is a final judgment on the merit** and **CANNOT** be set aside by the same court that gave it; the only option open to an aggrieved defendant is to appeal against it – ***ACB Ltd. v. Gwagwada.***

The **EXCEPTION** to this rule is that the court has the power to set aside its own judgment even where the judgment was entered under the undefended list where:

a. Judgment was entered without jurisdiction; or
b. The judgment was obtained by fraud.
c. Non-service of the originating process; ***Mark v. Eke***

The defendant seeking to set aside the judgment must come by way of **MOTION ON NOTICE + AFFIDAVIT** stating the nature of the

irregularity, how it arose and disclosing a defence on the merits and a **WRITTEN ADDREESS**; ***Jepreze v. Okonkwo.***

SUMMARY JUDGMENT PROCEDURE (Order 13 Lagos and Order 11 Abuja)

(Bar final September 2015 Q. 4 a-c, August 2017 Q 1a, April 2019 Q 4e)

It will also be discussed in five main headings:

1. **Purpose/use of Summary Judgment:** This procedure is **used for all types of claims** and is used where the claimant believes that there is no defence to his claim; or where it will amount to delay to allow the defendant defend the action or where the facts are straight forward and uncontested by the defendant –***UTC (Nig.) Ltd. v. Pamotei*.**

2. **Procedure:** The claimant shall file the **Writ of summons** accompanied with following documents; **Lagos - O. 13 R. 1**
    a. Statement of claim;
    b. List and copies of Documents to be relied upon;
    c. List and depositions of his witnesses
    d. An application for summary judgment (**By Motion on Notice**);
    e. **AFFIDAVIT** in support stating grounds for his belief that there is no defense to the claim
    f. A **WRITTEN ADDRESS.**

Abuja - O. 11 R. 1

a. Statement of claim
b. Exhibits to be relied upon;
c. depositions of his witnesses

d. An application for summary judgment (by **motion on notice**);
e. Affidavit in support stating grounds for his belief that there is no defense to the claim
f. A written address;

NOTE: every time you're asked to draft the application for commencing summary judgment in the exam**:** draft a **MOTION ON NOTICE** (together with affidavit and written address **UNLESS** **they said without supporting documents**).

3. What The Defendant Will Do If He Intends to Defend

A defendant who is served with the process if he intends to defend the claim, he must do so by **filing within 42 DAYS** in Lagos and **21 DAYS** in Abuja, the following documents:

Lagos

a) His statement of defense;
b) List and deposition of his witnesses;
c) List and copies of documents to be used in his defense
d) A counter affidavit and
e) A written brief in reply to the application for summary judgment; **Order 13 Rules 4, Lagos;**

ABUJA

a) His statement of defense;
b) Deposition of his witnesses;
c) Exhibits to be used in his defense
d) A counter affidavit and

e) A written brief in reply to the application for summary judgment; **O. 11 R. 4 Abuja**

4. **Orders The Court May Make Upon Hearing the Application (September 2015 Q. 4) Macaulay v NAL Merchant Bank**

   i. Where it appears to a judge *prima facie* that **a defendant has a good defence** and ought to be permitted to defend the claim, **he may be granted leave to defend** – **Order 13 Rule 5(1) Lagos; Ors 11 R 5 Abuja** ***Okamgba Ltd. v. Sule***

   ii. Where it appears to the judge that **the defendant has no good defence**, the **judge may enter judgment in favour of the claimant** – **Order 13 Rule 5(2) Lagos, Ors 11 R 5 Abuja.**

   iii. Where it appears to a Judge that **a defendant has a good defence to a part of the claim** but no defence to the other parts of the claim, the Judge may thereupon enter judgment in respect of the part of the claim to which no defence has been disclosed, and grant leave to defend that part to which a defence has been disclosed – **Order 11 Rule 5(3) Lagos, Ors 11 R 5 Abuja .**

   iv. Where there are more than one defendant, the **judge** may enter judgment against those defendants who do not disclose a defence to the claim but shall grant leave to defend to those defendants who disclose a defence – **Order 13 Rule 6 Lagos Ors 11 R 5 Abuja.**

5. **Effect of Judgment Obtained Under Summary Judgment**

a. If the judgement was given because of failure of defendant to file his defence or counter affidavit**, it is a default judgment** and it could be set aside for fraud, lack of jurisdiction or non-service; ***UTC Ltd. v. Pamotei***

b. If the judgment was given after the defendant has filed his defence and counter affidavit**, it is a final judgment** (judgment on the merits) **which can only be set aside on appeal.**

Similarities Between Undefended List (Order 35 Abuja) And Summary Judgment Order 11 Abuja and Order 13 Lagos Rules

1. They are both summary judgment procedures
2. They both apply where the claimant believes that the defendant has no defence to an action.
3. They are both filed at commencement.
4. They are both commenced by writ of summons.
5. They are both supported by affidavit.

Differences Between Undefended List (Order 35 Abuja) And Summary Judgment Order 11 Abuja And Order 13 Lagos Rules

Commented [MOU20]:
STRUCTURE
1.USAGE
2.TIMEFRAME FOR DEFENCE
3.PROCESS TO DEFEND
4.JUDGEMENT

1. Undefended list relates to debt or liquidated money demand only while summary procedure relates to all claims (liquidated and un-liquidated).

2. The time for filing a defence is at least five (5) days before the date fixed for hearing under undefended list while the time for filing a defence is 42 days (in Lagos) 21 days (in Abuja) from service of the writ

3. Under Undefended list if the defendant intends to defend, he will file notice of intention to defend while under summary judgment Order 11 Abuja and 13 Lagos it is by a statement of defence and other documents.

4. Undefended list allows for only a final judgment whether the defendant files a defense or not while summary judgement has two (2) types of judgment which are default judgment and judgment on merits (final judgment).

Distinction between Summary Judgment and Default Judgment

1. A summary judgment is a final judgment and **can only be set aside on appeal** since it is a judgment given on the merit for want of a defence by the defendant –***ACB v. Gwagwada.***
   While a default judgment can be **set aside by the same court** that gave the judgment because it was given in default not necessarily for want of a defence.
2. A summary judgment is resorted to in circumstances where it is obvious or, at least, it appears to the claimant that the defendant has no defence to the action –***UTC (Nig.) Ltd. v. Pamotei.***
   While a default judgment is resorted to where the defendant has failed, neglected and or refused to either enter appearance or file his defence.

FAST TRACK PROCEDURE (this is not frequently asked in the exam because Summary judgment is preferred to it);

Order 59 Lagos Rules 2019:

The main objective of the Fast Track Court is to reduce the time spent on litigation to a period **not exceeding nine (9) months from the commencement of the action till final Judgment**.

The action must be commenced by **Writ of Summons** and the claim is for liquidated monetary claims or counterclaim in a sum **not less than One Hundred Million Naira** **(N100, 000,000.00)**

FAST TRACK UNDER THE ABUJA RULES

In Abuja fast track procedure may be used for almost every action where there is need for urgency **PROVIDED** that the monetary claim is not less than **N50,000,000 (Fifty Million Naira).**

The period from **commencement to conclusion of trial** in fast-track procedure shall be **within 30 days,** the filing and adoption of final addresses is **within 14 days**, **judgment** shall be delivered **within 7 days after final address.**

POSSIBLE QUESTIONS FROM SUMMARY JUDGMENT

1. **State the procedure you will adopt to commence the action expeditiously (or as quickly as possible) without going through full trial.**

   Answer: If the scenario is in Lagos I will adopt summary judgment procedure under order 13 Lagos Rules BUT if the scenario is Abuja, I will adopt undefended list procedure under order 35 of the Abuja Rules.

2. **List the documents you will file while commencing the action under the procedure you identified above.**

   Answer: check the procedure as indicated above to learn the documents.

3. **Assuming the defendant intends to defend the procedure adopted by you, what step will he take?**

   Answer: Check the notes for the answer depending on whether it is Lagos or Abuja

4. **Drafts:** Notice of intention to defend; Motion on notice for summary judgment.

NOTE: In the exam, once the word **'Expeditiously', 'as Quickly as Possible' or 'Quickest means Possible'** are used, if the scenario is Lagos, choose **Summary Judgment Order 13 Lagos Rules BUT** if the scenario is Abuja, choose **Undefended List Order 35 Abuja Rules. See August 2017 Q 1a and April 2019 Q 2a** for proper appreciation

CHAPTER EIGHT

PLEADINGS

Pleadings set out material facts in a dispute. It is a brief summary of the facts of each party's case. Pleadings are mostly used for actions commenced by way of **writ of summons**. **Order 15 Abuja; Order 17 Lagos**

Relationship between Writ of Summons and Pleadings:

- Writ of summons ordinarily does not form part of pleadings-***Lewis v. Parker***
- A Writ of Summons may qualify as a pleading if it is specially endorsed.
- However, once a statement of claim is filed, it **SUPERCEDES the writ. Enigbokan v AIICO**
- **Therefore,** any statement/relief or prayer contained in the Writ but omitted in the Statement of Claim is **deemed abandoned**.
- On the other hand, the court will consider and may grant all reliefs in the SOC even if not contained in the Writ; **(check January 2020 Q4d)**

A Statement of Claim supersedes the writ of summons to the extent that once a statement of claim is filed the court will only look at the reliefs claimed in the Statement of claim in determining the case of the parties

However, it must be noted that although the statement of claim supersedes the writ, nevertheless, it must confine itself to the cause of action indorsed upon the writ of summons.

FUNCTIONS OF PLEADINGS

1. Pleadings define and ascertain the various matters in dispute between the parties and those upon which they are agreed. ***Highgrade Maritime Ltd v. FBN LTD.***

2. Pleadings serve as a notice to the other party as to what to expect and thus forestalls the springing of surprises thus saving time and cost. ***George v. Dominion Flour Mills Ltd.***
3. They serve as a guide to the court as to the precise matters to decide between the parties.
4. Pleadings constitute a permanent record of the issues and questions raised and determined between the parties and constitute public record.
5. Pleadings show on whom the burden of proof lie on the respective issues raised-***Bakare v. ACB LTD.***
6. It aids the parties to determine the proper approach to the opponents' case. A party may upon the pleadings apply for judgment upon admission –**Order 16 Rule 3 Abuja Rules; Order 17 Rule 4 Lagos Rules**

CONTENTS OF PLEADINGS

These are the cardinal rules as to what the pleadings should contain or should not contain; **O. 15 R. 4 Abuja Rules 2018; O. 17 R. 2 Lagos Rules 2019;** ***Agu v. Ikewibe***

1. Every pleading must contain only material facts. The material facts are those facts essential to the party's case; ***Bruce v. Odham's Press Ltd.***
2. Pleadings must not contain evidence but shall contain facts by which the evidence is shown.
3. A party is not allowed to plead **law or legal arguments or conclusions**; ***Obiajulu v. Ozim*** **EXCEPT** where the point of law pleaded will dispose of the entire action -***Martins v. Federal Administrator General***
4. The facts must be stated precisely, positively, distinctly and briefly.
5. Pleadings must contain relief sought or prayers.

6. Pleadings are arranged in paragraphs and numbered consecutively.

Facts That Must Be Specifically Pleaded (Dec 2020 Q 5c)

Generally, any matter**,** which will take the other party by surprise if not pleaded, must be pleaded. "**Pleaded**" means it must be mentioned in either your statement of claim or defence; **O. 15 R. 6 Abuja; O. 17 R. 7 Lagos Rules**. The following facts must be specifically pleaded:

1. Charges of fraud, commission of crime or any fact showing illegality. **Adeoye v Jinadu (focus)**

2. In a matrimonial or other causes based upon adultery, the particulars of the alleged acts of adultery must be 'specifically pleaded including the times and places of each act of adultery as well as particulars of the person with whom the adultery is allegedly committed**: Ikoku v. Oli**

3. Unenforceability of document must be pleaded. Documents of material fact must be specifically pleaded where the document itself is in issue; ***Jebara v. Mercury Assurance Co. Ltd.***

4. Statute of limitation must be specifically pleaded where it is sought to be relied upon ***Ishola Balogun v. Wahabi Onikono***

5. Special damages must be specifically pleaded and the particulars set out.

6. Equitable defences of laches, acquiescence standing by undue influence; ***Ibenwehi v. Lawal.***

7. The plea of estoppel must be specifically pleaded; ***Obanya v. Okunwa.***

8. The plea of **Res Ipsa loquitur** must be specifically pleaded by pleading facts, which justify its application; ***Okeke v. Obidife.***

9. **Libel** particulars of the alleged libel have to be pleaded in order to make it easily identifiable. The precise words have to be set out. If the words do not specifically refer to the plaintiff or claimant, he must plead those facts from which he wants the Court to infer that the libel refers to him; **Bruce v. Oldham Press Ltd**

10. In **slander cases** the precise words used and the names of the persons to whom they were uttered must be pleaded: **Bradbury v. Cooper** particulars of the times and the place where the words were uttered should be pleaded.

11. If the libel or slander is in a foreign language, the actual words allegedly written or spoken must be set out in the foreign language, followed by a literal translation. in a case of defamation, if the defence is that of qualified privilege or fair comment, this must be specially pleaded. **Simonds v. Dunne** and the Court may not permit an amendment raising the plea after the close of evidence: **Stallworthy v. Geddis**

N.B – focus

In **Abacha v Fawehinmi** the court stated that do not quote/cite sections in pleadings. It is settled law that only statement of facts are to be pleaded and not law cases and not law cases

EXCEPTION:

(a) Customary law

(b) Islamic law

(c) Foreign law

Must be specifically pleaded unless already judicially noticed by the court. **Ojemen v Momodu**

EXAMPLES OF PLEADINGS

(a) Statement of claim (filed by claimant)
(b) Statement of defence (filed by defendant)
(c) Reply (filed by claimant in reply to SOD)
(d) A counterclaim or set-off (filed by defendant)
(e) Defence to counter-claim (filed by the claimant if there is a counter claim)
(f) Further and better particulars

RULE NOT TO DEPART FROM PLEADINGS

Evidence of a matter not specifically pleaded goes to no issue. A claimant cannot raise new issues by way of Reply to a counterclaim.

STATEMENT OF CLAIM; O. 18 Lagos Rules 2019 and O. 16 Abuja Rules 2018

This is filed by the claimant alongside other documents during commencement of an action with writ of summons. It usually contains the facts giving rise to the claimant's cause of action. It also clearly states the reliefs or remedies sought by the claimant against the defendant.

(Students are always asked to draft OR redraft the Statement of claim see August 2017 Q 1f, 2018 Q 1a, Jan 2020 Q 4c, Dec 2020 Q 1b)

N.B

What gets you marks here is you showing the relationship of the parties in paras 1 & 2 or as the case may be, stating the breach/wrong, **For Service**

STATEMENT OF DEFENCE; O. 19 Lagos Rules and O. 17 Abuja

This is filed by the defendant in reply to the facts stated in the claimant's statement of claim. It is aimed at denying all or part of the claimant's claim. This is called '**Traverse**'.

TRAVERSE/DENIAL

A traverse is a **categorical or unequivocal denial** of a fact alleged by the opposing party more specifically in relation to statement of defence. **Order 17 Rule 9 Abuja; Order 19 Rule 5 (1) Lagos**

FORM OF DENIAL/TRAVERSE

A denial **must not be evasive**, vague or ambiguous; it must answer **specifically** the point of substance alleged in a statement of claim: e.g. "The defendant denies paragraphs 4, 5, 6 and puts the plaintiff to his strictest proof"; **is not a good denial**. **O. 17 R. 14 Abuja; O. 19 R. 2 Lagos Rules**.

Where the defendant states that he is not in a position **to admit or deny** a particular paragraph in the statement of claim, this would be bad for

equivocal denial. Thus, the allegation may be deemed to have been admitted- ***Lewis Petroleum Ltd v. Akhimien***

NOTE-Reliefs in pleadings need not to be denied. It simply means that the defendant need not deny the reliefs claimed by the claimant in his statement of claim.

TYPES OF TRAVERSE

GENERAL TRAVERSE: General traverse is stated at the preamble of the statement of defence thus: (N/B sometimes in exam you may be required to draft only the general traverse (**bar final August 2018 Q 1c**)

"SAVE AND EXCEPT as hereinafter expressly admitted, the defendant denies each and every allegation of fact contained in the statement of claim as if same were herein set out and traversed seriatim"

NOTE THAT: General traverse is not sufficient denial of essential and material facts–***Lewis Petroleum Ltd. v. Akhimien***

ADMISSIONS Order 20 Abuja Rules 2018; Order 21 Lagos Rules 2019

This is where the defendant in his statement of defence, admits an alleged fact in the statement of claim. Any fact admitted is deemed established.

NB: Any fact which is **not denied is deemed admitted** and **any fact admitted needs no proof: Section 123 Evidence Act.**

EXCEPTION - an admission will not be effective where the claimant is bound to prove his claim-***National Investment Properties v. Thompson*.**

SET-OFF: Order 17 Rule 16 & 33 Abuja; Order 15 Rule 6 Lagos

This is a **money claim** pleaded by the defendant as a defence to **the claimant's claim for money**. Where successful, the court will set-off or

deduct the difference claim from the sum claimed by the claimant. **Thus set-off reduces claimant's claim**

This plea collapses with **the discontinuance or resolution** of the claimant's action. It does not stand on its own**. If the claimant's action fails, the set-off will also fail.**

NB-Where the amount of set-off exceeds the claimant's claim, the defence should come by way of a counter claim.

COUNTER CLAIM: **Ors 17 Rule 16 ABUJA; Order 19 Rule 6 LAGOS**

This is a cross action included in the statement of defence (under a different heading) arising where a defendant has a cause of action against a claimant who has sued him. Therefore, the claimant becomes defendant in this action. It need not be monetary claim.

The dismissal of the claim of the claimant will have no effect on the counterclaim this is because a counter claim is a separate and independent action thus may proceed irrespective of the dismissal, stay or discontinuance of the claimant's action. **Gowon v Ike-Okongwu (exam focus)**

DISTINCTION BETWEEN SET-OFF AND COUNTER CLAIM

a.	A set-off is tied to the claimant's claim.	A counterclaim is an independent action.
b.	A set-off must be a monetary claim.	Counter claims need not to be a monetary claim.
c.	A claimant is not required to traverse a set-off except it raises	A claimant is required to file a defence to a counterclaim except he admits it.

	new issues.	
d.	The defendant can plead the set-off in his statement of defence.	A defendant must file a counterclaim under a different heading

REPLY Order 18 Abuja 2018 Rules; Order 20 Lagos Rules 2019

This is usually filed by the claimant when:

1. New issues are raised in a Statement of Defence or
2. He has to reply on point of Law.

TIME FOR FILING PLEADINGS

1. **STATEMENT OF CLAIM (SOC)**

In Abuja and Lagos: The Statement of Claim shall be filed along with the writ of summons - **Order 3 Rule 15 Abuja, Order 5 Rule 2 Lagos 2019**

2. **STATEMENT OF DEFENCE (SOD):**

In Abuja, the defendant shall file his **Statement of Defence, set off or Counter Claim** if any, **not later than 21 days after service on him of the originating process**; **O. 15 R. 1(2) Abuja Rules 2018.**

In Lagos, the **Statement of Defence (Set-off or Counter Claim where inclusive**) shall be filed together with the memorandum of appearance **within 42 days** from date of service of the claimant's originating process and accompanying documents. **-Order 17 Rule 1(2) Lagos 2019 Rules**

3. **FOR REPLY**;

IN ABUJA & LAGOS, Reply shall be filled by the claimant **within 14 days of the service** on him of the statement of defence or counterclaim: **Order 15 Rule 1(3) Abuja; Order 17 Rule 1(4) Lagos**

EXTENSION OF TIME TO FILE PLEADINGS

The time limited by the Rules for filing/service of pleadings may in **all cases** be extended by the court. It is discretionary for the court to grant extension of time; **Order 49 Rule 4 Abuja**; **Order 48 Rule 4 Lagos.**

Pleadings filed out of time **without the leave of court** is **only voidable and not void**; ***UBA v. Dike Nworah*.** Thus, it may be ignored by the court if the adverse party fails to raise objection timeously.

The application is by **MOTION ON NOTICE** + **AFFIDAVIT** (stating reasons for the delay) + **WRITTEN ADDRESS**

DRAFT PRAYER:

a **AN ORDER** for extension of time granting leave to the claimant (applicant) to file his statement of claimant.

b **AN ORDER** deeming the process as properly filed and served

c Omnibus prayer

NOTE that in **LAGOS** extension of time attracts cost of **N1000 and** in **ABUJA;** an extension of time attracts a cost of **N200** for each day of default–**Order 48 Rule 4 Lagos; Order 49 R. 5 Abuja.**

CLOSE OF PLEADINGS

This refers to the stage when parties are no longer allowed to file further pleadings **except with the leave of court.** At this stage, **parties are said to have joined issues (usually asked as MCQ Question)**

NOTE: parties join issues where one party denies or states fact in contradiction to the facts stated by the other party.

IN ABUJA; pleadings are deemed to be closed

a) At the expiration **of 7 days** after service of the reply or defence to counterclaim

b) where neither a reply nor defence to counterclaim is served, pleadings are closed at the expiration of **14 days after service of the defence; Order 15 Rule 19 (2) Abuja**

IN LAGOS; pleadings are deemed to have closed;

a) In the event of failure to file defence **within 42 days**, at the expiration of **7 days** from the service of the defence or reply.

b) Pleadings close at the expiration of **14 days** from service of the counterclaim.

EXCEPTION-where a defence is filed to the counterclaim, then such time as court may be allow for filing of a defence, see **Order 17 Rule 18 Lagos**.

AMENDMENT OF PLEADINGS-Order 26 Lagos and Order 25 Abuja) Under the Abuja & Lagos Rules: WHO CAN APPLY?

- The court may also amend pleadings *suo motu* **O. 25 R. 8 Abuja; O. 26 R. 8 Lagos;** ***Maerskline v. Addide Investment Ltd***
- A party to the proceeding; **O. 25 R. 1 Abuja; O. 26 R. 1 Lagos Rules.**

TIME FOR AMENDMENT: May 2011

In Lagos, during the Case Management Conference, parties can amend pleadings at any time. **After the CMC**, amendment of pleadings can only be **allowed twice before judgment**; **Order 26 Rule 1 Lagos Rules 2019**

PRESENTLY in **Abuja** amendment can be allowed any time before pre-trial conference and not more than 2 times during trial but before the close of the case; **Order 25 Rules 1 of 2018 Rules**.

N.B A third application will be invalid

Circumstances When the Court May Allow Amendment

1. When the purpose of amendment is to bring the pleadings in line with evidence already adduced before the court**. See *SPDC v. AMBAH; England v. Palmer*.**
2. Where it is necessary to secure substantial justice**; *Oja v. Ogboni; Adekeye v. Akin-Olugbade.***
3. To include an additional claim where there is evidence on record to sustain that claim and the parties have canvassed it in the proceedings**.**
4. To reflect the capacity in which a party sues or is being sued or to correct the name of a party but not to introduce an entity or to substitute a juristic person for a non-juristic person.-***Okechukwu & Sons v. Ndah*.**

Circumstances When an Application For Amendment Will Be Refused

1. The **proposed amendment is immaterial**.
2. The **facts sought to be added were not in existence at the commencement of the suit**.
3. If the amendment is allowed, **it will change the nature of the claim**.

4. When the **amendment will result to a new cause of action**, which was not included at the initial stage: ***Gowon v. Ike Okongwu***
5. When the amendment will amount to hearing further evidence.
6. It will **amount to an abuse of court process**.
7. It is to introduce fraud or defence of justification for the first time; ***Okolo v. CBN; Gowon v. Ike Okongwu.***

POST AMENDMENT REQUIREMENTS

Where amendment of pleadings is ordered, the amended pleading must be filed and served on all the parties in the suit and endorse the date the court gave the order of amendment on the writ.

Time Limit for Filing Amendment of Pleadings:

If the court grants the application for amendment, the amended pleadings must be filled **within 7** days from the time specified in the order in both Lagos and Abuja: (**Order 25 Rule 4 Abuja and Order 26 Rule 4 Lagos)**

POSSIBLE QUESTIONS FROM PLEADINGS

1. One of the most frequent questions asked in the bar exam is DRAFT of Statement of Claim (this is best practised in physical class)
2. Students are also asked to DRFAT the General Traverse in a Statement of Defence (this is also to be practised).
3. **Assuming the claimant omitted some facts in the statement of claim; as counsel to the claimant what step will you take?**

Answer: I will apply for leave of court to amend the statement of claim by motion on notice, supported with affidavit and a written address.

4. **What time does the defendant have to file his defence to the above suit?**

   Answer: it is 42 days in Lagos and 21 days in Abuja

CHAPTER NINE

PRE TRIAL-ISSUES AND PRE TRIAL-PROCEEDINGS

This topic is aimed at examining the various things that may occur before a matter is ripe for trial. That is all the applications and procedures that may take place from the time a case is filed till when the trial is commenced.

Some of such procedures and applications include:

A. Case Management Conference (CMC) (Exam August 2013 Q2, 2014 Q2, May 2015 and August 2016 Q 3, April 2019 Q 1C)

CMC is applicable in Lagos. Before a matter commenced by writ of summons goes to trial, within **14 DAYS** of close of pleadings the claimant is to apply for the issuance of **Notice of Case Management Conference Form 17** while the Judge will issue the parties Form 17 together with **Case Management Information Sheet Form 18**: **Order 27 Lagos Rules 2018**

Importance of a Case Management Conference

(a) It is used for disposal of matters which must or can be dealt with on interlocutory application.

(b) It helps to give directions as to the future course of action as appear best adapted to secure its just, expeditious and economical disposal.

(c) It can be used to promote amicable settlement of the case and adoption of ADR

Duration of CMC

CMC must be **concluded within 3 months** and can be extended by the judge. A case management conference report will be issued upon completion and case file will be forwarded to a judge – **Order 27 Rule 3 & 8(1) of Lagos Rules 2019.**

Issues/Agenda Considered During CMC (April 2019 No 1)

1. Formulation and Settlement of issues
2. Amendment, further and better particulars of pleadings
3. Admission of facts, and other evidence by consent of parties
4. Settlement of documents to be admitted as exhibits at trial
5. Control and scheduling of discovery, inspection and production of documents
6. Making referrals to the Lagos MDCH or other ADR bodies; **O. 27 R. 2 Lagos Rules**

Effect of Failure To Participate In CMC (August 2013 Q2 and 2014 Q2)

- ⇨ If it is the **claimant who failed** to participate, the **court will dismiss his action**. **O. 27 R. 5**
- ⇨ If it is the **defendant**, the court **will enter judgment in favour of the claimant**. **O. 27 R. 5**
- ⇨ In any of the above case, the **party may within 7 days** of the court order bring an application for the court to set aside its decision with an undertaking to participate effectively in the CMC; **O. 27 R 6, Lagos Rules**
- ⇨ The application above is by **MOTION ON NOTICE + AFFIDAVIT + WRITTEN ADDRESS.**

B. Pre-Trial Conference (Applicable in Abuja)

According to **Order 27 R.10 (1) & (3) of the Rule**, the claimant is required to apply for the issuance of a **Pre-trial Conference Notice Form 19 within 7 days** of the close of pleadings. Upon application, the Court shall issue to the parties **Pre-trial Information Sheet Form 20**. If he fails to do so, the defendant may make the application or apply to dismiss the action.

Agendas To Be Considered at the Pre-trial Conference

It is the same with the agendas of Case Management Conference, **O. 27 R 13 Abuja.**

1. Formulation and Settlement of issues
2. Amendment, further and better particulars of pleadings
3. Admission of facts, and other evidence by consent of parties
4. Settlement of documents to be admitted as exhibits trial
5. Hearing and determination of objections on point of law
6. Control and scheduling of discovery, inspection and production of documents

Duration of the Pre-trial Conference

The pre-trial conference must be concluded within **30 days** of its commencement **UNLESS** extended by the Judge; **O. 27 R. 14 Abuja**

Effect of Refusal to Participate in the Conference

The effect is the same as failure to participate in Case Management Conference. If it is the claimant that failed to participate, his claim will be dismissed and if it's the defendant, judgment will be entered against him.

POSER

In an action where the Defendant failed to appear for the pre-trial conference and the Judge entered final judgment for the Claimant, the Defendant' Counsel has applied to set aside the judgment, write a one page ruling on the application. **May 2012 No 1 (4)**

Pre-trial conference is commenced with an application for issuance if a **Pre-trial Conference Notice Form 19** and the applicant is issued a **Pre-trial Information Sheet Form 20**. Where a Defendant is absent at a pre-trial conference, or disobey a pre-trial conference scheduling order, or is substantially unprepared to participate in the conference or fails to participate in good faith, the Court may enter final judgment against him. where that is the case, the Defendant may within 7 days apply to the Court to set aside the judgment. He must give an undertaking to participate effectively at the Pre-trial conference. Order 27 Rule 6 Lagos.

Where a defendant fails to apply within 7 days for the judgment to be set aside, or applies after 7 days, or applies within 7 days but fail to explain the reason for his absence and to give an undertaking to participate effectively at the conference, the application. **The application to set aside the judgment will be refused.**

C. **PRE-TRIAL APPLICATIONS**

Applications That Are Usually Taken Before Trial Include the Following:

1. Application for Striking out pleadings where no reasonable cause of action is disclosed.
2. Interrogatories/Discovery of facts.
3. Inspection/Discovery of Documents.

4. Notices to admit documents and facts.
5. Settlement of issues.

1. APPLICATION FOR STRIKING OUT OF PLEADINGS

Pleadings may be struck out in any of the following circumstance:

a. Where the statement of claim **discloses no reasonable cause of action;**

b. May **prejudice, embarrass or delay the fair trial of the action**

c. Where the pleading of any of the parties **is, frivolous, scandalous or vexatious**

d. Where the pleadings **amounts to an abuse of the process** of the Court***; Amobi v. Adogu*;**

The court may order for amendment or strike it out as may be just **O. 17 R. 15 & 17 Lagos; O. 15 R. 16 Abuja Rules**

In any of the above instance, the aggrieved party may bring an application by a **Motion on Notice** supported with an **Affidavit** and a **Written Address** for the pleading to be struck out.

Upon hearing the application for striking out of pleadings, **the court may**:

a. Order for amendment of the pleadings; or
b. Enter judgment, strike out or dismiss the action depending on the circumstances of the case; ***Tika-Tore Press Ltd. v Uma***

NB - **Focus**

When a party's case is struck out he may bring an application to the court to relist the suit by filing a **Motion of Notice + Affidavit + Written address**

DRAFT PRAYER: AN ORDER relisting the case with suit number…. Struck out by this court on the __ day of _2022

Commented [MOU21]:
In case of FREP
AN ORDER relisting the applicants originating motion dated 16th January 2022 which was struck out by this honorable court on ….. 2020

2. **DISCOVERIES; O. 28 ABUJA; O. 29 LAGOS**

We have two types of discoveries:

a. **Discovery as to facts**-This is used where a party to the suit wants to elicit facts from the adverse party. The mode of doing so is known as 'INTERROGATORIES' or

b. **Discovery as to documents**-This is used when a party to the suit desires the adverse party to produce some documents. The process to be served is 'NOTICE TO PRODUCE'

A. Discovery of Facts (Interrogatories) (August 2018 Q4d)

Interrogatories are a set of questions administered to the other party to answer with the aim of eliciting facts in support of the case of the adverse party; **Order 28 Abuja**; **Order 29 Lagos**

The Procedure For Interrogatories

In **Abuja**, the form for interrogatories is **FORM 21 delivered to the adverse party within 7 days of close of pleadings** and the form for answer to interrogatories is **FORM 22 (affidavit) O. 28 R. 1 Abuja Rules**

in LAGOS, it is **FORM 19 delivered to the adverse party within 7 days of close of pleadings** and the answer is in **FORM 20**. **O. 29 R. 1 Lagos.**

It is done during the CMC or Pre-trial conference; Two copies of the answer must be filed.

Answer To Interrogatories:

- The party interrogated must answer **within 7 days** in **Abuja** and **Lagos** of the service of the interrogatories **except** the court extends the time.

- The answer shall be by **AFFIDAVIT**, re-stating each question and followed by the relevant answer.
- Where the **party does not answer sufficiently** or fail to answer, the PTC/CMC judge may on application order him to answer. **-O. 29 R. 7 Lagos; O. 28 R. 7 Abuja**

Objections To Interrogatories: O. 28 R 4 Abuja; O. 29 R 3 Lagos

The person upon whom interrogatories are administered may object.

In **Abuja**, he can raise the objections in the **Affidavit of Answer** while in **Lagos**; he should raise the objections at the **case management conference**.

The grounds for objection may include:

a. That the **questions are not material to the issue at hand.**
b. It is **brought in bad faith**
c. That the **person has right of privilege, immunity** (information is privileged)
d. The **questions seek to disclose the defendant's evidence**
e. Questions are insulting or degrading, scandalous or vexatious.

B. Discovery of Documents (Notice to Produce)

This is the disclosure of the documents relevant in the suit which are in a party's possession or control for him to inspect and make copies if necessary: **O.28 Rule 8 Abuja; O.29 Rule 6 Lagos**.

Procedure For Discovery of Documents:

- In **Abuja and Lagos, a** party may **within 7 days** of close of pleadings may make **a written request** to the other party to **make discovery on oath** of the documents that or have been in his possession, custody, power or control, relating to the suit-**Order 29 Rule 6(1) Lagos Rules**

- The party **against whom the order is made** would be required to **file an Affidavit in answer within 7 days** (attaching copies of the document which referred to). **O. 28 R 8(1) & (2) Abuja Rules**
- The party **may raise objections** to the production of certain documents

Effect of Failure to Answer Interrogatories or Notice to Produce

Since it forms part of CMC or Pre-trial proceedings, failure to obey will attract any of the following**:**

(i) Committal for disobedience

(ii) Dismissal of Claimant's case

(iii) Order the parties' solicitors to pay cost for disobedience.

3. SETTLEMENT OF ISSUES:

This is done or filed after the close of pleadings. It is simply a process by which the parties bring out their points or areas of disagreement to enable the court to easily ascertain the main issues between the parties.

The aim is to isolate the real issues in dispute for the Court to determine. It may be done by the parties or by the court ***suo motu***

Time For Settlement of Issues:

In Abuja parties are to submit in writing within **7 days** after the close of pleadings the material facts in controversy between them; **O. 27 R. 1 Abuja.** In **Lagos,** settlement of issues is done at the **Case Management Conference.** Parties are to settle the issues as to facts only within **14 days** after the close of pleadings, and if they fail to do so the Case Management Judge may settle the issues; **O. 30 R. 1 Lagos Rules 2019.**

Consequences of Failure of Parties To Settle Issues In Abuja

a. Where **one party** fails to submit issues, the court may set down the matter for trial based on the issues submitted by the other party.

b. Where **both parties** fail to submit issues, the court shall cause a notice to be served on the parties to attend court and settle issues.

POSSIBLE QUESTIONS FROM PRE-TRIAL ISSUES

1. **At the close of pleadings, as counsel to the claimant what step will you take before the matter will proceed to trial?**

   Answer: I will apply for Case Management /Pre-Trial Conference within 14/7 days of close of pleadings.

2. **Assuming both parties fails to participate in the procedure stated by you above, what are the likely consequences?**

   Answer: if it is claimant that fails to participate, the court will dismiss his claim and if it is the defendant, the court will grant the claim of the claimant

CHAPTER TEN
TRIAL PREPARATION AND EVIDENCE

RULES OF EVIDENCE AT CIVIL TRIALS

The important point here is to identify those who are competent to testify or to be called as a witness during trial.

A. Competence and Compellability: Sections 175–196 Evidence Act 2011

The important point here is to identify those who are competent to testify or to be called as a witness during trial.

Generally, all persons shall be competent to give evidence, **UNLESS** the court considers that they are prevented from understanding the questions put to them, or from giving rational answers to those questions, by reason of

1. tender years,
2. extreme old age,
3. disease, whether of body or mind, or any other cause of the same kind**; section 175 E.A. (focus)**

⇨ A person of unsound mind is not incompetent to testify **UNLESS** he is prevented by his mental infirmity from understanding the questions put to him and giving rational answers to them – **S.175 (2) EA.**

⇨ For a **blind person,** he can testify by writing or signs which must be made in open court and such evidence shall be deemed to be oral evidence–**S.176 (1) & (2) EA.**

POSER

What category of persons will you present as witnesses to tender polling units' results? Explain if such persons are competent and compellable. Explain the process of compelling such witnesses. **May 2012 No 5(3)**

The appropriate persons to call as witnesses to tender polling units' results are the polling officers from the electoral body and polling agents of the parties.

Poling officers and party agents are competent witnesses. All persons are competent to give evidence unless such persons are prevented from understanding the nature of questions put to them and from providing rational answers to such questions by reason of tender age, extreme old, disease (whether of the body or of the mind). **Section 175 Evidence Act**.

B. Evidence of a Child: (April 2019 Q. 3a)

For a child **below the age of 14 years** to be competent to give evidence, he must show: **S. 175, S. 208 & 209**

a. That he understands the questions put to him and that he can give rational answers to it;
b. That he understands the duty of speaking the truth.

NOTE: such a child must give **unsworn evidence UNLESS** he is **14 years or above** then he can give sworn evidence.

Proper foundation must be laid to satisfy the court that the child is possessed of sufficient intelligence to justify the reception of his/her evidence in that (s)he (state the two points above)

C. Parties to the Proceedings:

Is a defendant a competent and compellable witness for the Claimant and vice versa?

The **Supreme Court** held that a defendant is both competent and compellable to testify on behalf of a claimant especially if the defendant has

been subpoenaed- ***Obolo v. Rev. Aluko*.** Conversely, a claimant is a competent and compellable witness at the instance of a defendant.

COMPELLABILITY

A witness is only compellable if he is competent but is **unwilling** to come and testify or give evidence. There are two main ways to compel a witness to wit: **(Exam Focus; August 2019 Q. 2h, January 2020 Q 4e)**

1. **Witness summons** (mostly used at the Magistrate court)
2. **Subpoena**: this is the most popularly used at the High court to compel an unwilling witness. It is of three main types. They are: **section 218 E.A**
   a. ***Subpoena ad testificandum***: This is used to compel a witness to come and give oral testimony only; ***Buhari v Obasanjo***

   b. ***Subpoena duces tecum***: This is used to compel a witness to come and tender document only.
   Such a witness will not be cross examined (because the witness did not give any evidence in chief) ***Famakinwa v University of Ibadan, Buhari v Obasanjo (March 2021)***

   c. ***Subpoena ad testificandum et duces tecum***: This is applied for where the witness is expected to testify as well as tender document in the trial.

EXCEPTIONS TO COMPELLEABILITY:

The following persons are competent witnesses but are not compellable either by virtue of office or occupation:

1. **DIPLOMATS**

By **Section 1(1) Diplomatic Immunities and Privileges Act**; foreign envoys, consular officers and members of their families and staff are accorded immunity from suits, and legal processes **unless he opts to waive his immunity**. It does not cover their Nigerian staff; **(Bar final August 2019 Q3) Ishola Noah v British High Commissioner**

Commented [MOU22]:
High Commissioner cannot be compelled to testify as a witness in a case unless he opts to waive his immunity because even though he is a competent witness, he is not compellable.

Section 1(1) of the Diplomatic Immunities and Privileges Act; Zabusky v Israeli Aircraft Industries Ltd

2. **Bankers:**

By virtue of **Section 177 E.A** a banker or an officer of a bank or of other financial institution shall not in any legal **proceedings to which the bank or financial institution is not a party**, be compellable to produce any banker's book or financial book the content of which can be proved in the manner provided in **Section 89 & 90 of Evidence Act** or to appear as a witness to prove the matters recorded in such book–**UNLESS** by order of the court made for special cause.

3. **President, Vice President, Governor and Deputy Governor**

They cannot be compelled to attend and give evidence while they are in office – **S. 308 CFRN**; ***Tinubu v. IMB; Rotimi v. Macgregor***

N.B - May 2012

There is no law against the compellability of an individual Senator of the Federal Republic of Nigeria. The law on legislative immunity applies to the Senate/Legislative House as a body. The immunity conferred by **S. 308 CFRN** applies only to the President or Vice President and Governor or Deputy Governor. A Senator of the Federal Republic of Nigeria is a compellable witness. **Section 175 Evidence Act**

4. **Judges, Magistrates and other Judicial Officers…**

No judicial officer shall be compelled to answer any questions in a trial over which he presides or as to anything which comes to his knowledge by acting in that capacity.

5. **Legal Practitioners:**

No legal practitioner shall at any time be permitted, unless with his client's express consent, to disclose any communication made to him in the course and for the purpose of his employment; **UNLESS it was made in furtherance of any illegal purpose; or commission of crime**; **S. 192(1) EA**

6. **Public Officers**

No Public Officer shall be compelled to disclose communications trade to him in official confidence, when he considered that the public interests would suffer by the disclosure; **Section 191 Evidence Act.**

NUMBER OF WITNESS

The general rule is that a single witness is enough to prove a case **UNLESS** the matter is one that requires corroboration; **S. 200 of the Evidence Act.** The exceptions **where more than a witness or evidence will be required to proof a case in civil trials are as follows:**

1. **Breach of promise to marry** needs independent evidence to corroborate the claimant's action. S. **197 of the Evidence Act:**
2. To prove a custom or tradition.

OPINION EVIDENCE

The general rule is that the opinion of a person is not admissible in Court except as provided in the Evidence Act: **Section 67 EA; EXCEPT the opinion of experts or person that is especially skilled in the area in question. S. 68 EA.**

VISIT TO THE LOCUS IN QUO

In the course of proceedings, there may be need for the court to visit the venue of the cause of action especially on land or boundary issues. In such circumstance, the court may conduct a visit to ***locus in quo***.

There are two procedures to be followed to conduct a visit to locus in quo as follows:

a. **Adjourn the case**, the judge will visit the place and hold the proceedings at the locus. The Parties give evidence and are cross-examined there**. S. 127(2) (a) of the Evidence Act**
b. Adjourn the case, visit the place and the parties come to Court to give evidence. **See S. 127(2) (b) of the Evidence Act**.

HEARSAY EVIDENCE: **the testimony of a witness must come from his or her personal experience and not from a reported speech.** Such reported speech is known as hearsay evidence and **it is not admissible in evidence**. This is because of the unreliability of the original maker who is not called to Court to be cross-examined (**section 38 EA**). **Exceptions: (s. 39 EA):** Hearsay evidence is admissible if the statement was made by a person:

1. Who is dead;

2. Cannot be found,
3. Who had become incapable of giving evidence or
4. Whose attendance cannot be procured without an amount of delay or expense which under the circumstances of the case appears to the Court unreasonable,
5. Some affidavit evidence,
6. Statement of opinion as to a public right

DOCUMENTARY EVIDENCE

Sect 258(1) Evidence Act, defines documentary evidence. The admissibility of a document depends on whether it is the primary evidence i.e. the original copy of the document or secondary evidence (any copy other than the original).

N.B 2009

The criteria for the admissibility of a documentary evidence is

a. whether the document has been pleaded

b. whether it is relevant and

c. **whether it is admissible**, i.e. in the form required by Law for its admissibility. **ACB v Gwagwada;.**

What amounts to sufficient pleading of a document is if reference has been made to it

TENDERING OF DOCUMENTS

- The contents of a document may be proved by either primary evidence (original) or secondary evidence (any other copy other than the original); **Section 85 Evidence Act.** Also, a document may either be private or public document; **section 102 and 103 of E.A**

  NB- FOCUS

  A party can tender his own version of an agreement as primary evidence because primary evidence includes documents executed in several parts, or in counterparts and documents made from one uniform process. **S. 86 Evidence Act.**

- Every document must be tendered through the maker **unless** the maker is dead, is outside Nigeria, or unfit by reason of mental or bodily condition or that it is not reasonably practicable to secure his attendance; **S. 83 E.A**

- In tendering documents generally, proper foundation must be laid by first asking the witness relevant questions in reference to the document in his/her witness statement on oath.

- If it is the original, there will be no problem if tendered through the maker. But where the original is not available then proper foundation must be laid before tendering the secondary evidence.

- **If it is a private document, the proper foundation to lay is to ask questions in relation to the whereabouts of the original. However, if it is a public document and the original is not available then it is only the Certified True Copy (CTC) that will be admissible in secondary evidence.** The proper foundation to lay is to show that it is a

public document. **See s. 89 & 90 E.A**; see **(Bar final January 2020 Q5) i.e** By **S. 90 E.A**, **certified true copies of public documents are admissible as the only form of secondary evidence of public documents**. **Araka v Egbue** Public Documents are mostly proved through secondary evidence (i.e. CTC). **Newspaper, Government Hospital Medical Report**

Commented [MOU23]:
It is trite that when the original of a document is a public document the only secondary evidence admissible in respect of the document is a certified copy

- Where a party seeks to tender a private document, of which the original is with the adverse party, he should first lay proper foundation by first showing that original is with the adverse party. **Sect 86 Evidence Act.**

- Original copy of gazette and CTC of public documents may be tendered from the bar. Other document must be tendered through a witness **EXCEPT** the other party agrees to the tendering of the document from the bar. **Agagu v Dawodu - focus**

Conditions/Requirements for Admissibility of CTC of a Public Document: (August 2019 Q. 5g and January 2020 5c) S. 104 E.A

1. **Payment of the prescribed fees**
2. It must be **duly certified by** the person/**authority in custody of the document/original**.
3. **A certificate must be written at the foot of the document that it is a true copy of such document**
4. The **document must be dated and signed and the name, title and official seal of the issuing officer subscribed therein**;

Commented [MOU24]:
For instance, in electoral matters must be certified by the INEC Official

N.B

Oral evidence made in court to contradict a written document is not admissible. Oral evidence is only admissible when there are conflicting

information on the different documents presented before the court. **Macaulay v NAL Merchant Bank**

Effect of A Wrongful Admission or Exclusion of Evidence:

If a document is wrongly admitted or excluded but it did not affect the outcome of the case**,** then the judgment in the case will be upheld on appeal.

On the other hand, if **the evidence wrongly admitted or excluded affects the result** of the case occasioning the miscarriage of justice on appeal it will be set aside**. S. 251 of the Evidence Act.**

ADMISSIBILITY OF COMPUTER ENERATED EVIDENCE (EXAM August 2014 Q2 vii, 2017 Q 3b(v) and 2018 Q 4f, Jan 2020 Q 2e & Q 4f, Dec 2020 Q 1i)

For computer/electronically generated evidence to be admissible in court the proper foundation as contained under section 84 of the Evidence Act must be laid. This foundation is summarized as follows:

1. That the **computer was regularly used to store and process the type of evidence sought to be tendered;**
2. **That the evidence was supplied to the computer in the ordinary cause of business;**
3. **That the computer is functioning properly and even if it was not functioning properly it did not affect the authenticity and production of the evidence and;**
4. **An oral testimony or certificate by the person who operated the computer verifying the above facts. *Kubor v. Dickson; Sylva v. Dickson***

BURDEN AND STANDARD OF PROOF

Generally, the burden of proof in a suit or proceeding lies on that person who would fall if no evidence were produced on either side, regard being had to any presumption that may arise on the pleadings- ***Onobruchere & Anor v. Esegine & Ors*; S.133(1) EA**

"In the arena of proof in a civil case, the onus of proof does not remain static but shifts from side to side-***Nigerian Maritime Services Ltd v. Alhaji Bello Afolabi***

The general burden of prove lies on the party that asserts any fact or who will fail if no evidence is adduced.

STANDARD OF PROOF

On the standard of proof, in civil proceedings, the burden of proof shall be discharged on the **balance of the probabilities or preponderance of evidence** **section 134 EA.** This is not determined by the number of witnesses called by each party, but the quality of the probative value of the testimony of those witnesses.

EXCEPTIONS:

There may be circumstances where a higher standard of proof would be required in civil cases. Such as:

i. Where there is an **allegation of crime in a civil action**, such crime must be proved beyond reasonable **doubt S. 135 EA.** E.g. within an election petition matter, an allegation of fraud is made, this fraud must be proved beyond reasonable doubt.

ii. **Where there is a claim for special damages** or special interest, such damage or interest must be strictly proved–e.g., by tendering the

receipt of payment for medical treatment due to negligence of the defendant.

SETTING DOWN CASE FOR TRIAL (Hearing)

ABUJA RULES:

The Registrar shall **within 7 days of** the settlement of issues, set a matter down for hearing; **Order 32 Rule 1 Abuja.**

LAGOS RULES:

There is no specific provision for hearing.

This is one of the issues to be dealt **with in the Report** of the CMC Judge at the end of the conference.

APPEARANCE OF PARTIES AT TRIAL:

The parties to a case are to be present on the day of trial. However, if they are absent and represented by legal practitioners it is deemed that they are represented as the services of the Lawyers has been engaged**.**

Effect of Non-Appearance of Parties At Trial:

1. Where **both parties** are absent, the Court may **strike out the matter or adjourn the matter if it sees good reason to do so.**
2. If its the **claimant** that is **absen**t and the defendant is in Court**,** the defendant may apply that the case be dismissed or struck out. If the **defendant has a counter claim**, he may be allowed to lead evidence and proof his counter claim.
3. If the defendant is absent and the claimant is in Court, the claimant may apply that default judgment be entered for him or set down the case for hearing where he needs to prove his claim in order to be given judgment –**O. 32 R. 2,3 & 4 Abuja; O. 33 R. 2,3 & 4 Lagos 2019 Rules**

4. In Lagos, **within 7 days** or **6 days in Abuja** (or such larger period as the judge will allow; such default judgment may be set aside upon good cause being shown– the defendant must file a **Motion on Notice** with an **Affidavit**; **O. 33 R. 5(3) Lagos 2019, O. 32 R. 5(3) Abuja**

ORDER OF PRESENTATION OF A PARTY'S CASE AT TRIAL

- ⇨ In a matter commenced by writ of summons, a party on who burden of proof lies is to open his case first.
- ⇨ Usually, the claimant starts first by calling his witnesses which will involve the usual process of examination of witnesses starting with examination in chief, cross examination and re-examination respectively.
- ⇨ The same stages will be followed if the defendant intends to call witnesses
- ⇨ At the close of evidence, the parties will file and adopt their final written address
- ⇨ The court will then fix a date for delivery of judgment.

Options Open to a Defendant in a Civil Trial after the claimant has closed His Case:

1. He may decide to rest his case on the **claimant**'s evidence
2. He may make a No case submission

No Case Submission In Civil Trial

He may make a submission that the **claimant** or the party beginning has failed to make a case for him to answer**.** Once a no case submission is made; **the** other party will be entitled to address the court in reply.

A no case submission in civil proceedings may be made (May 2012):

1. If no case has been established in law.
2. If the evidence led by the **claimant** is so unsatisfactory or unreliable that the court should hold that the burden on the **claimant** has not been discharged.

EFFECT OF NO CASE SUBMISSION – Ekpanya v Akpan (focus)

1. Where it is **upheld**, the case of the claimant will be discharged.
2. Where the no case fails and the **defendant has been put to his election** when making the no case submission, **he will not be allowed to adduce evidence**, for he will be deemed to have relied on the case of the claimant and judgment will be given in favor of the claimant.
3. But where the no case fails and the **defendant has not been put to his election** when making the no case submission, **he will be allowed to adduce evidence, and subsequently address the Court**.

NOTE:

The party intending to make the no case submission **must elect** whether he will call evidence or not should the ruling on the no case submission be against him.

If he elects **not to call evidence** he will be bound by the outcome of the ruling.

If he elects to call evidence, the court may reject the no case submission.

POSSIBLE EXAM QUESTIONS

1. **Assuming the only witness of the claimant has refused to come to court and testify, as counsel to the claimant what step will you take?**

   Answer: I will apply for *subpoena ad testificandum* to compel the witness to come and testify.

2. **Comment on the effect of the failure of the claimant to call all the witnesses listed in his list of witnesses to his claim.**

   Answer: the position of the law is that the claimant is not bound to call any number of witnesses. So failure to call all the witnesses in his list will not affect his claim.

3. **During the trial, the claimant sought to tender the photocopy of his certificate of occupancy because the original was lost in fire, what possible objection will you raise to the admissibility of the photocopy?**

   Answer: the objection I will raise is that since the C of O is a public document, in the absence of the original, only the Certified True Copy is admissible in evidence after laying proper foundation.

CHAPTER ELEVEN

TRIAL II–EXAMINATION OF WITNESSES

The Order of examination of Witnesses is thus;

i. Witness shall be first examined-in-chief; section 214(1) Evidence Act 2011 (E.A)

ii. If any other party so desires, the witness is cross-examined s.214(2) E.A

iii. If the party calling him so desires, the witness is re-examined S. 214(3) E.A

EXAMINATION-IN-CHIEF:

The examination of a witness by the party who calls him shall be called examination-in-chief- **Section 214(1) Evidence Act.**

The Purpose of Examination-In-Chief is:

1. To place witnesses story before the court so as to obtain testimony in support of the facts for which the party calling that witness is contending.
2. It is designed for the party to put across his case or evidence to the court.
3. To introduce facts relevant to the admissibility of documents in a party's case
4. If it is a party to a case that is being examined, it may be to also pray the Court to grant his prayers or reliefs sought.

Prohibited Questions in Examination-in-Chief are as follows:

1. **Leading questions** that suggest the answers the examiner expects
2. Irrelevant questions to the facts in issue. **S. 221(1) of the Evidence Act**
3. Questions in the character of cross-examination questions

Commented [MOU25]:
Once you spot leading question in Examination in chief, your answer will be

Yes. As a counsel, I will object to Question …. My objection would be on the ground that it is a Leading Question which suggests the intended answer to the witness. Leading questions are prohibited in Examination in Chief, except in introductory matters or matters not in dispute. **Section 221 (1) & (3), Evidence Act.** The question asked here does not fall within the exceptions **(if it does not fall within the exceptions)**

Where counsel objects by saying the question is horrible or says some other odd stuff the answer will be

The ground upon which the defence counsel objected to question … is not known in law and therefore baseless.
Question … could be rephrased as follows:
a.Where were you on Sunday, 4th June, 2017?
b.Tell this honourable court what happened on that day

LEADING QUESTIONS: A **Leading Question** is defined as any question suggesting the answer which the person putting it wishes or expects to receive **S. 221(1) EA:**

Illustration; (In a charge of assault brought against Ibrahim, Counsel trying to establish that the witness Okon saw Ibrahim the accused hit Akpan the victim:

It is not allowed for counsel to ask: **"Okon, did you see Ibrahim hit Akpan"?**

The proper question could be to ask Okon "**What did you see during the incident**?

Exceptions Where Leading Questions Can Be Asked (Dec 2020 Q 6d)

1. Introductory matters like the name, address and occupation of a witness (if it is not in issue);
2. Undisputed facts or facts already proved in a case
3. If permitted by the Court
4. A hostile witness can be asked leading questions; **S. 221. (3)& (4) E. A**

Leading question could be phrased as follows – Resit 2022

a) Tell this honourable court your name, address and occupation.
b) Do you know the defendant in this matter?
c) Where were you on Sunday, 4th June, 2017?
d) Tell this honourable court what happened on that

OPEN QUESTIONS

Open questions guide the witness along a story line but allow him to tell his story. Thus, open questions are used in examination-in-chief in preference.

Example include questions starting with the words "**why", "where", "how", "what", describe, explain.**

Advantages of Open Questions:

1. They subtly direct the witness and towards the desired answers without necessarily leading him.
2. It ensures credibility of a witness testimony since he would be telling his own story.

NOTE: Open questions should be used with care **as t**he witness could steer out of course or say more than he is required to say especially if he is not properly guided by counsel.

Secondly, it is not advisable to use open questions in cross examination because **it will give the witness an opportunity to correct the loopholes in his examination in chief**.

Procedure for Adopting Witness' Statement on Oath

Before a witness starts testifying, he will be sworn on oath or made to affirm **unless** he states that his religion does not permit the taking of an oath, or he is a child below 14 years; **208 Evidence Act 2011**

Due to the frontloading system in civil litigation, Examination-in-chief is limited to adopting the witness written deposition and tendering in evidence all disputed documents or other exhibits referred to in the statement on oath provided, except a witness on subpoena; **Order 35 Rule 1(4) Lagos.**

Ask the witness the following questions: (August 2019 Q 4h, Jan 2020 Q. 5f, Dec 2020 Q 6d)

1. Tell this court your name address and occupation?

2. Did you make any statement on oath in relation to this suit?
3. If you see the statement, will you recognise it?
4. How will you recognise it?
5. Is this your statement on oath?
6. What do you want to do with the statement?

NOTE the Following:

- ⇨ In answer to the last question the witness usually will say: **'I want to adopt the statement as my evidence in chief/testimony in this suit or case**'.

If a witness does not appear and adopt his written statement on oath, it cannot be used in evidence. If the witness disowns his written statement on oath, the evidence is worthless.

CROSS EXAMINATION

The examination of a witness by a party other than the party who calls him shall be called cross-examination **S. 214(2) i.e., examination by the opposite party.**

PLEASE NOTE:

- Cross-examination must relate to relevant facts, but need not be confined to the facts to which the witness testified on in his examination-in-chief **S. 215(2) Evidence Act.**
- Leading questions may be asked in cross-examinations **Section 221(4) E.A**
- It is also preferable to use closed questions (questions requiring just yes or no answer)
- Avoid the use of open questions at all cost

Commented [MOU26]:
in view of **section 221(4) Evidence Act** leading questions are allowed in cross examination. Therefore, any objection by the Defendant/Respondent's counsel to Q ... is unfounded, baseless and will be overruled by the court.

- Also do not ask questions which you do not know the answer. This is because the answer may be damaging to your case.

Cross-Examination Techniques - MCQ

(1) Confrontation Technique

(2) Probing Technique

(3) Insinuation Technique

The Purpose of Cross Examination:

1) To extract from the witness evidence, which is favourable to the party cross-examining or which would destroy the case for the party producing the evidence.
2) In case of an **Expert**, to discredit the qualification of the expert, **thus render his opinion unreliable.**
3) To **test his accuracy, veracity or credibility**
4) To discover who he is and what is his position in life;
5) To shake his credit, by injuring his character; **section 223 EA**
6) To discredit the witnesses and destroy case of opposing party: ***Olomoshola v. Oloriawo***

Commented [MOU27]:
One of the aims of cross examination is to contradict the witness and make his testimony unbelievable. However, in doing so counsel must ensure that he is focused on relevant facts and should not insist on contradicting irrelevant facts.

The Statement "The Sky Is the Limit" In Cross Examination

This is a proverb that counsel use arbitrarily when throwing questions to witnesses in cross-examination. However, this is not correct in its entirety. It is only correct to the extent that in cross-examination, questions need not be confined to facts or issues arising from examination-in-chief. (Thus, questions may be asked of things unrelated to facts raised in examination-in-chief once it is relevant).

The sky is the limit approach was discredited in ***Olomosola v. Olariawo*** where the court stated that the sky has nothing to do with cross examination.

Questions Not Allowed In Cross Examination-Ss. 227, 228 Evidence Act (Dec 2020 Q 5d).

a) **Indecent, frivolous or scandalous questions**
b) Questions **intended to insult or annoy the witness**
c) Question that are needlessly offensive in form even though proper
d) **Irrelevant questions**

NOTE that cross examination is not compulsory. Thus a witness need not be cross-examined when his testimony will not affect the other party's case.

RE – EXAMINATION

This is conducted by the party who called the witness after the cross-examination **S. 214(3). Where there is no cross-examination, there CANNOT be a re-examination**

NOTE:

Re-examination **is not absolutely necessary**, **EXCEPT** where it is required in order to **CLEAR ANY AMBIGUITIES** arising from the witness's responses to cross-examination questions. **S. 215(3) EA**

New issues are not allowed to be raised during re-examination.

1 If a new matter is, **by permission of the** court, introduced in re-examination, the adverse party may further cross-examines upon that matter. **-S. 215(3)**

2 Leading questions are also not allowed during re-examination

Commented [MOU28]:
Your answer when the court upholds an objection when counsel ask scandalous questions
Yes the court was right in upholding the objection to Q..... This is because the court is enjoined to forbid any question that is indecent or scandalous or questions that are intended to annoy or insult the witness or are needlessly offensive even if such question have some bearing to the questions before it; **see section 227 and 228 Evidence Act.**

NB: The court should not refuse a party the right to re-examine his witness after cross-examination.

REFRESHING OF MEMORY – March 2021

The general rule is that all testimonies of witnesses must be given from personal memory.

PROCEDURE: a witness may refresh his memory **only with leave of court**

EXCEPTION: is the use of a document earlier made to refresh memory for the purpose of giving testimony- **Section 239 Evidence Act.**

Commented [MOU29]: The witness counsel will make oral application for his client to refresh his memory.

Conditions for Refreshing of Memory

1. The document was made when the transaction was fresh in the maker's memory
2. The writing in question must have been made either at the transaction or so soon thereafter.
3. When he read it he knew it to be correct -**S. 239(2) E.A**
4. Any such writing a witness used to refresh his memory must be produced and shown to **the adverse party if he requires it,**
5. The adverse party may if he pleases, cross-examine the witness upon the writing. -**S. 241 EA**

HOSTILE WITNESS:

The general rule is that a party producing a witness is not allowed to impeach his witness' credit during examination-in-chief. An **EXCEPTION** to this rule is when the witness is adverse to the party calling him and he does not tell the truth**. S. 230 EA.** Such a witness is called a **hostile witness**

When the Counsel to a party calling a witness discovers that the witness is hostile:

a. He should seek the leave of the Court to declare the witness hostile or
b. Ask that the evidence he has given be expunged from the record.
c. To contradict him by other evidence **or by leave of court**, prove that he has made at other times a statement inconsistent with this testimony.
d. Where the court is of the opinion that a witness is hostile to the party who called him, the court will permit the party **S. 230, S 231 EA**

Commented [MOU30]:
It is only the court upon oral application by the witness counsel that can declare the witness as hostile. S.230 E/A

The Consequences of the Court Declaring A Witness As Hostile Are:

1. The **Court will attach less weight to his testimony or disregard the testimony he has given**
2. The **witness can be cross-examined by the party calling him**
3. He can be contradicted using his previous statements made which is inconsistent with his present testimony
4. He **can be asked leading questions**

EXAMINATION OF WITNESS BY COURT

The court may ask witnesses questions in order to clear up ambiguities or to clarify points which have been left obscure in the giving of evidence by any witness.

Note:

The Judge shall not compel any witness to answer any question or to produce any document which such witness would be entitled to refuse to answer or produce under the Evidence Act, if the question/document was called for by the adverse party: **S. 246(3) EA; *Ogbodu v. Odogha***

MODES OF TENDERING EVIDENCE DURING TRIAL (focus)

Tendering of documents in examination of witnesses can be done through any of the following ways:

a. Undisputed documents can be tendered from the Bar **after an agreement** by the Counsel in the matter
b. Disputed documents are to be tendered through the witnesses in examination-in chief for the party calling him or in cross-examination by the adverse party; ***Ogbunyinya v. Okudo***

Procedure for Tendering Document through a Witness

After the witness is sworn on oath and has adopted his/her witness statement on oath; proceed to ask the following questions; **(For Original Document)**

1. In your written statement on Oath, you mentioned …..document, do you have it in Court?
2. If you see the document, can you recognise/identify it?
3. How will you identify the document?

(Counsel will seek the leave of court to show the document to the witness for identification)

4. Is this the document?

Counsel will seek the leave of court to tender the document in evidence and for the court to mark it as Exhibit.

If it is photocopy (for private document) or CTC (for Public document)

1. In your written statement on Oath, (you mention…..document), do you have the Original in Court?
2. Where is the Original?
3. Which Copy do you have?

4. If you see the Photocopy/CTC of the document, can you recognise/identify it?
5. How will you identify the document?

For emphasis**: May 2011**

CTC of public documents and original copies of gazettes may be tendered from the bar.

Other documents must be tendered through witnesses **except** where the adverse party agrees to the tendering of the document from the Bar.

OATH AND AFFIRMATION

Generally, before a witness testifies, he must either be sworn on Oath or affirmation; **S. 205 EA,** by the registrar

However, as an EXCEPTION a witness may not testify on oath where:

a. The witness is not a believer in any of the known religions or is a person whose religion forbids oath taking **S. 208 EA or**
b. The witness is a child less than 14 years: **S. 209 (1) EA**;

NOTE:

Witness can either be affirmed or sworn **BUT NOT BOTH**

Before a witness starts testifying, the **Registrar** will order all other witnesses in the case to go out of Court and of hearing; **S. 212 Evidence Act. (Focus)**

Thereafter the witness is cautioned by the Court or the Clerk, (if the Court orders the Clerk to do) before giving his evidence. **S.206 E/A.**

Procedure to Caution: S.206 E/A.

You (full name) …are hereby cautioned that if you tell a lie in your testimony in this proceeding or willfully mislead this court, you are liable to be prosecuted and if found guilty you will be seriously dealt with according to Law"

It's the court that can discharge the witness and not his counsel

N.B

the order to go out of hearing does not apply to the parties themselves or their respective counsel even if they will be called as witnesses: **s. 212 Evidence Act**

N.B – March 2021

The position of the law is that when a witness is testifying, all other witnesses are ordered out of court and out of hearing; Sect 212 Evidence Act.

This is to ensure that they do not frame their testimony to reflect what the witness was saying.

However**, where a witness refuses to go out of court when another witness is testifying, the witness will still be competent to testify and will be allowed to do so but the court may attach little or no weight to his or testimony.**

POSSIBLE EXAM QUESTIONS

1. **Assuming you are counsel to the claimant set out in numbered paragraph the questions you will put to him in his examination in chief.**

   Answer: check your note under examination in chief and learn the questions

2. **State the requirements for admissibility of a Certified True copy of a public document.**

   Answer: check your note under tendering of documents.

3. **Comment on the propriety or otherwise of the aphorism 'in cross examination the sky is the limit'.**

   Answer: In cross examination only relevant questions are allowed whether or not such questions were raised in examination in chief. Therefore it is not proper to state that in cross examination the sky is the limit as certain questions are not allowed.

4. **Assuming you want to tender a document through your witness, in numbered paragraphs highlight the questions you will put to the witness.**

   Answer: check your note under tendering of document to learn the questions

<u>CHECK December 2020 Re-Sit Exam Question 6 for Questions on TRIAL</u>

CHAPTER TWELVE

CLOSING ADDRESS AND JUDGMENT

Closing address is also referred to as Final Address **Order 33 Abuja, Order 35 Lagos.** A denial of the right of address to a party where the right exists is an infringement on the constitutional rights of the parties.

May be waived by party but failure of the court not to allow it is a denial of fair hearing. **Obodo v Olomu, Mpama v FBN Plc**

Each party shall File two copies of his written address and serve a copy on each party**. Ors 35 r 5 lag and Ors 33 r 5 Abj**

Ethical issues to be considered in closing address**. Rule 32 & 15(3)(e)**

Commented [MOU31]:
The position of the law is that judgment shall be delivered after final address by the parties. Therefore, the right to address the court cannot be denied or foreclosed by the court unless the parties *suo motu* elects not to do so; section 294(1) CFRN; *Elemo v Ariori.*

Consequently, it is not proper and therefore wrong where the court refuse to allow the parties to address it before judgment

ROLE AND FUNCTION OF ADDRESSES

1. It presents an opportunity to the parties to logically present their arguments.
2. To urge the court to decide in favour of a party addressing the court
3. It provides an opportunity for parties to present their case theory by blending it with the evidence given at trial.
4. It might assist parties to sway the mind of the court.
5. Addresses assist the court in the just and proper determination of the case ***Obodo v. Olomo***; **Order 32 Abuja; Order 33 Lagos**

The Order of Presentation and the Time Limit for Filing Final Addresses (August 2018 Q 1e, April 2019 Q 5v March 2021)

A. If Both Parties led Evidence: Ors 32 R 14 Abj, Ors 33 R 13 Lagos

1. The defendant is to file his Final written Address first **WITHIN 21 DAYS** of the close of evidence

2. The **claimant** is to file his final address **WITHIN 21 DAYS** after the close of evidence **Order 33 Rule 13, Lagos Rules**
3. If the **claimant** raised new issues in his address on points of law, the Defendant is to file a **Reply Address within 7 days** of the receipt of the **claimant**'s final address.

B. If the Defendant did not lead any Evidence i.e only claimant lead :

Commented [MOU32]: THE DEFENDANT WILL GO FIRST WHERE HE TENDERS A DOCUMENT THROUGH A WITNESS

1. The **claimant** will **first file his Final Address within 21 days** of the close of the Defendant's case.(evidence)
2. The defendant is to **respond within 21 days**
3. If **new issues are raised** by the defendant's Address, the **claimant** is to file a Reply Address **within 7 days** of the receipt of the defendant's address; (**Order 32 Rule 14-17 Abuja and Ors 33 R. 13-16 Lagos**)

NOTE:

- In **Abuja and Lagos**, the parties are given 20 minutes each to adopt/ adumbrate their written address
- Judgment cannot be delivered before final address but the court may decide to write its judgment before the final address but must wait thereafter before delivering it.
- Under the Rule, it is the **party that filed his written address first that will file the Reply address**. The Reply address shall be filed if new issues were raised in the defendant's address and the Reply shall be on points of law only **within 7 days** of the defendant's address; **Order 33 Rule 17 Lagos Rules 2019**

COTENT OF FINAL WRITTEN ADDRESS – March 2021

1. Heading of the court

2. Suit number

3. Parties

4. Title

5. Introduction

6. Brief facts of the case

7. Issues for determination

8. Legal arguments in support of issues for determination

9. Conclusion

10. List of authorities

11. Date

12. Franking & address of service

The Procedure to Adopt Final Written Address: March 2021

a) Announce appearance; 'may it please the court; I am....appearing for the claimant'

b) My Lord, in line with the rules of this court, we have filed our final written address dated……...and filed the same day.

c) My Lord in the said written address, we have formulated 10 issues for determination and have supplied our legal arguments therein.

d) We hereby adopt the written address as our argument in support of our claim and we pray this Honorable court to grant all the reliefs sought in this suit.

e) We are most grateful My Lord.

JUDGMENT

A judgment is defined as a reasoned decision of the court in relation to the matter or issues before it. It is a binding decision which to stipulate the rights of the parties.

CHARACTERISTICS OF A VALID JUDGMENT:

1. **IT MUST BE IN WRITING**. Section **294(1) CFRN**, **Okoruwa v State**;

   NOTE that where the judge delivers an oral judgment and later reduces same in writing, the judgment is still invalid**; (April 2019 Bar final Q 1h, Dec 2020 Q 4g, March 2021)**

2. It is to be delivered in an open Court unless the trial was conducted in chambers or it is on the ground of public morality, public security or protection of a minor; **section 36(3) CFRN.**

3. Proper evaluation of evidence properly raised and heard- ***Mogaji v. Odofin, Ogunleye v Oyewole***

4. It is to be delivered within **within 90 days after the Final addresses,** see S. **294(1) CFRN (March 2021)**

   NOTE: delivery after the 90 days will not render the judgement a nullity, **UNLESS** it can be shown that it occasioned a miscarriage of justice established on appeal **Owoyemi v Adekoya (March 2021)**

5. Can only be for what is claimed or less but not for more **Nig Airforce v Shekete, Olurotimi v Ige**
6. It must be written, **dated and signed/sealed by the judge who heard the matter.**
7. Reasons must be given for the judgment. **UNLESS** it is a court of final appellate jurisdiction i.e. the Supreme Court see ***ANPP v. Goni; UNILAG v. Aigoro.***
8. A judgment must show a clear resolution of all the issues that arise for decision in the case
9. The judgment should show clearly that the court considered the evidence at the trial.
10. Witnesses must be expressly or impliedly believed, or disbelieved. ***Mogaji v. Odofin; Adeyeye v Ajiboye***

NOTE: Arrest of judgement is generally unknown to our law, **NEWSWATCH V Attah**

FORM AND TIME LIMIT OF DELIVERY OF JUDGMENT

Judgment must **be delivered** in writing **not later than 90 days** after conclusion of evidence and final addresses; **294(1) CFRN**; ***Ariori v Elemo, Haruna v University of Agriculture, Makurdi,***

All parties must be furnished with duly authenticated copies within such period. **S. 294(2) CFRN**

RECALL OF PARTIES FOR FURTHER ADDRESS

The court may however re-open a case for further argument after it had reserved judgment provided it acts **within the 90** days limit. If that is done, time will then begin to run from the end of the further address to the court.

Once the 90 days period has elapsed, the court cannot recall the parties for further address; ***Odi v. Osafile***.

EFFECT OF NON-COMPLIANCE WITH S. 294(1) of the CFRN

The decision of the court **shall not be set aside or treated as a nullity** solely on the ground that it was delivered outside the 90 days period unless the delay occasioned a miscarriage of justice; section **294(5) CFRN.**

DAYS FOR DELIVERY OF JUDGMENT AND ITS EFFECT

A judgment may be delivered on juridical days, **however a judgment cannot be vitiated by the mere fact that it was delivered on a public holiday; provided that the parties were not compelled to attend**; ***Anie v Uzorka***

In the case of ***Veritas v. Citi Trust (Nig.) Ltd,*** a judgment of a court delivered on Christmas day was held to be valid.

PLACE OF DELIVERY OF JUDGMENT

Judgment shall be delivered in **open court unless hearing/trial** was conducted in chambers, and then judgment may be delivered in chambers ***Nab Ltd v. Bari. Engineering Nig. Ltd*.**

READING AND DELIVERY OF JUDGMENT

HIGH COURT

A judgment **may be written by one judge and delivered by another judge PROVIDED** that the judge who wrote the judgment

a. signed and dated it and

b. is the same person who heard the case -***AGF v. ANPP*.**

COURT OF APPEAL AND SUPREME COURT

The Justices of the court of Appeal or Supreme Court who sit to hear matters **MUST** be at the end of the case:

- ⇨ Expressly deliver their opinion in writing or
- ⇨ May state in writing that they adopt the opinion of any other justice.
- ⇨ However, the justices who heard the appeal need not be present when is delivered. -**Section 11 Court of Appeal Act; s.294(2) CFRN**

Where a justice of the COA or SC after sitting over a case and has written his opinion, **dies**, **retires** or is **elevated** to another court **before** he delivers the judgment; his opinion must be **pronounced** by another **justice**. His judgment shall not be **read** out in court: ***AG Imo State v. A.G Rivers State.***

DELIVERY OF JUDGMENT AND GIVING REASONS LATER

A valid judgment must state the reasons for the decisions of the court; ***NIIT Zaria v Dange.*** **However,** all final appellate courts (e.g. Supreme Court) may adopt the practice of delivering its judgment and reserving the reasons to a later date; ***Aigoro v UNILAG***, ***Amaechi v INEC***. This is so because there is no further appeal against such judgment**. (April 2019 Resit Q 1i**)

REVIEW/AMENDMENT OF JUDGMENT

A court's judgment is final once it has been pronounced /delivered. It can only be set-aside on appeal. Therefore, **the court has no power to review its own decision**. This is because once the court enters its judgment, it become ***functus officio***

Exceptions to This Rule: A court may vary its judgment in this instance:

1. Clerical mistakes or accidental errors or omissions in judgments may at any time be corrected by the judge in chambers on a motion or summons known as the '**Slip Rul**e'. **Ogunsola v Nicon**
2. Where the **decision was given without jurisdiction**/such a judgment is a nullity and the court has powers to set it aside.
3. Where the judgment was **obtained as a result of fraud** perpetrated by one of the parties–***Alaka v. Adekunle***
4. Where the **judgment is a complete nullity *ab initio.***
5. Where the **judgment was entered on the mistaken belief that the parties consented to it when in fact they did not** –***Agobade v. Okonuga***

TYPES OF JUDGMENTS - MCQS

1. INTERLOCUTORY JUDGMENT

An interlocutory judgment disposes of only one issue raised during the pendency of the suit. It does not dispose of the rights of the parties finally e.g. injunctions

2. FINAL JUDGMENT

A final judgment is one that disposes of the rights and liabilities of the parties finally in a suit. It comes at the end of the matter. **Akinsanya v UBA** At the end of the trial, the judge may either give judgment for the plaintiff or dismiss his case thereby giving judgment for the defendant.

3. CONSENT JUDGMENT

A consent judgment is judgment entered pursuant to an agreement between the parties.

It is **binding on the parties who consented to it.** **Sogunle v Asabiyi** but a third party can apply to set it aside for **fraud; mutual mistake**

A consent judgment is a final judgment and **leave of Court is required to appeal against it** **S. 241(2) (c) CFRN**; ***Afegbai v. AG Edo State***.

4. DECLARATORY JUDGMENT

A declaratory judgment is a judgment of a court which determines the rights of parties without ordering anything to be done or awarding damages. Not an executory judgment – e.g. might be declaring the rights of the parties.

5. DEFAULT JUDGMENT

This is a judgment given due to default or failure of a party in the proceedings to take any steps, which he ought to have taken e.g. default to enter appearance e.g. Default to file pleadings. A default judgment is not a judgment on the merit.

6. NON-SUIT

This is an order, which terminates the claimants case without a decision on the merits. Where this order is made, it means that the claimants claim is neither allowed nor dismissed. Circumstances of the case are such that the court does not think it should enter judgment against the plaintiff or for the defendant. ***Ibiyemi v. FBN PLC*; Order 34 Rule 1 Lagos**

NOTE:

must be provided in the rules of court

Commented [MOU33]: MCQ
THE CLAIMANT HAS NOT ENTIRELY FAILED TO PROVE HIS CASE, HE HAS NOT GIVEN SATISFACTORILY EVIDENCE TO ENTITLE HIM TO JUDGEMENT AND THE DEFENDANT IS NOT IN ANY EVENT ENTITLTED TO THE COURTS JUDGEMENT

There must be address before non-suit **Okoebor v Police**

7. DISMISSAL

This is available against the claimant who has failed to prove his case by evidence. It means that the action has been heard on its merits. It also makes the court to become functus officio. An order of dismissal renders the decision appealable and order striking out is granted where the action or application has not been heard on merit. The action or application can be relisted again.

8. STRIKING OUT

Used where the claimant's matter has been struck out for diverse grounds such as lack of diligent prosecution, lack of jurisdiction. However, the matter can be relisted

POSSIBLE QUESTIONS ON THIS TOPIC

13. Assuming both parties led evidence during the trial; state the order of filing of the written address.

Answer: if both parties led evidence, the defendant will file his written address first within 21 days followed by the claimant within 21 days and the defendant will file a reply with 7 days.

14. After the final address by the parties, the trial judge delivered its judgment 4 months after; comment on the validity of such judgment.

Answer: judgment must be delivered within 90 days after final address, however, any judgment delivered after the 90 days will still be valid unless it occasioned miscarriage of justice.

CHAPTER THIRTEEN

ENFORCEMENT OF JUDGMENT

Enforcement of judgment refers to all the available method of enforcing judgment.

DESIGNATION OF PARTIES-The designation for parties under enforcement of judgment is **Judgment Creditor** (the successful party) or **Judgment Debtor** (the unsuccessful party).

WHEN IS A JUDGMENT EFFECTIVE?

A judgment shall take effect from the date it is pronounced/read unless the court orders otherwise - **Order 39 Rule 2 Abuja; Order 39 Rule 2 Lagos**

A person directed to pay money, or do any act by an order of court is bound to obey it without demand and if no time is expressed in the order he is bound to do so immediately.

INSTALLMENTAL PAYMENT OF JUDGMENT DEBT

When any judgment or order directs the payment of money, the court may, for any sufficient reason, order that the amount shall be paid by instalments, with or without interest. The order may be made at the time of giving judgment, or at any time afterwards and may be rescinded upon sufficient cause at any time. See Order 39 of both Abuja and Lagos rules; **ACB LTD v. Dominico Builders Co. Ltd**

The Judgement Debtor may after the judgement apply for instalment payment. Where the Judgement Debtor makes such an application, it is by **Motion on Notice**, supported by an **AFFIDAVIT** and a **Written Address.**

An Order of Instalment Payment operates as a stay of execution. **S. 21 SCPA**, ACB v. Dominico Builders.

TIME FRAME FOR LEVYING EXECUTION OF JUDGMENT

Order 4 Rule 2 Judgment Enforcement Rules: (MCQ Questions)

It depends on the type of judgment as follows:

1. Money judgments and others cannot be commenced until after the **expiration of 3 days from** the day on which judgment is given **EXCEPT** with the express leave of court
2. **Judgment of possession** can be commenced **14 days** after delivery of the judgment
3. In any other case not specified by Law, with the leave of Court.

LIFE SPAN OF PROCESS OF EXECUTION

- ⇨ The life span of a process of execution when issued shall be **one year** from the date of issue if unexecuted.
- ⇨ The process may be issued within **2 years** after the judgment is delivered and a party can apply to the court for writ of execution without **leave.**
- ⇨ After expiration of the **2 years**, **leave** of **court** is required to issue the writ at that point.
- ⇨ If it is a process against corporation/institution then the process may be issued at any time within **6 years** with **no requirement for leave**.

DAY AND TIME OF EXECUTION OF JUDGMENT

A judgment can be executed on any day except on Sunday, or Public Holiday,

It must not be done **before 6am and not after 6pm** **UNLESS** the judge or magistrate directs otherwise by order endorsed on the process executed.

MODES OF ENFORCING JUDGMENTS (Very Important)

There are several methods of enforcing different types of judgments. Method chosen will depend on the type of judgment

A. MONEY JUDGMENTS (Involving order of court to pay money)

Money judgement is to be executed immediately unless the court orders otherwise or orders for instalment payment. **S. 20 SCPA ,Olatunji v Owena**

An order of instalmental payment operates as a stay of execution **S 21 SCPA, ACB V DOMINCO BUILDERS**

When a judgment creditor desires to a monetary judgment against the Judgment debtor, he may adopt any of the following means:

1. Writ of sequestration
2. Writ of fifa (fieri facias)
3. Garnishee proceedings
4. Judgment summons

Writ of fi.fa (writ of attachment and sale)

The writ of fifa is the most common writ of execution, which normally commands the Sheriff to seize and sell **MOVEABLE PROPERTIES** belonging to the judgment debtor.

Commented [MOU34]:
EXECUTION OF MONEY JUDGEMENT STEPS (**focus**)

1.Proceed to attach and levy execution by filling a writ of FI Fa against the movable godos of the Judgement debtor

2.Where the judgement debtor has money in the bank, file **Motion Ex parte + Affidavit + Written Address** by way of garnishee proceedings to bind and attach the funds

3.If insufficient funds are realized then levying of execution against the immovable property.

N.B
If judgement is given in favour of the claimant, and he intends to enforce same on the movable property of the defendant, he should apply for Writ of Fieri Facias

Commented [MOU35]: Exam
Once you identify that it's a money judgemnt and fifa is the best mode you say :

The judgement to be enforced is a money judgement the most appropriate mode against JD'S PROPERTY is by way of writ of fieri facias (1 mark)
This writ is a court order to the sheriff to seize and sell JD movable properties for the purpose of satisfying the judgement debt and cost. Section 25(a) SCPA

Writ of *fieri facias (fi.fa)* otherwise called writ of attachment is for recovering of money judgments. It is a writ of attachment and sale.

JURISDICTION

Always make the application to the High court even if the judgement was given by a magistrate court

Procedure (Moveable Property) (Bar Final Jan. 2020 Q 1f)

- For execution against movable property, the judgment creditor shall file an application by **way of a praecipe** in **FORM 3, 1st Schedule SCPA** to the Registrar of Court

  A writ of fifa is executed by seizing any goods or chattels of the judgment debtor worth **N10.00** and above (movable properties) **EXCEPT** his wearing apparels, beddings and tools and implements of his trade: **S. 25 SCPA**
- If sufficient movable property of the judgment debtor can be found within the jurisdiction and costs of execution, the immovable properties cannot be attached.
- Where the moveable properties were not enough or cannot be found, the Judgment Creditor will apply for **Writ of Execution**. This is applied for by the judgment creditor when the movable property seized were not enough to satisfy the judgment debt- **S. 44 SCPA.**
- The purpose is to attach the immovable property i.e. land, machines etc. to satisfy the debt which will be sold **after 15 days of** the attachment.
- The Application shall be by **MOTION ON NOTICE + AFFIDAVIT** and **WRITTEN ADDRESS**. All these is done by filing **F0RM 38**

Affidavit for Application for Attachment of Immoveable Property must Contain must contain: (**Exam focus**)

a. The **steps already taken to enforce the judgement and effect**
b. The **effect of the result of the steps taken**
c. The **amount of the judgement outstanding**
d. That despite reasonable diligence made no movable property of the Judgement Debtor can be found **or where it can be found it is insufficient to satisfy the judgement debt and cost of execution**

TIME FOR SALE OF DEBTOR'S GOODS - focus

Movable Property (MCQ questions)

The goods or chattels when attached are **sold 5 days** after they are seized **UNLESS** the judgment debtor consents to an earlier sale or the goods are of a perishable nature; **section 29 SCPA**

Immovable Property

If the property is immovable, the sale has to be done **at least 15 days** after court order attaching same. **Except with** Consent of the judgment debtor: **O. 7 R. 6(1) Judgement Enforcement Rules**

APPLICATION OF PROCEEDS OF SALE - S. 5 SCPA

The money realised from the sale of the goods or immovable property should be applied in the following manner.

1. Payment of the Sheriff for any money due.
2. Payment of the auctioneer if any
3. Payment of Judgement Creditor

4. Payment of Judgement Debtor

THE TITLE OF THE PURCHASER OF IMMOVABLE PROPERTY PURSUANT TO WRIT OF EXECUTION

1. purchaser acquires good title which **becomes absolute after 21 days if no one applies to set it aside** – **S. 16 SCPA**
2. purchaser is given a certificate of title – **S. 50 SCPA**

Garnishee Proceedings (Bar Exam April 2018 Q 1e, August 2018 Q 6d) used by a judgment creditor to attach to debts owed a judgment debtor by a third party. It usually involves Banks; **Section 83 SCPA; Order 46 Abuja.** Here the court orders a third party called the **Garnishee to** pay to the court a debt due by him to the judgment debtor; be used to pay the judgment creditor.

NOTE: in the exam, once the scenario talks about enforcement of judgment with money in a bank; just choose garnishee proceedings.

Parties to Garnishee Proceedings

In garnishee proceedings, there are usually 3 parties namely;

1. The judgment creditor known as **GARNISHOR**
2. The judgment Debtor
3. The third party owing the debt to **judgment** debtor => **GARNISHEE**

Commented [MOU36]: Zenith Bank Plc v Omenaka the Court held that the judgment debtor is a mere passive or nominal party in a garnishee proceedings overruling. can be seen and not heard

DEBT WHICH MAY BE SUBJECT TO GARNISHEE

1. Accounts with banks or deposit taking institutions
2. Rent: when the rent has become due

3. Annuity payable trustees: Judgement Debtor monies in the hands of trustees and actually due are attachable
4. Monies with representatives of deceased third party: where the monies of the deceased third party Judgement Debtor is in the hands of his personal representatives
5. Foreign currency

NOTE-

An application for garnishee proceedings can be made even if there is a stay of execution of judgment; see ***Purification Technique, v. A.G Lagos State; NITEL v. ICC***

The Conditions for Attaching Debt for Garnishee Proceedings:

a. The **debt to be attachable must be due and payable to judgment debtor;**
b. It must be a present debt and **not a future debt**. Salaries and rents are attachable provided they are due.
c. The garnishee proceedings can only be commenced **if the garnishee is indebted to the judgment debtor in the state in which the proceedings are brought**. If the garnishee is outside the state, garnishee proceedings cannot be brought

The Procedure Garnishee Proceedings:

1. The Garnishor (the judgment creditor) will file a **Motion EX PARTE** supported by an **Affidavit** and a **Written Address** praying the court for an order **NISI**.

   The affidavit shall state:

Commented [MOU37]: If commenced in different court attach CTC of Judgement

a. Names, addresses and occupation of the judgment creditor, the judgment debtor and the garnishee
b. The fact that judgment has been given and what date
c. The fact that **judgment has been recovered and is still unsatisfied**,
d. The amount of the judgment that remains unsatisfied
e. The fact that a third party (the garnishee) who is within the State is indebted to the JD

2. After hearing the Motion, the court will make the order **Nisi** (**SCPA Form 26**) and it is served on the Garnishee and Judgment Debtor. – **August 2011**

3. The garnishee is to come to Court to refute or to show cause why the order Nisi **should not be made absolute within 8 days** by filing an **Affidavit to Show Cause**.

Commented [MOU38]: i.e why the money in his/her custody should not be attached in satisfaction of the judgement)

4. Where good cause is shown, the garnishee is discharged. Otherwise, the order is made absolute and accordingly becomes enforceable – **CBN v Interstella Communication**

5. If garnishee pays within 8 days of the order, the matter is terminated otherwise; the Registrar will fix a date for hearing not less than **14 days after service of the order Nisi.**

6. The Garnishee may file a counter affidavit showing reasons why the money should not be used to satisfy the judgment debt.

7. After hearing the proceedings the court may cancel the order nisi or may make the garnishee order absolute.

Set-Off or Counter Claim by the Garnishee

The garnishee is entitled to set-off any debt due him from the Judgement Debtor at the date where the order nisi was served on him and garnishee is equally entitled to Judgement Debtor. The garnishee cannot set off debts accruing after service of the order nisi**. HALE v. Victoria Plumbing Co.**

THE RIGHTS OF A GARNISHEE WHO DENIES LIABILITY

Where the garnishee order absolute is made in ignorance or disregard of evidence of an affidavit denying the liability of the garnishee to the garnishee can take steps to set it aside. **Nigeria Hotels Ltd v Nzekwe**

NOTE THE FOLLOWING – May 2012, August 2010

- ⇨ Upon hearing a garnishee application, the Court will order a garnishee nisi**.**
- ⇨ Upon being served with an Order of Garnishee Nisi, the Garnishee will need to file an affidavit of return showing the particulars of the monies in the account standing to the credit of the Judgment Debtor with the Garnishee Bank.
- ⇨ Where a Court is satisfied that there is money in the account of the judgment debtor, the Court will make a garnishee order absolute compelling the payment of the monies in the account of the judgment debt or with the garnishee to the judgment creditor.

Effect of a Garnishee Order *Nisi*

The effect of an Order nisi is that the **garnishee cannot pay** the money in his possession to the judgment **debtor until** the Order is made **absolute** or finally decided; **O.8 JER.**

Effect of Failure to Serve Garnishee Order Nisi

Failure to serve the order Nisi on the Garnishee and judgment Debtor would nullify the Proceedings; ***Wema Bank v. Brasternstein; Odey v NIMASA***

Note that where the Garnishee fails to pay upon an order absolute, judgment would be executed upon him by writ of fifa.

Also, if the account to be attached belongs to the Government, the consent of the AG must be obtained before bringing the garnishee application.

N.B

An order nisi shall not be made where the money sought to be attached is in the hands of a public officer in his official capacity **EXCEPT consent to such attachment is first obtained from the AGF or AGS. See S.84 SCPA**

However see Purification Techniques Nig Ltd v A.G of Lagos State

POSER

Which items of the Judgment debtor would you advice a Judgment Creditor to proceed against in the first place **May 2011 No 5(b)?**

Execution of judgment is ordinarily levied against the movable properties (goods and chattels) of the judgment debtor but if there are no sufficient goods and chattels that can with reasonable diligence be found in the State for the payment of the debt, then the judgment creditor may apply to the Court to attach the immovable properties of the judgment debtor.

However, where the judgment debtor has monies in an account, the first items that I would advise a judgment creditor to proceed against the judgment debtor will be the money in the account.

JUDGEMENT SUMMONS

Procedure is relevant where a judgement debtor who is found to have means of satisfying the judgment debt, has deliberately refused to do so. The Judgement Creditor can apply to court for Judgement Summons for the Judgement Debtor to appear in court personally to be examined on oath as to his means.

Judgement Summons – Procedure (Section 55, 58, 63, 66, 72, 78 SCPA)

The judgement creditor files a **PRECIPE** as in **SCPA Form 13**

Court issues Judgement Summons as either SCPA Form 14 or SCPA Form 15

The Judgement Debtor appears on the return date and he will be examined on oath as to his means.

At the conclusion of the examination the court may make any of the following order: Sections 63 SCPA

1. An order committing Judgement Debtor to prison (not exceeding 6 weeks) where it is shown that the Judgement Debtor has the means.
2. An order for attachment and sale of Judgement Debtor property.
3. An order for payment of money by instalments.
4. An order for the discharge of the Judgement Debtor from Prison

2. ENFORCEMENT OF LAND JUDGMENT

Modes of Enforcing Land Judgements

1. Writ of Possession
2. Warrant of Possession
3. Order of Committal

A judgment or order for the recovery of land or for the delivery of possession of land shall be enforced by a **WRIT OF POSSESSION**.

If it is **recovery of premises,** it will be enforced by applying for **WARRANT OF POSSESSION.**

NOTE:

Land judgments cannot be enforced until after expiration of **14 days** from the day the judgment was given.

1. **Writ of Possession:**

Used to recover possession of land. Not applicable to landlord and tenant matters. Judgement Creditor files **PRAECIPE** as in **FORM 3**, in the court where the judgement was given. **Order 11 R 7 SCPA** Writ of Possession is issued directing the sheriff to enter upon the land to recover and deliver possession to the Judgement Creditor.

Sheriff may use reasonable force to eject occupant. Writ to not issue until the time specified in the judgement for the judgement debtor to give up possession or where no time specified after 14 days from date of delivery of judgement. **Olatunji v. Owena Bank.**

2. **Warrant of Possession:**

This is similar to Writ of Possession but applies to only landlord and Tenant cases. See Section 41 Tenancy Law and Section 25 Rent Control

Recovery of Residential Premises Law Lagos. When issued, **it remains in force for 3 months.**

3. **Order of Committal**

Where a party who has been ordered to give up possession of land by judgement of court refuses to do so, the party who won may enforce the judgement by committal order pursuant to **S. 72 SCPA.**

Procedure- Order 11 Rule 13 Judgement Enforcement Procedure Rule

Application is made to Registrar:

a) **Form 48** (Notice of Consequence of Disobedience)
b) **Form 49** is in the form of motion on notice served on the Judgement Creditor to show cause why committal order should not be made. It contains the date fixed by the court for hearing the application.
c) Where the Judgement Debtor fails to appear on the date fixed, he will be committed to prison.
d) Where he appears, the application will be heard and if he cannot show cause why he is disobeying the court order in the judgement, he will be committed to prison.

WRIT OF SEQUESTRATION – Section 82 SCPA

Is taken where the judgement Debtor is already committed to prison pursuant to Judgement Summons for failing to pay judgement debt where he is found to have the means of paying or;

Where the Judgement Debtor absconded in view of the imminent enforcement of the judgement against him or;

Where the Judgement Debtor cannot be found

What the Writ of Sequestration does

Writ of Sequestration permits commissioners (officers of court) to enter into immovable property of Judgement Debtor to collect and keep rents or other profits, or to seize and detain his goods until he purges himself of the contempt of court in refusing to pay the Judgement Sum/debt.

ENFORCEMENT OF JUDGMENTS INTER-STATE

S.**287 CFRN**, the decision of the Supreme Court, Court of Appeal, Federal High Court, National Industrial Court, State High Court and other Courts established by the Constitution shall be enforceable in any part of the Federation by all authorities and persons and by all courts.

This is a Federal matter and is guided by the **Sheriffs and Civil Process Act**.

The Procedure is as follows:

1. Obtain a certificate of judgment from the Court that gave the Judgment with a court of similar jurisdiction.
2. Write an application to the Registrar of the Court in the other State where it is to be executed to register it in its of Nigerian Register of Judgment – **S. 105 SCPA**
3. Support the application with an affidavit stating;
    a. That the amount for which process is proposed to be issued is actually due and unpaid; or
    b. That an act ordered to be done remains undone; or disobeyed the order

c. That the person ordered to forebear from doing an act has disobeyed from the order **Section 107 SCPA**.

4. The judgment when **registered** is treated as the judgment of the Court of the other State
5. The Court will levy execution first by writ of Fifa (against the movable property) then by writ of execution. **S.100-104 of the SCPA**

INTRA – STATE JUDGMENTS

A judgment delivered in a court may be enforced in another judicial division or district in the same state.

The registrar of the court that issues the writ of execution, called the "**home court**" sends the process for execution to his counterpart in the division or district where the process is to be executed, called the "**foreign court**".

The process is accompanied by a **warrant in Form 11** to the Act, requesting and authorizing execution in the foreign court. The registrar of the foreign court acts on the process on receipt, as if it were issued in his court.

ENFORCEMENT OF FOREIGN JUDGMENTS IN NIGERIA

1. **By action at Common Law-**

   The Judgement Creditor institute a fresh action at the High Court in Nigeria claiming the same reliefs as the one that judgment has been given in a foreign court. Usually, it is by summary judgement procedures and the need to call fresh evidence is dispensed with.

2. By Registration at the Supreme Court Registry, Pursuant to Foreign Judgements (Reciprocal Enforcement). Conditions for enforcement by Registration:
   (a) Existence of Reciprocity
   (b) Application for Registration must be made within 6 years
   (c) Must be a final judgement
   (d) It must be a judgement that is capable of execution in its country of origin
   (e) The judgement is in foreign currency it will be registered in Nigeria currency at the prevailing exchange rate.
   (f) The judgment must be for definite sum of money provided it is not a money recoverable as tax, penalty or fine

Mode of Application for Registration

The application for registration is by motion on notice supported by affidavit and the affidavit must show:

1. That the country from which the judgment emanates has a reciprocity arrangement with Nigeria

Grounds Under Which Judgement Debtor May Apply to Set Aside the Registration

1. That the court in the foreign country has no jurisdiction
2. That the judgement was obtained by fraud
3. That the enforcement will be contrary to public policy
4. That the judgement is not one to which Part 1 of the Foreign Judgement (Reciprocal Enforcement) Act applies.

Enforcement of Nigerian Judgements Abroad

1. The Nigerian Judgement must meet the same requirements as foreign judgements enforceable in Nigeria – Section 6(5) SCPA
2. Procedure:
   (a) Judgment Creditor in Nigeria applies to Nigerian Court for CTC of Judgement & Certificate of judgement.
   (b) Application will not be granted where stay of execution has been granted in respect of the judgement,
   (c) Take these documents to the foreign country and apply in line with their own laws – Section 13 SCPA.

Enforcement Against Governments

Section 7 of the Petition of Rights Act and the Petition of Rights Law of the various states in Nigeria, no execution can be levied against government without the AG's consent.

Where there is a judgment against government, the AG directs enforcement. The judgement Creditor is expected to apply for the AG's Fiat to enforce same. **CBN v. Interstella Communications Ltd.**

PENAL CONSEQUENCES OF NON-COMPLIANCE WITH COURT JUDGMENT

1. Judgment Summons
2. Committal to Prison -Sections 55, 58, 60 and 65 SCPA

CHAPTER FOURTEEN

INTERIM ORDERS/APPLICATIONS PENDING APPEAL

(Bar Final August 2017 Q 5f & g and 2018 Q 2e April 2018 Q 6a & d, April 2019 Q 4h & i)

These are orders are applied for pending the outcome of an appeal. The important thing here is to know the three applications that can be made pending an appeal, the modes of filing the application, the court where it will be filed and the conditions for granting the application.

TYPES OF APPLICATIONS PENDING APPEAL

There are 3 main types of interim orders pending appeal viz:

i. Stay of execution
ii. Stay of proceedings
iii. Injunction pending appeal

Appropriate Court to Apply To:

- The application for all applications pending appeal must be made to the **trial court** first; **Order 61 of the FCT Rule**
- The **EXCEPTION** is where there are special circumstances, which makes it impossible or impracticable to apply to the court below; ***Mobil Oil Ltd v. Agindigbi***
- Once the records of appeal have been received by the Appellate Court, it is said that the appeal has been **ENTERED**. Once an appeal has been entered, all subsequent applications for provisional reliefs should be made to the Court of Appeal; **O. 4 R. 10 COA Rules 2021**

A. STAY OF PROCEEDINGS

An order of stay of proceedings is made to suspend proceeding in the lower court pending the outcome of an appeal against **ruling/interlocutory decision** or a point made during the proceedings. In which case, it is into the final judgment of the court; **Ors 61 R 1 Abuja; Ors 58 R. 1 Lagos; Lijadu v Lijadu**

After the decision of the appellate court, the proceedings in the lower court resumes, subject to the decision. **United Spinners Ltd v Chattered Bank Ltd**

PROCEDURE

1. It is applied for by a **MOTION ON NOTICE** supported with an **AFFIDAVIT** and a **Written Address** to be filed at the trial Court Registry
2. To oppose the Motion, the respondent is to file a **counter affidavit** + **written address within 7 days of the receipt of** the Motion.

NB – Where appeal has been entered

The applicant must in this case annex to the application the following documents.

a) Certified true copy of the notice of appeal
b) The ruling against which the appeal is being brought
c) The ruling of the lower court refusing the application
d) The application at the lower court with the supporting affidavit without which the application is incompetent.

CONDITIONS FOR THE GRANT OR REFUSAL OF SOP – Bilbis v AG Zamfara, NNPC v Odidere

1. A pending appeal

2. Arguable grounds of appeal
3. Will the appeal dispose of the proceedings before the lower court
4. Whether the subject matter will not be destroyed before the determination of appeal
5. Whether greater damage will be caused by grant/refusal
6. Will the continuation of proceedings at the court below render the order on appeal nugatory
7. Applicant must make an undertaking as to damages

B. STAY OF EXECUTION (this is the one mostly asked)

It is applied for after a **final judgment**, which is **executory in nature** is given; for example, where the court orders for payment of money or damages. It is applied for when a party wants the status quo to be maintained **Lijadu v Lijadu**

Application is made first to the High Court that delivered the judgment appealed against. (**O. 6 R. 4 CAR**).

Where the circumstances are such that it is impossible to apply to the High Court or the Court of Appeal is already seized of the appeal, application may be made to the Court of Appeal first without an earlier application to the High Court: **Ezeokafor v. Ezelio**.

The purpose of the application is to stop the judgment creditor from enforcing/executing the judgment pending the outcome of an appeal by the judgment debtor. **Ors 61 R 1 Abuja; Ors 58 R 1 Lagos, S. 15 Court of Appeal Act.**

PROCEDURE

1. Motion on Notice
2. Affidavit

3. Written address
4. Copy of the notice of appeal
5. CTC of the judgement appealed against
6. CTC of the ruling of the high court refusing the first application to the high court

It can only be granted upon the fulfilment by the applicant of **conditions** set out in **Lijadu v Lijadu**, **National Pension Commission v F.G.P Ltd**

1. The ground of appeal must raise substantial legal issues in an area of law that is novel or recondite;
2. The application must disclose special circumstances why the application should granted;
3. The application must disclose why matters should be put in status quo or preserve the res so as not to render the appeal nugatory

Recondite point of law needs to co-exist with special circumstance to warrant grant of stay of execution. The special circumstances envisaged for the grant of this order are: **SPDC (Nig) Ltd v Amadi**

1. Where the subject matter of the dispute will be destroyed if stay is not granted;
2. Where a situation of helplessness will be foisted on the court especially an appellate court;
3. Where execution will paralyse a party‟s right of appeal;
4. Where the order of court will be rendered nugatory;
5. Where execution will prevent a return to status quo if the appeal succeeds.

6. Where the appellant has an important point of law to argue upon

CONSIDERATIONS FOR GRANT – **Nwabueze v Nwosu**

1. The chances of the applicant on appeal - if the chances are virtually nil, then a stay may be refused.
2. The nature of the subject matter in dispute, whether maintaining the status quo until a final determination of the appeal in the case will meet the justice of the case.
3. Whether if the appeal succeeds, the applicant will not be able to reap the benefit of the judgment on appeal.
4. Where the judgment is in respect of money and costs, whether there is a reasonable probability of recovering these back from respondent if the appeal succeeds**. Union Bank v. Odusote Bookstore**
5. Poverty is not a special ground for granting a stay of execution except where the effect will be to deprive the applicant of the means of prosecuting his appeal

N.B

Merely filing a notice of appeal does not operate as a stay of execution. **S. 17 Court of Appeal Act, Vaswani v Savalakh**

C. INJUNCTION PENDING APPEAL

This is necessary where;

- ⇨ Claimant's or counter claimants' action was either dismissed or
- ⇨ Judgment is declaratory in nature (i.e. cannot be executed) or an interlocutory injunction was earlier refused by court
- ⇨ Where an interlocutory injunction was earlier refused by the trial court

Procedure

Application by way of **Motion on Notice** + **Affidavit** + **written address.** The application will also be accompanied by**:**

i. A copy of the Notice of Appeal
ii. A CTC of judgment or ruling appealed against

It must first be made to the trial Court **EXCEPT** there are special circumstances that make it impracticable to do so ***Mobil Oil Ltd v. Agadaighio***.

Conditions for Grant of All Injunction Pending Appeal (Important) – LIJADU v LIJADU

1) Applicant must show special circumstances justifying the grant
2) Notice of appeal must disclose substantial legal issues
3) Equitable to maintain status quo
4) Refusal will foist on the court on appeal a state of helplessness
5) Refusal may render nugatory, order on appeal

Shodeinde v RTAMI

NOTE THE FOLLOWING IMPORTANT POINTS

- It is at the discretion of the court to grant the application and such discretion must be exercised based on the circumstances of each case. ***S.G.B (NIG) LTD v. I.F.I. LTD***
- That where any of the applications above is refused by the trial Court, the Applicant can file another application to the Court of Appeal **within 15 days** of the refusal by **Motion on Notice** supported with an **Affidavit** exhibiting the following:
  a. CTC of the Order of the trial Court refusing the application

b. CTC of the judgment of the lower Court
c. The Notice of Appeal
d. The record of proceedings; **O. 6 R. 3 COA Rules 2021**

NB

In order to prevent a party from destroying or tampering with the subject matter of litigation pending the determination of the appeal, the application I will file is an injunction pending appeal.

The application can be filed at either the High Court or the Court of Appeal. Being an application for injunction, it need not first be filed at the High Court before it can be made at the Court of Appeal. **UBA v Mode**.

But if the appeal has already been entered, then the application can only be filed at the Registry of the Court of Appeal as the Lower Court would have ceased to have jurisdiction to entertain interlocutory applications in the suit. **Coker v Aderemi.**

POSSIBLE QUESTIONS FROM THIS TOPIC

1. **Assuming the court gave judgment in favour of the claimant and the defendant has appealed, advice the defendant on the step to take to ensure that the claimant did not execute the judgment pending the determination of the appeal.**

   Answer: I will advise the defendant to bring an application for stay of execution. It will be by motion on notice supported with affidavit and a written address.

2. **Before which court will you take the step identified by you in 1 above and what further step will you take if it was refused by that court?**

Answer: I will file the application before the trial court first and if refused by the trial court, I will make the application to the appellate court within 15 days by motion on notice supported with affidavit, a valid notice of appeal, CTC of the decision appealed against and CTC of the ruling of the court on the first application.

3. **The claimant's application for interlocutory injunction was granted and the defendant aggrieved; appealed against the ruling, what step will you take in respect of the main suit pending the appeal?**

   Answer: I will bring an application for stay of proceedings by motion on notice supported with an affidavit and a written address.

CHAPTER FIFTEEN

APPEALS

Commented [MOU39]: Right of appeal is statutory not inherent – Adigun v AG Oyo

You can't appeal against

a.Transfer of cases by the CJ – **Dike v Anduba**
b.Minority Opinion – **Ige v Olunloyo**
c.Obiter Dictum – **Abacha v Fawehinmi**

An appeal is an opportunity for a second and higher court to take a look at the proceedings and decision of the trial court or lower court.

While reading please take not of subtopics marked as very IMPORTANT

Parties Who May Appeal In Civil Actions Are (Right to Appeal)

In civil litigation, the following person can appeal:

1. Parties (these are those whose names appear on the Court processes on a matter) to an action in the lower court who can appeal as of right.
2. A person interested in the judgment who was not a party at the trial court can appeal with the leave of Court **S. 243 (a) ,** ***Fawehinmi v. UBA***

TYPES OF APPEAL:

a. Appeal as of right and
b. Appeal with leave

1. APPEAL AS OF RIGHT: Section 241(1) CFRN

Appeal is said to be as of right where leave of either the trial or appellate court is not required to file the appeal.

Appeals lie as of right from the High Court to the Court of Appeal in the following circumstances as provided under **S. 241(1) CFRN**. These include;

i. **Final decisions** in any civil proceedings before the High Court sitting at first instance.
ii. Where the **ground of appeal involves questions of law alone** (could be a final decision or even an interlocutory decision)

iii. Decisions on **questions as to interpretation of the constitution.**

iv. Decisions of the court in an action for enforcement of fundamental rights under Chapter Four of the Constitution.

v. The liberty of a person or the custody of an infant is concerned; etc.

2. **APPEAL WITH LEAVE – 242 CFRN, Skye Bank v Iwu**

Appeal is with leave when the appellant must first obtain the leave of either the trial court or of the appellate court before filing the notice of appeal.

Appeals must be with leave of Court in the following instances:

i. Appeal against Consent judgment

ii. Appeal against judgment as to cost alone**: S. 241(2) CFRN**

iii. Double appeal e.g. an appeal against a decision of the High Court sitting on appeal from a decision of a magistrate court**,S. 242 CFRN**

iv. Interlocutory appeals on grounds of facts only

v. Persons interested in a matter not being a party to the case, **S. 243**

NB

Where leave is not obtained court will not have jurisdiction

No right of appeal against – S. 241 (2) (a) &(b)

a. Unconditional leave to defend**. National Bank v Weide & Co**

b. Decree absolute - **Nabhan v Nabhan**

The Time Limit For Commencing Appeals (Very Important for both MCQ and Theory)

The time limit to commence an appeal depends on the decision of the Court sought to be appealed against as follows:

1. Appeal against the **final judgment of the Magistrate Courts to the High** Court- within **30 days** of the delivery of the judgment.

Commented [MOU40]: Abdul Kareem v Incar Nig Ltd

2. Appeal against the final decision of the **High Court to the Court of Appeal**- within **3 months** of the delivery of the judgment – **S. 24 CA Act, CCB v A.G Anambra State**

3. Appeal against the Court of Appeal decision to the Supreme Court- within **3 months** of the delivery of the judgment; **S.27 of the Supreme Court Act**

4. All interlocutory decisions or rulings in any Court is to be appealed against **within 14 days** of the delivery of the ruling **S. 25 (2) (a) of the Court of Appeal Act.**

PROCEDURE FOR APPEAL (Very Important)

The procedure for filing an appeal is provided for in the **Court of Appeal Rules 2021; Order 7 Rule 2.** The mode of commencing or the originating process of every appeal is a **NOTICE OF APPEAL** **(Bar Final August 2017 Q 5d & e, April 2018 Q 6b, August 2018 Q2d, and April 2019 Q4f)**

1. **File A Notice of Appeal:** the Notice of Appeal is to **be filed at the registry of the trial court whose decision is appeal against within the stipulated time**. The Registrar **shall within 14 days** summon the parties to come and settle the matters/documents that will form part of the records of appeal

2. **Compilation of the Record of Appeal:**

This is the whole record compiled from the trial Court to be transmitted to the appeal Court in order to enable the appeal Court determine the appeal.

It is to be compiled by any of the following:

a. The Registrar of the trial Court within **60 days** of the filing of the Notice of Appeal
b. If the Registrar failed to do so, then the appellant is to do so **within 30 days of the registrar's failure** **O. 8 R. 1 & 4 CA Rules 2021**
c. **10** copies of record and 1 electronic copy

3. **Service of the Notice of Appeal:** The Notice and the records of Appeal is to be served personally on the Respondent. Upon service, the Respondent shall within **30 days** of the service of the Notice on him; file in duplicate with the Registrar of the Court below a notice of full and sufficient address for service in such number of copies is the Registrar may require

EXTENSION OF THE WITHIN WHICH TO APPEAL

- ⇨ Where an appellant is out of time to appeal, he must apply for extension of time within which to appeal to the Appellate court. **Akpan v Ekpo**
- ⇨ The procedure is by filing a **NOTICE OF MOTION** for extension of time to appeal + **Affidavit** stating cogent reasons for the delay in filing the appeal and a **WRITTEN ADDRESS**; **O. 6 R. 1 COA Rules**
- ⇨ The Court of Appeal is empowered **under S. 24 (9) Court Appeal Act** to extend the period for filing an appeal.
- ⇨ An appeal filed outside the stipulated time without leave of court is not an appeal and ought to be struck out.

DRAFT PRAYER: AN ORDER extending the time within which to file an appeal against the decision of the High court of …. Delivered on … day of … 2022

NOTE:

A final decision of a High Court must be filed within 3 months of delivery of the judgment. Where a party is seeking to appeal outside 3 months the proper procedure to take is to file an application for extension of time to file the appeal. **S. 24 Court of Appeal Act. Akpan v Ekpo; CCB v Anambra State.**

The **application must be filed before the appellate court**. A High Court and indeed no court **has power to grant extension of time within which to appeal against its own decision**–***Akpan v. Ekpo***

An Order of a Court that it has no jurisdiction is a final decision. **Western Steel Workers Ltd v Iron and Steel Workers Union**. (**focus**)

But a decision that it has jurisdiction is an Interlocutory decision. **Akinsanya v UBA Plc**. The time for appealing against an Interlocutory judgment is 14 days from the date of delivery of the judgment. **S. 24 Court of Appeal**. Where a party is seeking to appeal outside 14 days, and so the proper procedure to take is to file an application for extension of time to file the appeal. This is to be done by a **Notice of Motion** for extension of time supported with an **Affidavit** stating cogent reasons for the delay and good cause why the appeal should be heard. and must be filed at the Registry of the Court of Appeal.

Where its interlocutory decision on ground of mixed law and fact, the proper application is to ask for the **trinity prayer**. Then after the application is granted the notice of appeal should be filed at the lower court

TRINITY PRAYER (Bar Final April 2017 and August 2018 Q 5)

This is **applicable where an appeal requires leave of court** and the appellant is out of time to appeal. It is application for leave in the Court of Appeal which must contain 3 prayers viz: **Ibrahim v Balogun**

1. Extension of time to seek leave to appeal
2. leave to appeal;
3. Extension of time within which to file the notice of appeal.

By **Notice of Motion**, + **affidavit** stating cogent reasons for the delay + **Written Address**

CONTENTS OF A NOTICE OF APPEAL

1. Heading of the Court
2. Appeal and Suit No
3. Parties and their capacity
4. Title of the Notice
5. Notice containing particulars of the judgment appealed against
6. Part of the decision appealed against: whether whole or part
7. Grounds of appeal with particulars
8. Reliefs sought from the Court of Appeal
9. Names and addresses of the persons directly affected by the appeal
10. Date
11. Name, address and signature of the Appellant or his Counsel
12. Address for service

GROUNDS OF APPEAL

The grounds of appeal may be based on:

1. Misdirection
2. Ground of Law/fact – **Comex v Nab**
3. The omnibus ground of appeal.

NOTE THE FOLLOWING POINTS:

- The omnibus ground of appeal is an attack on the findings of facts at the trial Court to the effect that the decision of the trial Court is against the weight of evidence.
- If the ground is misdirection or error of law, the particulars and nature of the ground of misdirection or error must be stated if not the ground of appeal shall be struck out.
- It is only the omnibus ground of appeal that **can stand alone without particulars.** ***Ogberchi v. Ibekwe, Comex v. NAB.***
- The grounds of appeal in a Notice of Appeal **CANNOT** be both on misdirection and error of Law at the same time.

Nature of The Grounds of Appeal

- A bare Notice of appeal that does not contain any ground or grounds of appeal is valueless and incompetent and an abuse court process; ***Akeredolu v. Akinremi***
- The appellant is bound by the grounds of appeal in his Notice of Appeal.

Commented [MOU41]:
The guide to identifying whether a ground of appeal is a ground of law alone was stated by the SC in *ASHDC v. Emekue* as follows:

a.The ground is as to whether a contract exists or has lapsed; or

b.The ground does not question the evaluation of evidence by the lower court but only the inference to be drawn from established facts based on admissible evidence. That is, where the ground of appeal is on evaluation of evidence, it is a ground of fact; but where it relates to inference drawn from the facts, it is a ground of law. or

c.The ground is complaining that there has been a misconception of the law in its application to the established facts; or

d.The ground is complaining that the court below reached its decision where there is no evidence before it upon which the court below could base its decisions.

e.The ground is on the admissibility of evidence. This is because the admissibility of evidence is determined by the EA,

Note
where the appeal is against a matter which is at the discretion of the lower court, then, it is a ground of fact or at best mixed law and fact; not law, such as stay of proceedings etc. See *Comex v. NAB*.

- ⇨ He shall not be heard on any ground of appeal not contained in his Notice of appeal; he must obtain leave of the Court to amend his ground or file additional grounds.
- ⇨ A ground of appeal may allege a misdirection or error in law and the particulars and the nature of the misdirection or error shall be clearly stated.
- ⇨ Every ground of appeal must be supported with particulars **EXCEPT** the omnibus ground of appeal which can stand alone.

DRAFT of Omnibus Ground: **"The Judgment of the court is unreasonable, unwarranted and is against the weight of evidence adduced by the parties" see April 2018 Q 1e**

RESPONDENT'S NOTICE

This is **filed by the successful party/judgment creditor** in a case asking the Appeal Court **to vary or uphold the judgment** on other grounds than the lower/trial Court did: **Order 9 Rule 1&2 COA**

NB=> A respondent who seeks the reversal of an adverse finding can only do so by way of **a Notice of Appeal or Cross-appeal.**

Any Respondent's Notice given by a respondent must be served on the appellant and on all parties to the proceedings in the Court below who are directly affected by the contentions of the respondent and must be served.

CROSS- APPEAL

This is filed by the Respondent in the appeal challenging the judgment too on other grounds **Eliochin v Mbadiwe**

A Notice of Appeal is independent so also is a cross Appeal. A cross appeal does not strictly depend upon an appeal having been filed. Any person who has a judgment in his fair but wishes to reverse the judgment or parts of it, can cross appeal without waiting to be served with a notice of appeal by the unsuccessful party.

Respondents Notice – Or 9 CAR, Ali v Otanioku

BRIEF OF ARGUMENT (Exam focus)

Appeals are heard in the Court by filling and adoption of Brief of Arguments. The order of filing the Brief of Arguments is as follows:

- The **appellant** has **within 45 days (10 weeks at the Supreme Court)** after the transmission/receipt of the Record of Appeal from the court below to file his Brief of argument.
- The **respondent** shall **within 30 days (8 weeks at the Supreme Court)** of the service of the brief for the appellant on him file the Respondent's brief which shall be duly endorsed with an address for service.
- The **appellant** may also, if necessary, **within 14 days (4 weeks at the Supreme Court)** of the service on him of the Respondent's brief file and serve the respondent a **reply brief** which shall deal with all the **new points** from the respondent's brief.

CONTENTS OF THE BRIEF OF ARGUMENT (this is the same with written address) OrS 19 r 3 CAR 2021, Archbold Engnr v Water Resources Hydro Tech AG

1. Heading of the court (including Ref. No {Suit No and Appeal No} and parties)
2. Title e.g. "Appellants/Respondents Brief of Argument"
3. Introduction
4. Brief facts/summary of the case
5. Issues for determination
6. Legal arguments in support of issues for determination
7. Conclusion
8. List of authorities cited
9. Date and franking
10. Address for service on the other party

Relationship between Issues for Determination and Grounds of Appeal (it has appeared in MCQ from April 2017 till Date)

- ⇨ All issues for determination must be derived or tied to one or more ground/s of appeal
- ⇨ Only one issue for determination can be derived from a ground of appeal, that is to say; the issues for determination cannot be more than the grounds of appeal
- ⇨ A **single issue** for determination **can be derived from multiple grounds of appeal**
- ⇨ Any ground of appeal without any issues for determination is deemed abandoned

- **Any issue for determination which cannot be traced to a ground of appeal cannot be entertained.**
- The appellate court may *suo motu* formulate a single issue for determination from the issues for determination formulated by both parties if it is of the opinion that such single issue will resolve the whole appeal.

Consequence of Failure to File Brief of Argument:

- **Where the appellant fails** to file his brief within the time provided or as extended by the court, **the respondent may appeal to the court for the appeal to be dismissed for want of prosecution**. **This is deemed as implied abandonment of the appeal**.
- **If the Respondent fails** to file his brief, he will not be heard in oral argument.
- Where an appellant fails to file a Reply Brief within time specified, it shall be deemed to have conceded all the new points arising from respondent's brief

AMENDMENT OF NOTICE OF APPEAL/RESPONDENT NOTICE

A Notice of appeal may be amended by or with the leave of court at any time. A Respondent's notice may be amended by or with the leave of court at any time.

Procedure For Amendment

- This can be done by filing a **Motion on Notice + affidavit** exhibiting the proposed 'Amended Notice of Appeal/Cross Appeal'.
- If the **Respondent wants to object**, he should file a Counter affidavit.

WITHDRAWAL OF AN APPEAL

- An **appellant** may **withdraw** an appeal **at any time before it is called for hearing.**
- Where withdrawal is **unilateral**, the **appellant** shall **serve** on the parties to the appeal and file with the **Registrar** a **Notice** to the effect that he does not intend to prosecute the appeal any further. **FORM 12; Order 11 Rule** 1 **of Court of Appeal Rules**

ABATEMENT OF APPEAL

Abatement usually **arises where any of the parties to the appeal dies before the determination of the appeal.** In Civil appeals, abatement hardly occurs since the personal representatives of the parties are always available to pursue the appeal and can apply to be substituted.

However, where the action is a personal action (**i.e. the action involve rights/duties which must be personally performed**), the appeal will surely abate upon death of any of the parties.

CHAPTER SIXTEEN

RECOVERY OF PREMISES

August 2017 Q 3, 2018 Q 2, 2019 Q4 & 6, January 2020 Q1. April Re-sit 2017 Q3, 2018 Q2 and 2019 Q5, Dec 2020 Q3)

APPLICABLE LAW

ABUJA:

a) **The Recovery of Premises Act**, regulates the recovery of both residential and non-residential Premises
b) District Court Act
c) District courts **(increase of jurisdiction of district court) Order 2021**

Lagos State:

1. **Tenancy Law** (applies to both residential and non-residential). However, **IT DOES NOT APPLY TO:**
   a) **Ikeja GRA**,
   b) Victoria Island,
   c) Ikoyi,
   d) Apapa
2. **Recovery of Premises Law** (applies to areas not covered by **T.L)**
3. the Magistrates Court Law of Lagos State regulate the recovery of possession of premises.

COURTS WITH JURISDICTION (This was asked in the years above)

Generally, the court that will assume jurisdiction in action for recovery of premises **depends on the annual rental value** (i.e. the amount the tenant pays as rent each year). It is as follows:

- **FOR ABUJA**
- If the annual rental value is **below** **N7, 000,000.00** (**Seven Million Naira**) or below, the action should go to the **DISTRICT COURTS** (the mode/originating process will be by **PLAINT**

- If the rental value is **above** **N7, 000,000.00** (**Seven Million Naira**), then the action will be commenced at the **HIGH COURT OF FCT** (the mode/originating process will be by **WRIT OF SUMMONS**)

- **FOR LAGOS (Lagos is always asked more than Abuja)**
- If the annual rental value is **below** **N10, 000,000.00** (**Ten Million Naira**), the action should go to the **MAGISTRATE COURTS** (the mode/originating process will be by **CLAIM by way of ordinary summons** – **S. 28 Magistrate Court Law**

- If the annual rental value is **above** **N10, 000,000.00** (**Ten Million Naira**), then the action will be commenced at the **HIGH COURT** of Lagos State (the mode/originating process will be by **WRIT OF SUMMONS**)
- Note that the Magistrate court can entertain the matter even though the claim for arrears and mesne profit is higher than the court's jurisdiction. In another vein what confers jurisdiction on the magistrate court is the annual rental value, **once the annual rental value is within the courts jurisdiction even though the cumulative amount the landlord is claiming is above the financial jurisdiction of the court**, **the court has jurisdiction**. **Joyland v Wemabod Estates Ltd** (**focus**)

POSER

Where a Tenant objects to the jurisdiction of the Magistrate Court, respond to the objection

The position of the law is that what determines the monetary jurisdictional limit of the Magistrate Court Lagos is the annual rental value of the premises. If the annual rental value does not exceed N10,000,000 the Magistrate Court has jurisdiction notwithstanding that the cumulative amount claimed, i.e. arrears of rent or mesne profit is more than N10,000,000. **Section 28(2) Magistrate Law**; **Joyland v Wemabod Estates Ltd.**

TYPES OF TENANCIES

A. TENANCY AT WILL

This is a tenant who stays in a property after the tenancy had expired **with the consent of the landlord** for no fixed time. It could be determined at any time by the landlord; ***Odutola v. Papersack (Nig.) Ltd***

B. TENANT AT SUFFERANCE

This is a **tenant that was initially lawfully occupying the premises but later holds it without the consent of the Landlord because the tenancy has been determined.**

The tenant can be evicted by the Landlord and treated as a trespasser. In that case, he cannot sue the landlord for wrongful/unlawful ejection.

C. PERIODIC TENANCY

It is a tenancy for a fixed term, e.g. yearly, monthly, weekly etc. It has an inherent renewal clause expressly or impliedly at the expiration of the term

granted. It can only be determined by issuing of Notice to quit. **S. 13 TLL; S. 8(3) RPA; Gand v Jubber**

D. STATUTORY TENANCY

He is a person who holds over premises after his tenancy has expired; ***Sule v. Nig. Cotton Board***. This is a person/tenant staying on premises under the protection of the Law. Example is a licensee entitled to 7 days' Notice of owners' intention to recover possession of premises; ***African Petroleum v. Owodunni.***

E. LICENSEE

This is a person who is permitted to use premises without having any estate or exclusive possession of the premises. It arises out of privilege to use the premises by another who is the owner/lawful person in possession of the premises; see ***Chukwuma v. Shell Petroleum Dev. Ltd; Nwano v. FCDA.***

A Licensee is not a tenant within the meaning of the law and is therefore not entitled to the statutory notices or the protection by the recovery law.

F. SERVICE TENANT (focus)

This includes servants or any employee given residential accommodation in his official capacity as long as he is still in the service of his employer.

NOTE the following about service tenants: FOCUS

- **If rent is deducted from his salary**, he is deemed to be a tenant and is entitled to all the necessary notices required under the law before he can be evicted; ***Sule v Nigerian Cotton Board.***
- However, if the accommodation is an **incentive to his employment**, **upon termination of his employment**, the tenancy is deemed

determined, he will only be entitled to Notice of owner's intention to recover premises; ***Chukwuma v. SPDC***

N.B

Where an employee of a landlord had occupied the premises as an incentive, that qualifies him as a service tenant.

When his employment is terminated, on the authority of **Chukwuma v SPDC, Emeka Nwanna v FCDA**, he will be treated as licensee who can be evicted from the premises without service of statutory notices or action in Court.

However, on the authority of **Sule v Nigeria Cotton Board and Oduye v Nigerian Airways**; upon the termination of the employment of a service tenant, he becomes a statutory tenant who cannot be evicted without the service of the statutory notices and eviction in court

Procedure / STEP for Recovery of Premises (VERY IMPORTANT)

This may also be called condition precedent or steps for recovery of premises. It includes**: S. 7 RPA, s. 16 TL**

1. The Counsel should get instructions in writing; i.e. obtain written letters of authority from the landlord to act: ***Coker v. Adetayo;; Ayiwoh v Akorede***
2. **Issue/serve a Notice to Quit to the tenant**: (the length of the notice is determined by the tenancy)
3. **At the expiration of the notice to quit, if the tenant still retains possession, serve him with 7 days' Notice of Owner's Intention to recover possession.**

Commented [MOU42]: The procedure involves four basic stages:

1.Obtaining letter of authority where necessary;

2.Termination of tenancy by notice where necessary;

3.Service of 7 days" notice of owner's intention to recover possession;

4.Commencement of proceedings before the appropriate court.

Commented [MOU43]: **Balogun v. L.E.D.B.**, it was held that a Solicitor **unless** specially authorized in writing by the landlord should not sign the statutory notice required by **S. 7 of the Recovery of Premises Act**, and that **such notice (to quit) if signed by unauthorized agent cannot be subsequently ratified.**

Commented [MOU44]: A law firm cannot issue a quit notice **it must be by an individual legal practitioner**

The effect of service of notice to quit terminates the landlord tenant relationship

4. **At the expiration of the 7 days' notice, if the tenant still retains possession institute an action for recovery of premises in the appropriate court.**

N.B – August 2011

The position of the law is that for an agent or Solicitor of a Landlord to validly issue any of the statutory notices to a tenant, he must first be instructed in writing by the Landlord and given a written authority. **Coker v Adetayo; Ayiwoh v Akorede.** An objection is likely to succeed on the grounds that an agent or solicitor did not obtain the letter of authority

THE LENGTH OF NOTICE TO QUIT - S. 8 **RPA; S. 13 TLL.**

1. Tenancy at will – 7 days' Notice
2. One month tenancy – **1 calendar month** Notice
3. Quarterly tenancy (**3 months**) – **3 months'** Notice
4. Half-yearly tenancy (**6 months**) – **3 months'** Notice
5. Yearly tenancy and above – **6 months'** Notice;

THE FOLLOWING DOES NOT HAVE 31ST - FAJUSN

a. February – 28 days
b. April – 30 days
c. June – 30 days
d. September – 30 days
e. November – 30 days

The nature of the tenancy for the purpose of determining the proper notice to terminate a tenancy shall, in the absence of any evidence to the contrary, be

determined by reference to the mode of payments of rent. **S. 8 TL and 13 RPA**

NB – August 2011

A quit notice is not a process of Court and **does not require service by a Bailiff or other officer of Court for it to be properly served**. An objection stating that it must be served by a bailiff will fail.

NOTE THE FOLLOWING IMPORTANT EXAM POINTS

- The parties can by their express agreement vary the length of statutory notices and if they do, the length of notice agreed therein will be binding on the parties. **S. 13(1) TLL; S. 8 RPA A.P. v. Owodunmi**

- Where the nature of tenancy is not clearly stated, the nature of tenancy will be deciphered from mode rent is paid; that is h**ow and when the tenant pays rent; (Jan. 2020 Q 6a) S. 8 TL and 13 RPA**

- The length of Notice to quit **cannot be less than is required by Law** and even if it's less for a day **it would be invalid**; ***Ocheii v. Ajose; Universal Ins. CO. Ltd. v. Hammond***.

- **Mesne profit will begin to run after the expiration of the notice to quit. And the basis of the calculation of mesne profit is the current market value of the premises** – **May 2011**

COMPUTATION OF TIME

The date/ time of service of a Notice to quit are very important as it starts counting from the date/time of its service. For example, a Notice to Quit

written on the 1 of January but served on the 7 of January is counted from 7 of January; see ***Chukwuma v. Shell Petroleum Dev. Co. Ltd.***

When Does a Notice to Quit Terminate?

- **IN ABUJA:**

When a Notice to Quit is given in Abuja, **it must terminate AT THE EVE of the anniversary of the commencement of the tenancy.**

EXAMPLE- if the tenancy commences on 31st December, the 6 months' notice must be served latest on June 30th so as to cover six calendar months from July to December 30th:, ***AP v Owodunni, Odutola v Papersack Nig Ltd*** **S. .9 RPA**

- **IN LAGOS**

If it is 3 months or 6 months' notice to quit, the notice need not terminate on the anniversary of the tenancy but **may terminate on or after the date of expiration of the tenancy** -***Oyekoya v G.B Olivant*****; section 13(4) TLL**

Ensure that the statutory period is adequately covered by the Notice to quit. The insertion of a wrong date invalidates the notice

Circumstances When Notice to Quit Is Not Required

There may be circumstances when notice is not required to be given to the tenant to quit.

1. Where a monthly tenant is in **arrears of rent for 6 months** or more S. **13 (2) TLL**
2. Where the **tenancy is for a fixed term, and has been determined by effluxion of time.** S. **13(5) TL**; ***Tiniola v. Okon***.

3. If a **quarterly or half yearly tenant is in arrears of one year rent or more, S. 13 (3) TL**
4. Where the **tenant terminates the tenancy by a notice of termination in writing. Obadina v Agro Services Corp**

CONTENTS OF NOTICE TO QUIT

1. The fact that the tenant should quit and deliver up possession of the premises **which must be clearly described**.
2. The location of the premises (the town, or district and number of street).
3. The kind of tenancy (whether at will, weekly, monthly etc.
4. The date the notice to quit is to expire.

See. Form B. C. or D - Schedule to the **RPA** and **TL2 or TL3** Schedule to the Lagos State Tenancy Law,

NOTICE OF OWNER'S INTENTION TO RECOVER POSSESSION:

There must be **7 clear days** from the date of service of the notice to the date of institution of the action hence it is also known as 7 days' notice.

In calculating the 7 days, the day the notice is served is excluded and it would expire on the 7th day. **if the action is filled** before the expiration of the 7 clear days, **the court would stay the proceedings** for the 7 clear days to **EXPIRE** between the service of the notice and the hearing of the action.

TIME OF SERVICE - MCQ

Notice is usually **served between 6 a.m. and 6 p.m, Monday to Saturday**

The notice shall be in **Form E Section 7 RPA** for Abuja and **TL 4 S. 16 TLL**. For Lagos **Chiwete v. Amissah**

SERVICE OF NOTICES – S.18 TL, S. 28 RPA

- The notices become valid upon service of same on the tenant. The important date in computation of time is the date the notice was served on the tenant and not the date written on the notice.
- The mode of service may **by: personal service** on the tenant
  - **(a)** affixing the notice on any conspicuous place in the premises and providing corroborative proof of same
  - **(b)** by delivering it to an adult occupant of the premises. Such service does not require leave of court; see ***Amissah v Chiwete;***
  - **(c)** Courier where the tenant cannot be found, by delivering same at the premises sought to be recovered and the courier shall provide proof of delivery

IF IT'S A BUSINESS PREMISES IT IS BY: S. 19 TLL

a. delivering the Notice to a person at the business premises or

b. by affixing it in the premise**.**

N.B

Service of Quit Notice as well as Notice of Owners Intention to Recover Possession is a **PRECONDITION** to the institution of proceedings between landlord and tenant for the recovery of premises.

Where such notices are applicable and not served, an action for recovery of premises is incompetent. **Gambari v Gambari**

IMPROPER SERVICE

Where any of the statutory notices is improperly served, such improper service will be cured by issuance of writ for commencement of the action. In

other word, such improper service does not render the suit incompetent or affect the jurisdiction of the court to grant possession., **Bankole v Oladitan**

EFFECT OF FAILURE TO SERVE NOTICES

The effect of a failure to serve any of the Notices as required by Law is that it is a **fundamental issue capable of depriving the Court of jurisdiction over the matter,** ***Oluoma v. Nnadozie***

COMMENCEMENT OF ACTION FOR RECOVERY OF PREMISES (FOCUS)

- All actions for recovery of premises shall be commenced **only after the expiration of all the statutory notices** (i.e. 7 days' notice of owner's intention). **Iheanacho v Uzochukwu**
- Any **action** for recovery of premises commenced before the expiration of the requisite notices is incompetent and liable to be struck out; ***Amissah v Chiwete***
- Note however that the court may instead of striking out the case, stay proceedings until the complete and requisite notices are given

WRIT OR PLAINT/CLAIM AGAINST PERSON REFUSING TO DELIVER UP POSSESSION

The action shall be commenced in the judicial division in which the land or property situates. The originating process shall contain facts to the following effect:

1. That the Claimant is entitled to the possession of the premises, which were let by the Claimant to the defendant. Brief but accurate description of the said premises.

Commented [MOU45]: YOU MIGHT BE ASKED TO COMMENT ON A ROP WHERE THE LAWYER COMMENCED THE ACTION BEFORE THE 7 DAYS OWNERS INTENTION AND ALSO THE FACT THAT THE PERSON COMMENCED ACTION EITHER BY ORIGINATING SUMMONS OR OTHER PROCESS ASIDES WRIT OF SUMMON.
YOUR ANSWER WILL BE:
THE ACTION INSTITUTED BY .. IN COURT FOR THE RECOVERY OF PREMISES IS NULL AND VOID FOR THE FOLLOWING REASONS: 1(MARK)

1.AFTER THE EXPIRATION OF THE NOTICE TO QUIT AND BEOFRE INSTITUTING AN ACTION IN COURT FOR THE RECOVERY OF POSESSION THE LAWYER OUGHT TO HAVE SERVED .... WITH A NOTICE TO TENANT OF THE OWNERS INTENTION TO APPLY TO COURT TO RECOVER POSSESSION

2.FROM THE FACTS OF THE CASE THE ACTION OF THE CASE THE ACTION OF THE CASE WOULD BE CONTENTIONS AND THE PROPER MODE OF COMMENCING THE ACTION IS BY WAY OF WRIT OF SUMMONS

Commented [MOU46]: Where, in a possession claim against persons in unlawful occupation, the Claimant does not know the name of a person in occupation of the premises, the claim shall be brought against "**persons unknown**" in addition to any other description available. – **S. 33 TLL**

2. The period of the tenancy and the rent attached.
3. The date of expiration or determination of the tenancy under notice to quit.
4. The fact of the notice in writing of the intention of the Claimant to apply to recover possession of the premises. A duplicate of the notice in Form E or TL 4 (7 days owners' intention) must be attached.
5. A description of how the service of the notice in Form E or TL 4 (7 days owners' intention) was effected.
6. That in-spite of the notice in Form E or TL 4, the defendant has refused or neglected to deliver up possession of the said premises and still detains same.
7. Claim for possession, arrears of rent and/ or mesne profit.

The Writ in the high court shall be in **Form A** Schedule to the **RPA** **Abuja** and **TL 1** Schedule to the **TLL** **Lagos**

The Plaint in the Magistrate\District court shall be in **Form F and a summons issued in Form G** Schedule to the **RPA** **in** **Abuja** and in **Lagos** state **TL 6B and a summons in Form TL6A is issued** see Schedule to the **TLL**

N.B

If at the expiration of the notice to quit, the tenant owes rent, these are called **arrears of rent**. But from that date until possession is given up, the rent which would have accrued are known as **mesne profit**.

Mesne profit is payable **only by a person holding land illegally**: **Oyeledun v. Shomoye**

GROUNDS FOR RECOVERY OF PREMISES (Jan. 2020 Q 1)

The landlord may rely on any one or more of the following grounds for recovery of the premises; **S. 25 TLL**

1. **Breach of the covenants/terms of the tenancy agreement**
2. **Failure of the tenant to pay rent (arrears of rent).**
3. **Premises is being used for illegal purposes**
4. **The Landlord requires same for his personal use**
5. Premises has been abandoned
6. The **premises has become inhabitable**
7. The premises requires immediate repairs
8. Effluxion of time

The Reliefs/ Prayers to Be Sought by the Landlord (August 2019 Q 4)

1. Delivery of possession of the premises
2. Arrears of rent
3. *Mesne* profit (this is the amount of money the landlord would have made if the tenant had left the premises as at when due. It starts counting on the expiration of a valid notice to quit)
4. Damages for breach of covenant or terms
5. Damages for waste or misuse of the premises
6. Cost of instituting the action

NB – May 2011

Once the Landlord has fulfilled any of the conditions or grounds contained in **Section 25 TLL**, he is entitled to judgment being entered in his favor for possession of the premises. It does not matter that the tenant has no alternative accommodation.

The court FROWNS against self-help – Ojukkwu v Govt of Lagos state

REFERENCE TO ARBITRATIOM – S. 30 TL

1) Parties bound by arbitration clause
2) Jurisdiction not ousted
3) Award as judgement in court

COUNTER CLAIM BY THE TENANT

The tenant/defendant may counterclaim as follows: **S. 16 & 17 RPA, Iheanacho v Uzochukwu**

1. **Compensation for unexhausted improvements on the premises by the tenant. For the tenant to succeed on this claim, he must prove that the improvements were carried out on the WRITTEN AGREEMENT (Not oral consent) of the Landlord. – March 2021**
2. **Refund of unexhausted rent paid in advance.**
3. **Damages for wrongful ejection and that his tenancy is still subsisting.**
4. **Damages for trespass to his property through unlawful ejection.**

Enforcement of Judgment Under Recovery of Premises

Where after the hearing, the Landlord is found to be entitled to possession (i.e. judgment was entered in favour of the landlord), the court may issue a **WARRANT OF POSSESSION** after **14 days from** the date the judgment was delivered except the judgement stipulates otherwise; **S. 20 RPA, S. 39 TLL**

For money judgement – **Writ of Fi Fa (3 days)** used where the landlord wants the tenant to pay arrears

Where mesne profits or a sum for the use and occupation of the premises are claimed, the claim shall show the rate at which such sum is claimed, and

where it is proved, judgment shall be entered for the amount so proved. S. **31 TLL**

A person who has been put out of possession under a warrant of possession and unlawfully retakes possession of the of the premises after possession has been given to the landlord is guilty of an offence and liable on summary conviction to a fine of one hundred naira or imprisonment for 6 months or both. **S. 27 RPA**

CHAPTER SEVENTEEN

ELECTION PETITION

August 2018 Q 3, April 2019 Q 6, August 2019 Q 5 , January 2020 Q 2)

Applicable Laws

1. **Electoral Act 2022**
2. **CFRN**
3. **The Election Tribunal and Court Practice Direction made by the President of the Court of Appeal pursuant to Section 140(2) of the Electoral Act 2022 as amended.**
4. **Federal High Court Civil Procedure Rules (Where there is a lacuna in the court practices or electoral act) Maintains Nomenclature of "PLAINTIFF" and not "CLAIMANT"**
5. **Federal High Court Pre-Election Practice Direction 2022**
6. **Judicial Authorities/Case Laws/ Stare Decisis**

PRE-ELECTION MATTERS

This relates disputes arising from intra party affairs like **primary elections, nomination of candidates** or other disputes arising before the conduct of an election. **APC v LERE**

(see Jan 2020 Q 2d, Dec 2020 MCQ Q 6-10)

Jurisdiction in Pre-Election Matters

All pre-election matters arising from party primaries or substitution of candidate by political parties are to be instituted before the **FEDERAL HIGH COURT**; ***Section 84(14) Electoral Act*** **(bar final Jan. 2020 Q 2d, MCQ Dec 2020)**

An election tribunal has **NO JURISDICTION** to entertain pre-election dispute **PDP v Onwe**

The parties are: Plaintiff v Defendant

Time to Commence Pre-Election Matters:

All pre-election matters are to be instituted **not later than 14 days FROM** the date the occurrence of the decision or cause of action arose.

S 285 (9) CFRN, Garba v. APC

When filed outside the prescribed time limit of **14 days it is statute barred**

Mode/Originating Process for Commencing Pre-Election Matters

The action is to be commenced by **Originating summons**. This is because the facts are always straight forward and it mostly involves interpretation of rules/laws. **S. 4 FHC Pre- election Practice Directions 2022**

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Pre-election matters Under the CFRN 1999
Section **285(14) (a)-(e)** recognises three types of pre-election matters which are:

1.Complaint by an aspirant directed at his political party that it has failed to comply with Electoral Act, party constitution or party guidelines in the conduct of the party's primary election.

2.Complaint by an aspirant directed at INEC for not complying with the provisions of CFRN and the Electoral Act in respect of their participation in the election. See **APC v. Dele Moses.**

3.Complaint by a political party directed at INEC against its administrative decisions regarding a party's nomination or disqualifying its candidate from participating in election.

Pre-election matters Under the Electoral Act 2022

1.**A candidate who participates in a primary election can challenge any false affidavit submitted to INEC by party's candidate as to the constitutional requirements to contest**. See **Section 29(5) Electoral Act 2022.**

2.Complaint by an aspirant that any of the provisions of the Electoral Act or party's guideline has not been complied with. See **Section 84(14) Electoral Act 2022.**

The Order the FHC Will Make If It Is Established That the Affidavit Submitted to INEC is False
The order the FHC will make are: **Section 29(6) of Electoral Act**

a.Disqualification of the Candidate

b.Declare the candidate with the second highest number of votes and who satisfies the constitutional requirement of winner of the election.

Time for Determination of Pre-Election Matters:

The court must deliver its judgment **not later than 180 days**[2] from the date the action was filed. **S. 285(10) CFRN**

When Pre-election matters is heard and **determined outside 180 days IT WILL BE SET ASIDE ON APPEAL** – **Tuggar v Bulicachuwa**

APPEAL FOR PRE-ELECTION MATTERS

Appeal against any decision in pre-election matters **shall be filed within 14 days FROM** the day the judgment was given**. S. 285(11) CFRN**

Appeal must be heard and disposed with **not later than 60 days**[3] from the day it was filed. **S. 285 (12), Toyin v Musa**

Appeals in pre-election matter **terminates at the Supreme Court PDP v Onwe**

ELECTION PETITION II

Persons Disqualified from Contesting Elections in Nigeria

1. Non-Nigerians
2. Persons of unsound mind
3. An ex-convict
4. A member of secret court
5. A minor

JURISDICTION OVER ELECTION PETITIONS; (see April 2019 Q 6ii, Jan. 2020 Q 2a)

1. For **PRESIDENTIAL ELECTIONS**; the **Court of Appeal** will assume jurisdiction **See s. 239(1) & (2) CFRN, Atiku v Buhari**

[2] 6 Months
[3] 2 Month

2. For **GOVERNORSHIP**/gubernatorial elections; **"Governorship Election Tribunal"** has exclusive jurisdiction –**S. 285(2) CFRN**

3. For the **National Assembly or State House of Assembly** the "**National and State Houses of Assembly Election Tribunal**"; **S. 285(1) CFRN**
4. **Local government election tribunal**
5. **Area council election tribunal of the FCT – S. 131 Electoral Act**
6. **Area council election appeal tribunal – S. 132**

NOTE:

The **Federal High Court** has jurisdiction to determine whether the term of office of the members of the National Assembly(**senate**) has ceased or his seat has become vacant. **See S. 251 CFRN**

The **Federal High COURT** has jurisdiction to hear or determine whether the term of office of:

a. a member of the House of assembly of a state,

b. a governor or

c. deputy Governor

has ceased or become vacant. **S 273(3) CFRN**

AGE FOR CONTESTING ELECTIONS IN NIGERIA

that under the **NOT TOO YOUNG TO RUN ACT:**

- ⇨ Presidency 35 years,
- ⇨ Governorship 35 years

Commented [MOU48]:
COMPOSITION
Chairman and 2 member
QUORUM
2

Commented [MOU49]:
COMPOSITION
Chairman who shall be a judge of a high court. 2 Members appointed from the judiciary and not below the rank of Chief Magistrate.

Commented [MOU50]:
Composition
Chairman plus 2 Members. See Section 131(2) of Electoral Act 2022.

Qualification
Chairman – Chief Magistrate
Other Members – Magistrates. Section 131(3) of Electoral Act

Appeal
Goes to the Area Council Election Appeal Tribunal

Commented [MOU51]:
Decision of the Area Council Election Appeal Tribunal
The Decision is final. See Section 132(2) of Electoral Act.

- Senate **30 years.**
- House of Representatives and House of Assembly for states **25 years;**

A candidate for presidential and governorship election **should not have been elected to such office at any two previous occasion Njoku v Jonathan**

QUALIFICATION for Contesting An Election

COMMENCEMENT OF ACTION

The mode of challenging an election is by **PETITION**, **130 E.A, accompanied by the following documents– (August 2018 Q 3d, Jan 2020 Q. 2c)**

a. List of witnesses the petitioner intends to call in proof of petition
b. written statements on oath of the Witnesses
c. Copies or list of every document to be relied on at the hearing of the petition;

Para 4 1st Schedule to the Electoral Act; ***ACN v. Lamido***

Where the above documents are not frontloaded, it will not be accepted by the secretary for filing.

CONTENT OF THE PETITION – Para 4(1) First Schedule to the Electoral Act. May 2011 No 6(4)(a)

1. Headed in the appropriate tribunal/court
2. Petition Number
3. Parties
4. Title (Petition)
5. Parties interested in the petition and right of the petitioners to present the petition

Commented [MOU52]:
The requirements for contesting an election is contained in the constitution as follows:
1.Section 131 and 137 (Presidential)
2.Section 177 and 183 (Governorship)
3.Section 65 and 66 (National Assembly)
4.Section 106 and 107 (State House of Assembly).

The combine criteria of the above prescribed Sections are:
1.The Candidate must be a Nigerian Citizen.

2.He must be educated up to school certificate or its equivalent.

3.He must not be under sentence of death or imprisonment for offence involving dishonesty or fraud.

4.He must not be adjudged a lunatic or of unsound mind.

5.He must not be an undischarged bankrupt.

6.He must not be guilty of contravention of the code of conduct less than 10 years before the date of the election.

7.He must not be employed by state or federal public service within 30 days immediately before the date of election.

8.He must not be a member of any secret society. (Secret Society is defined in **Section 318 CFRN, Registered Trustee of AMORC v. Awoniyi.**

9.He must have attained the required age. (35 years for Presidential Election – 35 years for Governorship & State – 25 years for House of Reps & House of Assembly).

10.A candidate must be a member of a political party and sponsored by that political party.

11.A candidate for Presidential & Governorship election should not have been elected to such office at any two previous occasions. **Section 137(1)(b) CFRN – Njoku v. Jonathan.**

NOTE: An indictment by a judicial commission of inquiry is no longer a reason to bar a person from contesting.

6. Holding and result of the election
7. Grounds of the petition
8. Facts of the petition
9. The prayers/reliefs sought
10. The name and signature of the petitioner of a Solicitor named at the foot of the petition;
11. Address of the petitioner
12. Address of the respondent

PARTIES TO ELECTION PETITION – May 2011

For the purposes of **s. 133 (3) Electoral Act** only two persons or entities are entitled to present an election petition.

1. **The Petitioner**: This may be
   a) **candidate** in an election or
   b) a **political party which participated in the election and lost**– ***Egolum v. Obasanjo*;**

2. **The Respondent**: This must include
   a) the **Political party of the successful party**
   b) **Independent National Electoral Commission** which conducted the election; ***Buhari v. Yusuf*.**

QUERY

Can a person who lost an election sue the person who won + another person who lost as a respondent? **NO**, a candidate who contested and lost cannot be made a respondent **– Buhari v. Yusuf.**

Commented [MOU53]:
THOSE CANNOT PRESENT A PETITION
A person who was neither
a.a candidate in an election
b.not a member of a political party
c.was not sponsored by a political party to contest the election and
d.who did not specify the nature of his right to present the petition **was held incompetent to present a petition**. **EGOLUM v.OBASANJO.**

A person who failed to secure the nomination of his party but claim to have been wrongly excluded is **INCOMPETENT** to present an election petition (i.e. intra party dispute) **NEC v. NRC - ANÁZODO V. AUDU**

A political party that failed to present a candidate for election is incompetent to present a petition. **EGOLUM v. OBASANJO**

A person who was properly nominated by his party but was unlawfully excluded by the electoral commission from contesting the election is competent to present a petition. OJO v. ABÖGUNRIN

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though not expressly stated in the law, the political party of the successful party may be joined and failure to join such a party is not fatal. See OBASANTO V BUHARI.

SUBSTITUTION OF PARTIES FOR AN ELECTION

A person duly nominated by his political party may before the election be substituted either by:

- ⇨ Death
- ⇨ Withdrawal not less **than 45 days** before the election; ***Amaechi v. INEC*, Ugwu V Ararume**

Presentation of Election Petition (Very Important)

An election petition by an aggrieved party is to be presented **within 21 days AFTER** the declaration of the election results. **S. 285 (5) CFRN, 132(7) Electoral Act**; ***Udokpo v Archibong***.

The date of declaration of the results is **EXCLUDED** from computation: **S. 15 (2) Interpretation Act**; ***Yusuf v Obasanjo.***

It cannot be filed on the day of the declaration of result

NOTE THE FOLLOWING POINTS:

- ⇨ The period for the presentation/filing of the petition **CANNOT BE EXTENDED**; ***Falae v. Obasanjo*, Ugwu v. Igwe.**
- ⇨ Where the last date for presentation of election is a Sunday, Sunday is a non-juridical day according to Interpretation Act and the petition will be competent if filed on next Monday: ***Kabir & Anor v CAN***.

GROUNDS FOR ELECTION PETITION (very important; See August 2018 Q 3e, April 2019 Q 6iv, August 2019 Q 5a)

Election may be questioned on any of the following grounds: **Sect. 134 EA**

b. That a person whose election is questioned was at the time of the election, **not qualified to contest the election**.

Commented [MOU55]:
The question might be painted in a way that the petitioner filed outside the 21 days period and judgement given outside of the 180 period and you'll be asked to comment. See March 2021 Q 4A, In such case your answer will be:

> **In the instant case, the petition was filed out of time and the judgment was also delivered out of time; the petition ought not to be entertained in the first instance by the Tribunal and supposing it was dully filed, the judgment is still irregular and therefore a nullity having been delivered out of time; section 285(6) CFRN; *ANPP v Goni***

Action by the Secretary After The Petition has been Presented

1. Cause of notice of presentation of the election petition to be served on the respondent.
2. Post on the tribunal notice board a CTC of the election petition.
3. Forward a CTC of the petition to the members of the election tribunal.

Paragraph 7 of the 1st schedule to Electoral Act 2022

Commented [MOU56]:
How to Calculate the 21 Days For Filing the Petition
The day the result is declared is not reckoned with. It starts to run the next day after the declaration of the result **inclusive of Saturdays and Sundays. See Imerh v. Okon. If the 21st day falls on a Sunday or non**-juridical day, it can be filed the next day following the Sunday that is Monday. See Section 15(2) of the Interpretation Act – Kabir v. CAN.

c. That the election was **invalid by reason of corrupt practices or non-compliance** with the Electoral Act e.g. overvoting

d. That the respondent was **not duly elected by majority of lawful votes cast at the election;**

Any ground outside the above recognized by the Act **is incompetent** – **Obasanjo v Yusuf**

NOTE THE FOLLOWING=>

- ⇨ Each ground must have particulars.
- ⇨ The ground for the election petition must be confined/ restricted to the grounds stated in the Electoral Act otherwise it will be struck out. **Thus undue influence is not a good ground-** ***Ojukwu v. Obasanjo***

THE PRAYERS /RELIEFS IN ELECTION PETITION

There are only two prayers that can be sought in an election petition. They are:

1. That the election be **declared null and void** OR
2. That the petitioner be declared the winner of the election;

NOTE:

that the petitioner **cannot ask for both reliefs jointly** but rather in the alternative**; (i.e. disjunctively)** otherwise the petition will be **Struck Out;** ***Opia v. Ibru***; **(Bar Final August 2017 Q 6g).**

However, if the prayers are made in the alternative, the Court will determine the appropriate one to grant.

By **Section 285(13) CFRN** an election tribunal or court **shall not declare any person a winner at an election** in which such a person has not fully participated in all stages of the election

FILING OF THE PETITION

The petitioner shall pay upon presentation of the election petition, a requisite fee for service, publication of the petition, and for certifying the copies of the petition.

Failure to pay filing fees the petition **shall be deemed not to have been received; unless the Tribunal or Court orders otherwise.**

SIGNING OF THE ELECTION PETITION

- It is to be signed by the petitioner or his legal practitioner at the foot of the petition.
- It must be signed in the presence of the secretary/Registrar of the Tribunal.

SECURITY FOR COSTS - May 2011 No 6(6)

- The **Petitioner** shall deposit the **sum of N200,000 (200k).** as security for costs, at the presentation of the petition. In addition, there shall be a **further deposit of N200,000** to make up for the cost of service of notices, **registered postings and all other expenses** which may be occasioned by the Petitioner.
- **Failure to pay the security for cost** will cause the Tribunal to **stay proceedings until it is paid**; ***Nwobodo v. Onoh; Awojobi v. INEC***

ENTRY OF APPEARANCE - Paragraph 9 of the 1st Schedule EA

If after being served, a Respondent wishes to oppose the election petition, he shall enter an appearance by filing in the Registry **a MEMORANDUM OF APPEARANCE in form TF 004** not later **than 5 days** but not **more than 7 days** of the receipt of the petition.

Failure to file a memorandum of appearance by the Respondent, all subsequent documents to be served on the Respondent will be pasted on the notice Board of the Tribunal/Court and he will be deemed to be served.

NB=> However, the **non-filing** of a memorandum of appearance shall not bar the Respondent from defending the election petition **if** the Respondent files his reply to the election petition within a reasonable time, but not later than **21 days** from the receipt of the election petition.**; Paragraph 10(2) First Schedule to Electoral Act**

FILING OF REPLY

The Respondent shall file **his reply within 21 days** of the service of the petition on him**; Para 12(1) First Schedule to the Electoral Act.**

DOCUMENTS THAT SHALL BE FRONTLOADED WITH THE REPLY TO THE PETITION.

The Reply to the election petition shall be accompanied by-

1. A list of the witnesses
2. Written statements on oath of the witnesses;
3. Copies of documentary evidence. See Paragraph

12(3) of the First Schedule to the Electoral Act.

FURTHER REPLY BY PETITIONER

The Petitioner is to file a **further REPLY** to the Respondent's **Process within 5 Days** of the receipt of the Reply **if**

a) new issues were raised in it or
b) he intends to reply on a point of law.

AMENDEMENT OF ELECTION PETITION AND REPLY

The extent to which an amendment to a Petition/Reply will be allowed is that it is to be done **within 21 days** allowed for the presentation of the Petition.

After the 21 days, no amendment can be made or allowed; ***Ige v. Olunloyo; Ngige v. Obi.***

NOTE:

if amendment is only to correct typographical error on the petition, it may be allowed. **Bola Ige v. Dr Olunloyo**, **Oke v Mimiko**

Circumstances when Amendment of Petition would not be allowed after Filing: ***Paragraph 14(2) of the 1st Schedule Electoral Act***

a) To introduce any of the requirements of the contents of a petition in para 4(1).
b) Effecting a substantial alteration of the ground or prayer in petition.
c) Effecting a substantial alteration of facts supporting a ground or prayer except as permitted under the Act.

PRE-HEARING AND SCHEDULING

- Pre-hearing session is a **condition precedent** to the hearing of an election petition. **Okereke v Yaradua, Awojobi v INEC**.

PROCEDURE:

- **Within 7 days after filing and service** of the Petitioner's Reply or receipt of Respondent's Reply. **The petitioner applies** for issuance of pre-hearing notice as in **FORM TF007.** The pre hearing notice is accompanied by pre hearing information sheet in **FORM TF008**. See Paragraph 18 1st Schedule Electoral Act

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PROCEEDINGS AT THE PRE-HEARING SESSION
At the pre-hearing session, the tribunal or court shall enter a scheduling order for-

1.Joining other parties to the petition;

2.Amending the petition or reply or any other processes

3. Filing and adoption of written addresses on all interlocutory applications;

4.Additional pre-hearing sessions;

5.Order of witnesses and tendering of documents that will be necessary for the expeditious disposal of the petition;

6.Any other matters that will promote quick disposal of the petition in the circumstances.

An application for pre-hearing notice may be by simple application by way of letter. It need not necessarily be by way of a motion ex parte or on notice.

Commented [MOU58]:
There is no extension of time within which to apply for the pre hearing notice as in **FORM TF007**.
Failure to apply for pre-hearing notice as in FORM TF007 the respondent can bring an application to dismiss the petition.

- It is to be **concluded within 30 days** of its commencement.
- Where the **PETITIONER fails to bring an application for pre-hearing conference,** the **Respondent** may bring the application **or** the Respondent may by **motion** apply for an order to **dismiss** the petition.; **Para 13(3) 1st schedule to the Electoral Act**
- Where the **Petitioner** and the **Respondent** fail to bring an application for pre-trial session, **the tribunal or Court** shall dismiss the petition and no application for extension of time to take that step shall be entertained; **Paragraph 18(9)**
- Dismissal of a petition here shall be final and the tribunal or court shall be ***functus officio***.

BURDEN AND STANDARD OF PROVE IN ELECTION PETITION

- The burden of proof lies on the party who will lose if no evidence is led on either side; **section 133 Evidence Act**. This means that the burden of proving that there was something wrong with the election lies with the **Petitioner** after which the burden shifts to the **Respondent**.

- The standard of proof required as in all civil matters is on **preponderance of evidence**. S. 135 EA
  However, **where crime or fraud is alleged** by the petitioner (e.g. forgery, bribery, snatching of ballot box etc.**), the standard of proof** will be **BEYOND REASONABLE DOUBT; section 135 Evidence Act, *WADA v INEC*, (see August 2018 Q 3f and April 2019 Q 6vi)**

- Where allegation of facts are intwined with crime it is **proof beyond reasonable doubt**

CONSEQUENCES OF ABSENCE AT HEARINGS

1. If the **both parties** fail to appear for hearing, the petition **will be dismissed and it cannot be re-listed.**
2. If it is the **Petitioner** that is absent from the hearing, the Respondent is to **apply that the Petition be struck out or dismissed.**
3. Conversely if the **Respondent** fails to appear for the hearing, the Petitioner can apply for it to be heard and prove his case. The Court/Tribunal shall **enter final judgment on the Petition.**

WRITTEN ADDRESS

This is to be filed by the parties after the close of evidence. The order of filing depends on whether or not the Respondent led evidence.

- **If the Respondent called evidence in the trial:**

The Respondent is to first file his written address **within 10 days of the close of evidence** and

the **Petitioner** is **to reply within 7 days** of the receipt of the Respondent's address.

The **Respondent** can respond to the **Petitioner's reply** address **on point of law within 5 days**

- **If the Respondent did not call any evidence in support of his case**

The **Petitioner** is to first file his address **within 10 days** of the close of evidence and the Respondent is to **reply within 7 days.**

JUDGMENT IN ELECTION PETITION

(August 2019 Q 5b, Jan. 2020 Q 2f March 2021)

The trial should be concluded and judgment delivered **within 180 days**[4] of the presentation of the petition**: s. 285 (6) CFRN;** ***ANPP v Goni***

NOTE: The time limit for the conduct of the trial cannot be extended. Therefore, any judgment **delivered outside the 180 days is invalid**; ***Goni v. ANPP, Nwobodo v Onoh.***

DELIVERY OF JUDGMENT AND RESERVING THE REASONS (Exam Area)

- ⇨ One of the essential elements of a valid judgment is that it must contain the reason or reasons for the Judgment of the court/Tribunal; ***Adeyeye v Ajiboye*. Therefore, no Tribunal in election petition has the power to deliver judgment and give reason later.**

- ⇨ **NOTE:** As an **exception** to the above principle on law, all final appellate courts like the Supreme Court (or the Court of Appeal if sitting on appeal from National and State Houses of Election Tribunal) can deliver its judgment and give reasons later; **See *ANPP v Goni; Amaechi v. INEC; section 285(8) CFRN***

APPEALS IN ELECTION PETITION

A Notice of Appeal challenging the judgment of a Court/Tribunal on election petition cases is to be presented **within 21 days** of the decision; **S. 143 of the Electoral Act; S. 285(7) of the 2nd Alteration Act CFRN**

[4] 6 months

NOTE: **There is NO EXTENSION of time** within which to file an appeal as time is of the essence in election petition cases.

The **Notice of Appeal** is to be **filed at the Registry of the Court/Tribunal** that heard the petition.

APPEALS FROM THE DECISION OF ELECTION TRIBUNALS

- **Presidential** elections appeal **lies to the Supreme Court.**
- **Governorship** election appeal lies to the **Court of Appeal and a further appeal may lie to the Supreme Court** ***Marwa v Nyako, ANPP v Goni***
- **National and State house of Assembly** election appeal **lies and ENDS at the Court of Appeal. S. 246(3)**

Commented [MOU59]:
Not less than 5 Justices. Section 234 CFRN

TIME LIMIT FOR HEARING OF APPEALS

An **appeal is to be heard and disposed of within 60 days** from the date the appeal was filed. The time limit cannot be extended. ***Marwa v. Nyanko***., **S. 285(7) CFRN**

CHAPTER EIGHTEEN

MATRIMONIAL CAUSES

(This is also another exam focus area and has appeared in the following years; **August 2017 Q 3B, 2018 Q 2 f & g, April 2018 Q 5, April 2019 Q 3ii & iii)**

APPLICABLE LAWS

1) Matrimonial Causes Act (MCA)
2) Marriage Act
3) Matrimonial Causes Rules
4) Evidence Act 2011

SCOPE-AND APPLICATION OF THE MCA

- ⇨ The marriage discussed here or relevant here is marriage under the Act otherwise called Statutory Marriage.
- ⇨ The provisions of the Matrimonial Causes Act only apply to **valid** marriages conducted under the Act.
- ⇨ There is nothing like church marriage. **A church marriage only gives blessing** to a customary marriage.
- ⇨ In ***Nwangwu v. Ubani*****,** the Court held that mere celebration of a marriage in a church does not confer statutory flavour to the marriage.
- ⇨ In order to **convert** a customary law marriage into a statutory marriage, the parties must consciously take steps and adopt the procedure contained in the Marriage Act; ***Martins v. Adenugba***

ESSENTIALS OF VALID MARRIAGE UNDER THE ACT

1. The parties must consent to the marriage and must not be validly married to another.
2. They must be within the marriageable age (i.e. **21 years** under the Marriage Act **but** it varies from state to state) Note that where the bride is a minor, the consent of the parent or guardian or that of the governor is required **(unless she was already widowed).**
3. The parties must not be within the prohibited levels of **consanguinity and affinity** (related by blood or marriage)
4. The Registrar will display of notice of intention to marry on the Notice Board in Marriage Registry and enter it into the Marriage Register.
5. The parties must have been **resident within the District, 15 days** prior to the issuing of certificate.
6. **If there is no objection after 21 days**, the Registrar will issue the Marriage Certificate.
7. The marriage must be celebrated **within 3 months** of publication of the Notice to marry.

VARIOUS WAYS OF CELEBRATION OF MARRIAGE

1. By special licence under the hand of Minister of Internal Affairs **S. 13 MA, Ijeoma v Ijeoma**
2. By the Registrar in the Marriage Registry **S. 27 Marriage Act (MA)**
3. By celebration abroad in a Nigerian Diplomatic Mission S. **50 Marriage Act**
4. By a minister of a religious denomination **in a licensed place of worship**

Commented [MOU60]:
Contents of the Marriage Certificate (FORM E)
1.The Certificate Number
2.The Date of the Marriage
3.Name of Parties
4.Names of the Witnesses. Section 25 Matrimonial Act.

Commented [MOU61]:
It must be celebrated between the hour of 8 A.M and 6 P.M

Note: Whether it is celebrated at the Registry or Licensed Place of Worship, 2 Witnesses must be present AND The doors of the venue must be open

PLEASE NOTE VERY CAREFULLY

- Marriage under the Act is monogamous. Thus, once you are married under the Act, you cannot marry another person under the Act or under Customary Law; **Section 47 Marriage Act;** ***Chukwuma v Chukwuma***
- A person married under **Native Law And Custom CANNOT** marry any other person under the Act **EXCEPT** the one he married under native law and custom; Section **46 Marriage Act**
- Both customary law marriage and marriages under the Act are regarded as valid marriages but the distinction is for the purpose of the application of the Matrimonial Causes Act.

JURISDICTION UNDER MCA (Bar Final August 2017 Q 3B, April 2018 Q 5e, April 2019 Q 3ii)

Jurisdiction over matrimonial causes is vested in the **State High Courts.** The basis of any state High Court assuming jurisdiction in Matrimonial Causes is the **DOMICILE**, of the husband ***Bhojwani v. Bhojwani.*** , **Section 2(3) MCA.**

Therefore, any High court in Nigeria can assume jurisdiction irrespective of where the marriage was contracted.

NOTE: The court may for the purpose of convenience transfer the matter to the high court closer to the parties;(**Forum Convenience**) ***Adegoroye v. Adegoroye; Ugo v. Ugo;*** **section 9 (2) of the MCA**.

Commented [MOU62]:
Jurisdiction of the Court Where the Marriage is Celebrated Outside Nigeria
1.Requirement of Domicile
2.Requirement of ***lex loci celebrationis***

Commented [MOU63]:
Mode of Acquiring Domicile
1.By Origin
2.By Choice
3.By Marriage

Instances Where A Woman's Acquisition of Her Husband's Domicile Will Cease
1.Where the marriage is void ***ab initio***.
2.Where the marriage has been terminated or nullified by divorce. See Osibamowo v. Osibamowo.

A court may stay action pending before it, if another matrimonial cause is pending before another court of competent jurisdiction **between the same parties**. **Section 9(1) MCA – Harriman v. Harriman.**

TYPES/RELIEFS UNDER MATRIMONIAL CAUSES –Sect 2(2) MCA

1. Dissolution of marriage;
2. Nullity of marriage
   a. Nullity of void marriage
   b. Nullity of voidable marriage
3. Judicial separation
4. Restitution of conjugal rights
5. Jactitation of marriage;

The first 2 above are the main areas of focus

1. **DISSOLUTION OF MARRIAGE; (Most Important for Bar Final)**
   - ⇨ The **SOLE GROUND** on which a decree of dissolution of marriage will be granted is that **'the marriage has broken down irretrievably'**; **section 15(1) MCA**; ***Harriman v. Harriman***; ***Megwalu v. Megwalu*** **. March 2021**

FACTORS THAT CAN SHOW THAT THE MARRIAGE HAS BROKEN DOWN IRRETRIEVABLY: **section 15(2) MCA**

1. The Respondent has wilfully and persistently **refused to consummate the marriage.**
2. The Respondent committed **adultery** and the petitioner finds it intolerable to live with him/her. To prove adultery, it is usually difficult

Commented [MOU64]:

Differences Between Void and Voidable Marriage

1.A void marriage is nullity ab initio; but a voidable marriage is valid until it is avoided.

2.No action in bigamy can stand in case of a void marriage; but an action in bigamy can stand in case of a voidable marriage.

3.Anyone can challenge a void marriage; but only parties to marriage can challenge a voidable marriage.

4.A void marriage can be put in issue at any time even after the death of the parties; but a voidable marriage is impeachable after the death of either of the parties.

using direct evidence and only circumstantial evidence are mostly available i.e. compromising positions can infer adultery. ***Akinyemi v. Akinyemi.***

3. Since the marriage, the Respondent behaved in a way that the Petitioner **CANNOT** reasonably be expected to live with him/her which may include any/ all of the following: **(s. 15(2)(c) MCA)**
   a. Rape, sodomy and bestiality
   b. Habitual drunkenness
   c. Addiction to drugs
   d. committing sexual offences
   e. Imprisoned for a death sentence
   f. He is cruel or beating the spouse
4. The respondent deserted the Petitioner for a **continuous period of at least one year** before the filing of the petition

5. The parties have been living apart for **2 years with no objection** by the Respondent

6. The parties have been **living apart for 3 years** immediately preceding the presentation of the petition. **-S. 18 of the MCA.**

7. Failure of the respondent to comply with a decree of restitution of conjugal rights **after one year of the Court Order.**

8. Presumption that the Respondent is dead because he has been **absent for not less than 7 years**. - **S. 164 of the Evidence Act and S. 16(2) (a) of the MCA; S. 15(2) of the Matrimonial Causes Act.**

Filing Of a Petition for a Decree of Dissolution of Marriage within 2 Years of Marriage

The **general position** of the Law is that ordinarily no petition for the dissolution of a marriage **within 2 years** of the marriage is allowed. The rationale is to give the couple the opportunity to settle and be able to live together; ***Fisher v. Fisher***.

However, if a spouse insist on filing a petition for dissolution of a marriage within the two years of the marriage, the **leave of Court** must be applied and **obtained** for the petition to be heard; **S. 30 (1) of the MCA. – March 2021**

Application for Leave: - March 2021

The procedure for the application of leave is to file a **Motion Ex PARTE + AFFIDAVIT** exhibiting the proposed Petition for the dissolution of the marriage**; O. 4 R. 3 & 4 of the Matrimonial Causes Rules (MCR).**

The **affidavit is to disclose:**

a. **exceptional hardship** for the petitioner or
b. **exceptional depravity on the part of the respondent**: **S. 30 (3) MCA; *Akerele v. Akerele; Majekodunmi v. Majekodunmi.***

EXCEPTIONS: the leave of court will not be necessary in marriages less than 2 years in the following cases: s. 15 (2) (a) (b) and (c) MCA

1. When there is a wilful and persistent **refusal to consummate the marriage**
2. The **respondent has committed adultery and it is intolerable**
3. The respondent committed rape, sodomy, bestiality and other unnatural acts

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Reconciliation in Matrimonial Causes – Section 11-13 MCA
1.The court is enjoined to encourage reconciliation, even after petition has been instituted.
2.The judge may adjourn proceedings to allow reconciliation.
3.The judge may interview parties in chambers – with/without counsel to reconcile them. The judge may also nominate an experienced person to reconcile the parties.
At the request of either party made not less than 14 days after an adjournment for settlement, the court shall resume proceedings.

A judge who was involved in reconciliation may continue to hear the matter upon the consent of the parties. Evidence of anything said/admitted during the reconciliation is inadmissible at the trial.

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In the determination of application to grant leave, the court shall consider
1.the interest of any children to the marriage and
2.the probability of the reconciliation between the parties before the expiration of two years after the date of the marriage

Commented [MOU67]:
See. Order 4 Rule 1 MC Rules 1983) and must be accompanied by affidavit stating
1.the particulars of hardship that will be imposed on the applicant if application is refused or the depravity on the part of the respondent.

2.The grounds upon which the proposed petition is to be based.

3.Whether or not previous application, had been made and whether it was successful or not.

4.Whether there is a living child of the marriage. If so then the particulars of the child and of the person with whom he/she resides.

5.Whether reconciliation has been attempted and particulars of it.

6.Particulars of any other circumstances that may assist the court in determining whether or not reconciliation from the evidence may succeed before the expiration of two years after the marriage.

4. Where the institution of the proceedings is by way of cross-petition. **S 30(2) MCA.**

Defence and Bars to Petition for Dissolution of Marriage

NULLITY OF A VOID MARRIAGE – S. 3 MCA

The focus of a petition for a decree that the marriage is void is based on the valid elements of a marriage under the Act.

Grounds For The Grant of A Decree of Nullity of Void Marriage

1. Either of the parties at time of marriage was lawfully married to some other person; **S. 35 of the Marriage Act;** ***Oshodi v Oshodi***

2. The parties are within the prohibited degree of consanguinity and affinity; Note that those within the prohibited degree of affinity (relations by marriage) can marry if the leave of the Court is sought and obtained. **S. 4 of the MCA.**

3. The marriage is **Invalid** as it failed to comply with the requirements of solemnisation, **S. 33(2) of the Marriage Act** which is to the effect that a marriage will be void if **both parties knowingly and wilfully acquiesced** in the celebration of a marriage in a place. not valid by the law for celebration or that the marriage was celebrated under a false name; ***Chukwuma v. Chukwuma***

4. There is the absence of real **consent** of the parties to the marriage because the consent was obtained by duress or fraud, mistake of the identity of the other party;

Commented [MOU68]:
Generally, a petition for dissolution of marriage may be refused even if the factual situation in Section 15(2) MCA is met.
Dissolution of marriage may be refused or barred by **absolute bars** under Sections 26 and 27 MCA or **discretionary bars** under Section 28 MCA.

Absolute Bars
Condonation= Knowledge + Forgiveness + Reinstatement. It is the forgiveness & reinstatement of spouse by the petitioner (against whom the matrimonial misconduct/offence was committed) who has knowledge of the misconduct on the condition of no future matrimonial misconduct by the condoned spouse (as such misconduct may revive the condoned act) **Harrison Obafemi v. Harrison Obafemi**.

Connivance:
Express/Implied/acquiescence/encouragement of the matrimonial misconduct. It presupposes the petitioner's consent has been freely given to the matrimonial misconduct. See Godfrey v. Godfrey.

Collusion: Agreement between parties/their agent to procure, commence and prosecute proceedings for divorce, with aim at perverting justice. A decree of dissolution of marriage shall be refused where the petitioner in bringing the or prosecuting the petition is guilty of collusion with intent to cause perversion of justice- Section 27 MCA.

NOTE: A petitioner is required to state in the petition that/he has not condoned or connived at the ground/facts relied on for the petition and is not guilty of collusion in presenting the petition – See Form 6 MCR.

Effects of Condonation/Connivance ... [1]

Commented [MOU69]:
Discretionary Bar
A court may exercise its discretion to grant or refuse a decree of dissolution of marriage under – Section 28 MCA where:
a.Petitioner's Adultery: The petitioner has committed adultery that has not been condoned by the respondent or having been so condoned, has been revived.

b.Petitioner's Desertion: The court has a discretion to refuse a dissolution of marriage in favour of a petitioner who has wilfully deserted the respondent before the commencement of the petition. See Section 28(b) MCA. If the petitioner has a good cause for deserting the respondent, the conduct will not constitute discretionary bar.

c.Conduct Conducting: the habits of the petitioner have, or the conduct of the petitioner has, conduced or contributed to the existence of the matters relied on by the petitioner.

5. **Either party is not of a marriageable age (21 years).** Note that they can marry even if they are not of age with parental consent; **S. 3 of the MCA.**

NULLITY OF A VOIDABLE MARRIAGE (Take Note)

This will arise where the marriage is valid from the beginning but may be declared void at the instance of any the parties.

The marriage when conducted is **valid until set aside** by the Court and only a person aggrieved can bring a petition for its nullity - **S. 5 MCA**

Grounds for Nullity of Voidable Marriage - S. 5 of the MCA

1. Either party at the time of the marriage was **incapable of consummating the marriage**

2. Either **party at the time of the marriage is of unsound** mind or mentally defective, or subject to recurrent attacks of insanity or epilepsy

3. A party at the time of the marriage is suffering from **venereal disease in a communicable form**

4. The wife is pregnant for another person **other than her husband at the time of marriage** (this is so even if the pregnancy was before or after the marriage).

NOTE that a petition for nullity of a voidable marriage cannot be made/ filed by:

Commented [MOU70]:
Effect of Nullity of a Voidable Marriage
1.The marriage becomes annulled from the date the decree becomes absolute.

2.The decree does not affect the legitimacy of any child born by the parties during the marriage – Section 38 Matrimonial Causes Act.

a. A party suffering from incapacity to consummate the marriage **unless** the party was unaware of the existence at the time of the marriage.
b. The party suffering from the disease or disability.
c. The wife is pregnant by a person other than her husband; **Section 35 and 37 MCA,**

Petition Under Matrimonial Causes Rules

Parties to a Petition

The parties are known as:

1. Petitioner,
2. Respondent
3. A Co-Respondent must be added where the ground is adultery **Note that failure to do so will vitiate the proceedings EXCEPT:**
   - ⇨ The co-adulterer is dead or
   - ⇨ The person is under the age of 14 years or an infant under 16 years; or
   - ⇨ The Court otherwise Orders that the Co-adulterer is not to be joined. **S. 32(1) of the MCA; *Erhahon v. Erhahon, Ebe v Ebe.***

N.B

The damages will not be awarded where the petitioner

a. has condoned the adultery;
b. where adultery is not a ground for a decree of dissolution of marriage;
c. where adultery is committed more than three years before the date of the petition. (See Section 31 MCA).

Where it is alleged that a party to a marriage has committed adultery with a specific person, such person must be joined as a party. (Section 32 MCA).

PROOF OF ADULTERY

- The standard of proof required in Matrimonial Causes is **proof to the reasonable satisfaction of the court**; **section 84 MCA**
- Adultery is not easy to prove because it is always done in the dark secrets. Also that i**n** proving adultery, you must prove penetration**.**
- It usually requires proof by circumstantial evidence which is cogent and points to the only reasonable conclusion that adultery was committed; **see *Akinyemi v Akinyemi, Adeyemi v Adeyemi.***
- Note that the fact that a man and a woman were found naked on the bed has been held not to be sufficient proof of adultery; ***Erhahon v. Erhahon***

COMMENCEMENT OF ACTION

PETITION: This is filed by the petitioner and must be in compliance with statutory **FORM 6**

Documents to Accompany Petition for Dissolution of Marriage and its Purposes (Bar final August 2017 Q 3Bii, April 2018 Q 5f)

1. **Notice of Petition**:
   used to notify the Respondent of the petition against him or her **(Form 8 or 9/10)**

2. **Verifying affidavit**:
   which confirms the facts stated of which the petitioner has special knowledge and that it is true. **O. 5 r. 10 (1) of the MCR.**

3. **Acknowledgment of service:**
   which the Respondent will use to acknowledge that he has been served with the petition O. **6 r. 3(1) of the MCR**

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Contents of a Petition
There are clearly provided for in **Order 4 Rules 1-3**, The contents may be summarized as follows:
1.Introduction
2.Marriage
3.Birth of Petitioner and Respondent
4.Domicile
5.Cohabitation
6.Children
7.Facts Relied on
8.Consideration, Connivance and Collusion
9.Proposed Arrangement for Children
10.Maintenance and Settlement of Property
11.Orders/Reliefs Sought
12.Conclusion

The Procedure in Matrimonial Causes
1.Preparing & Filing of the Petition with the accompanying or frontloaded court process/verification of facts by affidavit

2.Service of the notice of the petition and the petition on the respondent, co-respondent and any other party mentioned in the petition.

3.Filing of the answer by the respondent/co-respondent – filing of reply/rejoinder.

4.Pre-trial proceedings- Holding of the compulsory conference, discovery of facts and documents, etc. Trial
.
5.Decision of court-granting or refusing a decree *nisi*.

6.Decision of Court-granting or refusing a decree nisi

7.The conversion of the decree nisi to an order absolute

8.Appeal to the Court of Appeal

4. The **Marriage Certificate**: to show that it was a valid marriage conducted under the Act.

5. **Certificate of Reconciliation**: MCQ
   (**not to be filed if it is a petition for a decree of nullity of a void marriage**) to be **signed** by the solicitor as to the **steps** taken to settle the parties. **FORM 3 MCA; O. 2 R. 2 MCR**

Discretion Statement; to be made by either of the parties who have committed adultery but **still wants a decree of dissolution of the marriage irrespective of** the adultery. It must be in accordance with **FORM 30** It states the instances of the adultery committed by the party filing it but seeking that the petition for divorce should be granted. The statement must be signed by the party who has made it, **otherwise it will be void**. It is filed in a sealed envelope marked **'Discretion Statement'**.

RESPONDENT

ANSWER: The respondent or co-respondent (where there is one) must file an answer. Where an answer contains an allegation of fact, such fact, may be denied by filing a **reply** by the petitioner. The other party may then file a **rejoinder.**

Commented [MOU72]:
If new issues arise from the answer, the petitioner shall file a **REPLY**

Commented [MOU73]:
If a new issue arises from the reply, the respondent may answer further by a document called **REJOINDER**

Compulsory Conferences In Matrimonial Causes Proceedings: Order 11 Rules 33-37

This is held where the petition includes prayers for**:**

a. **maintenance,**
b. **settlement of property,**

c. **custody or guardianship of an infant etc.**

for the parties to agree on amicable settlement on the issues before the setting down of the petition for **hearing/trial**.

ORDERS TO BE MADE UPON HEARING THE PETITION

A Decree of dissolution of marriage shall be made in the first instance known as a **Decree Nisi**. **S. 56 of the MCA**. An aggrieved party can appeal to the Court of Appeal during this period. **S. 241(1) (i) CFRN**.

When Does Decree Nisi Become Absolute?

- A decree nisi becomes absolute **after 3 Months** from the date the decree nisi was made by operation of the law. **S. 58 of MCA; *Dejonwo v. Dejonwo***.
- There will be **no right of appeal from a decree absolute to any of the parties who** failed to do so when the **decree was nisi**. **S. 241(2) (b) CFRN**
- When a party **appeals** against a **decree** nisi, it will not become **absolute** until **after 15 days of the decision given by the Appeal Court.**

ANCILLIARY ORDERS

- Where children are involved, compulsory conferences were **custody of children**, **settlement of property, maintenance** are discussed and ancillary reliefs can be made upon hearing the petition.
- Custody of children is granted **based on the interest and welfare of the child**. ***Nzelu v. Nzelu*.**

- **Maintenance** can be requested for by any of the parties to the marriage and it can be made in favour of any, based on the income of the spouse. **S. 70(1) of the MCA**.

NOTE THE FOLLOWING POINTS:

- If a party contracts a marriage during the decree nisi which has not become absolute, **the new marriage is null and void**.-***Amobi v. Nzegwu***.
- Also if a party died during the decree nisi, the other spouse can still inherit the deceased as the decree nisi has not become absolute. **S. 58(4) of the MCA, *Amobi v Nzegwu and Dejonwo v Dejonwo*.**
- After the decree nisi becomes absolute, either party is free to contract a new marriage which is valid.

JUDICIAL SEPARATION

Judicial separation is an order of court extinguishing the right to cohabit and conjugal rights between the parties while the marriage subsists. It does not affect the marriage or the status, rights and obligations of the parties to the marriage.

NOTE the Following about Judicial Separation

- The parties can sue each other in contract or tort.
- The parties can inherit each other's property if either of them died **intestate**; **S. 41 & 42 of the MCA.**
- The decree of judicial separation shall not prevent either party form bringing a petition for dissolution of marriage. **S. 44** MCA

- ⇨ The court may also discharge a decree of judicial separation where parties voluntarily resume cohabitation and both consent to the order. **-S. 45 MCA**

JACTITATION OF MARRIAGE: **(This has not been asked in Bar final before) Section 52 MCA**

- ⇨ A petition for jactitation of marriage is based on the grounds that the respondent has **falsely boasted and persistently** asserted that a marriage has taken place between the respondent and the petitioner. **The petition shall state:**
  - **a)** The times and places at which the respondent is alleged to have boasted, particulars of such boastings and assertions,
  - **b)** The fact that the parties are not married and
  - **c)** The petitioner has not **acquiesced** in the alleged boasting or assertions.
- ⇨ A petition will be filed for **jactitation of marriage** praying the Court to **restrain** the respondent from asserting such and to perpetually keep quite; ***Ayeni v. Owolabi.***

RESTITUTION OF CONJUGAL RIGHTS (this is also not asked in Bar final)

- ⇨ This is applied for on the ground that the parties to the marriage whether or not they have at **any time** cohabited are not cohabiting and without a just cause the respondent has refused to cohabit and render conjugal rights to the petitioner; **S. 47 MCA**.
- ⇨ The petition for the restoration of conjugal rights is **Form 7 MCA.**

- **This petition for restitution of conjugal rights shall not be granted unless the following things are proved:**
  1. That the petitioner sincerely desires conjugal rights to be rendered by the respondent.
  2. The petitioner is willing in turn to render conjugal rights to the respondent.
  3. The petitioner had made a written request for cohabitation in conciliatory language to the respondent before commencement of the process **EXCEPT** there are special circumstances that make it unnecessary to make such a request. **S. 49 MCA**

CHAPTER NINETEEN
FUNDAMENTAL RIGHTS ENFORCEMENT

This is also a frequent area in the Bar final examination. This is so because of the high rate of human rights abuse in Nigeria. It has appeared in the following years**: August 2017 Q 2, April 2018 Q 3, August 2019 Q 2, and January 2020 Q 3, December 2020 Re-sit Q 4**

APPLICABLE LAWS

1. Constitution of the Federal Republic of Nigeria 1999 (as amended).
2. Fundamental Rights (Enforcement Procedure) Rules 2009 (FREP Rules)
3. The African Charter on Human and Peoples' Rights (Ratification and Enforcement) Act.

COURTS WITH JURISDICTION (Exam Focus always asked)

1. State High Court
2. Federal High Court
3. National Industrial Court (any breach of fundamental right **arising from labour, employment of trade union** must be filed at the NIC **section 254C CFRN as amended**)

Both Federal High Court and State High Court have concurrent Jurisdiction in Fundamental Rights **Cases irrespective of the subject matter**. See; **S. 46 CFRN; O. II R. 1 of the FREP Rules; Economic and Financial Crimes Commission v. Reinl, FUT, Minna v Olutayo**

- ⇨ where the subject matter leading to the breach is within the exclusive jurisdiction of the FHC (for instance financial crime or drug related issues) or any of the party is a Federal Government agency (for instance EFCC or NDLEA), it is appropriate to commence the action

at the Federal High Court; ***Tukur v. Government of Gongola State; Adetona v. Igele Enterprises Ltd.***

- ⇨ The action must be instituted in the appropriate court in that State where the breach occurred.
- ⇨ Assuming the infringement occurred in more than one State, the Court that will have jurisdiction on the matter will be **any of the High Courts in either of the two or more States**; ***Madiebo v. Nwanko; Uzoukwu v. Ezeonu II.***

NOTE VERY IMPORTANTLY THAT: see April 2018 Q 3e, August 2019 Q 2g

- ⇨ It is only rights guaranteed under **Chapter 4** of the **Constitution** or under the **African Charter on human and peoples rights** that can be brought under the fundamental rights procedure.
- ⇨ Therefore, if the right **is not within Chapter 4 of the CFRN, it cannot** properly come under enforcement of fundamental rights; ***WAEC v Akinkunmi, Tukur v Govt. of Gongola State***

Who Can Institute Fundamental Rights Proceedings? Paras 3(e) of the preamble to frep

1. Anyone acting in his own interest;
2. Anyone acting on behalf of another person;
3. Anyone acting as a member of, or in the interest of a group or class of persons;
4. Anyone acting in the public interest: Public interest **includes** Interest of Nigerian society; and Interest of any segment of it
5. Association acting in the interest of its members or other individually

RESPONDENTS - Theresa Onwo v Nwafor Abdulhamid v Akar

1. Individual,
2. Corporate body
3. the government and
4. any other person who has legal personality.

MODE OF COMMENCEMENT

The application is by any originating process accepted by the court (**without the leave of court**) i.e by:

1. Writ of summons, (if breach is contentious- use writ of summons)
2. Originating motions,
3. Originating summons; **Order II Rule II of the FREP Rules 2009**

However, for the purpose of bar final examination and even in practice, **Originating Motion on Notice** is most preferable. -***Saude v. Abdullahi.***

NOTE VERY IMPORTANTLY: (August 2019 Q 2f)

- ⇨ **NO LEAVE** of Court is required for enforcement of fundamental right–**Order II Rule 2 FREP Rules.**

- ⇨ There is **NO LONGER ANY TIME LIMIT within which to commence actions for the enforcement of fundamental rights**. No enforcement of fundamental rights can be affected by any limitation statute. **O III R1.**

- ⇨ Fundamental right enforcement action **will not be struck out on the ground of *locus standi***. Therefore, anyone can apply for the enforcement of the right of another person; **Paras 3(e) of the preamble to FREP**

- ⇨ Fundamental rights enforcement actions can be brought against individuals; ***Theresa Onwe v Nwafor Oko*; (Bar Final August 2019 Q 2f)**

- ⇨ A corporate body i.e. a company or corporation can also enforce its fundamental rights like right to property**; see *Concord Press Ltd. v. AGF; Punch Newspaper Nig. PLC v. AGF***

- ⇨ A dead person cannot enforce his fundamental right because he is not alive to enforce same - **AG KADUNA V HASSAN**

- ⇨ The applicant has the burden of proving that his fundamental right has been breached or in danger of being breached. **Atakpa v Ebetor**

PROCEDURE FOR THE ENFORCEMENT OF FUNDAMENTAL RIGHTS (Exam Focus, always asked, August 2017 Q 2b & c, April 2018 Q 3c & d, August 2019 Q 2b & c, Jan 2020 Q 3a & b, Dec 2020 Q 4c)

The Applicant (the person enforcing his fundamental rights) is to file the **ORIGINATING MOTION (on notice) supported with**: **Order II Rule III**

a. Affidavit **setting out the facts upon which the application is made**
b. A Statement setting out the **name and description of the applicant reliefs sought and the grounds upon which the reliefs are sought**,
c. Written address:

Commented [MOU74]: Note:
in **BELLO V AG OYO**. Where the deceased was killed by firing squad while his appeal was pending. The appeal eventually succeeded. His dependents brought an application for unlawful and unconstitutional killing of their breadwinner Both the **HC** and the **CA** dismissed the claim on the ground that no action can lie in court for the death of another person. The **SC** however overturned the decision of **CA** and held that the plaintiffs' suffered damages as a result of the unlawful killing of their breadwinner and the injury was done to them and not the deceased.

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CONTENTS OF WRITTEN ADDRESS (OII R 5)
a.The application on which the address is based.

b.Brief statements of facts with reference to exhibits if any.

c.Issues arising for determination

d.A succinct statement of argument on each issue incorporating the authorities referred to with citation. O XII R 5

The Affidavit shall be deposed to by the Applicant himself **UNLESS** he is in custody and is unable to swear to an affidavit. **Ukegbu v NBC**

In such instance, the affidavit must state the fact that **the 'Applicant is unable to depose personally to the affidavit and also state how the person knows of the facts and where and when (time and place) he was told of the facts; Order II Rule 4**

Commented [MOU76]: where the applicant is in custody and cannot make the affidavit then **any other person who has personal knowledge of the facts or has been informed by the applicant can make the affidavit O II R 4**

Note: any application for enforcement of fundamental rights, **which is not supported by a Statement, is materially defective and should be struck out. Cunsin Nig. Ltd v Inspector General of Police**

OPTIONS OPEN TO THE RESPONDENT UPON BEING SERVED – August 2011

If the Respondent intends to **oppose** the application filed by the Applicant, he **is to respond within 5 Days** of service of the application by filing the following: **Ors II R 7**

a) A counter affidavit
b) A Written address
c) Notice of preliminary objection if he is challenging the jurisdiction of the Court

N.B

Where a Respondent is out of time to file his response, **he shall ask for extension of time to file counter affidavit by motion on notice. Order 15 Rule 4 FREP Rules.**

NOTICE OF PRELIMINARY OBJECTION

- If the **Respondent** intends to challenge the jurisdiction of the Court to hear the application, he is to do so by **filing a Notice of Preliminary Objection.**
- This shall be accompanied by a **written address and a Counter-affidavit** if any; **Order VIII Rule 1 - 2**
- The **preliminary objection** shall be heard along with the **substantive application.**

NOTE

that **if the Respondent fails to file a Counter affidavit,** the Court shall presume that he has accepted the facts as presented by the Applicant; **O. VIII R. 3 FREP Rules**

REPLY ON POINTS OF LAW

If the applicant desires to file a **REPLY** on points of Law, he may do so within **5 DAYS** and/or file a further affidavit; **Order II Rule 7**

NB - August 2011 No 2 (e)

On the date of hearing of a preliminary objection, **the Court will hear the objection alongside the substantive application**. **Order 8 Rule 4 FREP Rules**.

the Court may order as follows:

- Striking out the substantive application for lack of jurisdiction
- Setting aside the service of the originating application
- Hold that it has jurisdiction and go ahead to give its ruling on the substantive Application. **Ors VIII R 6**

GENERAL CONDUCT OF PROCEEDINGS

- ⇨ The application **shall be fixed for hearing within 7 days** from the day the application was filed. **Order IV Rule 1**
- ⇨ Adjournment may be granted where **"extremely expedient** provided that the court shall be guided by the urgent nature of application under those Rules. In granting adjournment, the court shall bear the overriding objectives in mind. Thus since the applications require urgent consideration, adjournment should be rarely given. **Order IV Rule 2**

ORDERS THE COURT CAN MAKE AT THE SUBSTANTIVE STAGE - Ors X (Focus)

1. An order declaring the arrest and detention as unconstitutional
2. An of the applicant from detention
3. Injunction restraining further arrest
4. An order for payment of **compensation**
5. An order for **public apology**
6. An order **quashing any proceedings**

Commented [MOU77]:
DISOBEDIENCE TO ORDER OR DIRECTION MADE UNDER THE RULES
It is punishable with contempt. O XIV

Ex-Parte Applications Fundamental Rights Actions - Order IV Rule 3

This is usually made and can be heard if the Court is satisfied that **exceptional hardship** may be caused to the Applicant **before** the service of the application on the Respondent **especially** if:

a. The **LIFE of the applicant is involved**
b. The personal liberty of the applicant is involved
c. **It is an on-going breach.**

The **Ex-Parte Application** shall be supported with **Affidavit** which shall state sufficient grounds why delay in hearing the application will cause exceptional hardship. This is asking for an interim relief; **O. IV R. 4(a) FREP Rules. Universal Trust Bank Ltd v Dolmetch Pharmacy (Nig) Ltd**

Upon hearing the Ex-parte application, the court may make any of the following orders at the interim stage: FOCUS , Ors IV R. 4

1. Grant bail or **release** the applicant from detention forthwith
2. Order that the Respondent be **put on Notice and abridge** the time for hearing.
3. **Order the production** of the applicant on the date fixed for hearing if the applicant alleges wrongful detention.
4. Grant **injunction** restraining the Respondent from taking further steps in respect with the matter or to maintain the status quo
5. Any other Order as the Court may deem fit to make

The Respondent after the Ex-Parte Application may:

File a **Motion on Notice within 7 days of the** service of the Order to **Vary/discharge** it supported with an affidavit. The Court may **discharge the Order or vary it** with or without imposing terms as to costs or security as it seems just. **O. IV R. 6 of the FREP Rules**

AMENDMENT OF PROCESSES

⇨ The court may allow amendment of the statement and further affidavits to be used if they deal with new matters arising from the counter affidavit of any party to the application. **Order VI Rule 2**

Commented [MOU78]:
EXAM SCENARIO Where the defendant has been in custody for an extended period of time.
I shall apply for an interim relief by way of an order of court to grant bail to the applicant and release him forthwith from detention, pending the determination of the application

CAN ALSO PRAY FOR:
1. an order directing the production of the applicant in court on the date the matter is fixed for hearing or
2.Application for the applicant to have access to medication or his lawyers

The additional documents you'll file for the above Procedure
1.Motion ex-parte
2.An affidavit in support of the application
3.Affidavit of urgency
4.Written Address
Ors IV R 4

Commented [MOU79]:
the order for production must state:
a)The court or judge before whom applicant is to be brought.
b)The date the applicant is to be brought.

⇨ An amendment to any of the processes filed is to be brought by a Motion on Notice supported with an affidavit **exhibiting** the proposed application to be amended; **Order VI Rule 3 of the FREP Rules 2009**

CONSOLIDATION OF APPLICATIONS

Conversely for an application to consolidate separate applications to be granted, the application must show that it relates to:

A. the same ground,

B. reliefs and

C. facts/issues.

E.g. one individual's right is infringed by Police, EFCC and other agencies and he sued all of them differently. Applicant can apply for all matters to be consolidated in a particular court; **O. VII FREP Rules.**

Commented [MOU80]:
The court is empowered to consolidate several applications and determine them jointly and severally in a consolidated suit if the applications relate to **the infringement of a particular fundamental right in respect of the same matter and on the same grounds,** although they may be pending against several persons. **O VII R 1. KOMOLAFE V AG FED.**

Where the applications are pending before several Judges, the applicant shall first apply to the CJ for reassignment of the matter to the Judge before one or more of the matters are pending. O VII R 2

NOTE:
this does not allow the joinder of several applicants in one application for enforcement of their rights. This is because, fundamental rights are personal. The rights in chapter 4 are personal "every person"

Remedies for Fundamental Rights Enforcement Procedure; S. 46(2) CFRN and Order IV Rule 4(5)

A court may make such orders, give such directives and issue such writs,

1. Release from detention
2. Damages/compensation for breach of the fundamental right of the applicant; ***Abiola v Abacha***.
3. Order for the production of the Applicant
4. Order the release of the Applicant's property where seized.
5. Declaratory reliefs
6. Injunctive reliefs restraining respondent from further breaching the Applicant's rights.
7. Access to medical care and
8. Access to counsel

9. Public apology; ***DSS v Agbakoba***

POSER

Make a case for and against the use of the FREP Rules for the enforcement of fundamental rights as against the use of a writ of summons. 2009 No 5(v)

> The use of fundamental rights enforcement procedure as against the use of writ of summons to enforce a person's right is supported by the decision of the Supreme Court in **Din v AG Federation** which held that the Rules prescribe the only procedure for the enforcement of rights under Chapter IV.
>
> However, in **Saude v Abdullahi**, the Supreme Court held that the procedure under the Rules does not prescribe the only procedure for seeking redress for infringement of fundamental rights and so such rights may be enforced by any other means by which the Court can be approached and this includes writ of summons. **Abacha v Fawehinmi; FRN v Ifegwu Udensi**.

EFFECT OF NON-COMPLIANCE WITH THE RULES.

It is treated as mere irregularity **EXCEPT** as they relate to –

i) Mode of commencement of the application;

ii) The subject matter is not within Chapter IV of the Constitution or the African Charter on Human and People's Rights (Ratification and Enforcement) Act

CHAPTER TWENTY
SALIENT SAMPLE DRAFTS ON CIVIL LITIGATION

As earlier noted, drafts constitutes about 45% of your exam. So a good grasp of your drafts will surely see you through.

Here, we shall be looking at some essential draft which has frequently appeared in the exam. It shall be based on topic by topic analysis.

NOTE: This does not contain all the drafts obtainable in Civil Litigation, rather it is based on selected drafts which are most likely to appear or had appeared in the past exams.

1. **PARTIES: under parties, you may be asked the following drafts:**
   a. Application for joinder/non joinder of parties: (Motion on Notice)

IN THE HIGH COURT OF LAGOS STATE
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO……..
MOTION NO…..

BETWEEN
JAMES IGWE……..CLAIMANT/RESPONDENT
AND
CENTRAL BANK OF NIGERIA…….....…DEFENDANT
AMC LIMITED.....DEFENDANT/APPLICANT

<u>MOTION ON NOTICE</u>

BROUGHT PURSUANT TO ORDER 15 RULE 7 AND ORDER 43 RULE 1 OF THE HIGH COURT OF LAGOS STATE (CIVIL PROCEDURE) RULES, 2019 AND UNDER THE INHERENT JURISDICTION OF THE COURT

TAKE NOTICE that this Honourable Court will be moved on the …… day of ……2022 at the Hour of 9 O' clock in the forenoon or so soon thereafter as Counsel for the Claimant/Applicant will be heard praying this Court for:

1. **AN ORDER** joining AMC Limited as Co-defendant in this suit
2. **AND FOR SUCH FURTHER ORDER OR ORDERS** as the honourable Court may deem fit to make in the circumstances.

DATED THIS …… DAY OF …….. 2022.

_____

ORJI COSMOS ESQ
Applicant's Solicitor
ORJI & CO,
No. 10 Ade Street,
Victoria-Island, Lagos

FOR SERVICE ON:

Hezekiah Desmond .I
Claimant/Respondent's Solicitor
IJEBU & CO
No 1 Ademola Way, Victoria-Island, Lagos

2nd Defendant

SAMUEL ODUTAYO
1st Defendant Solicitor

EXCLUSIVE ASSOCIATES
No. 15 Adeosun Close, Ikoyi, Lagos

b. Application For Striking Out A Name (Bar Final August 2019 Q 3c)

IN THE HIGH COURT OF LAGOS STATE
IN THEIKEJA JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO…….
MOTION NO…...

BETWEEN

JAMES IGWE……CLAIMANT/RESPONDENT

AND

CENTRAL BANK OF NIGERIA…….DEFENDANT
ASSETS MANAGEMENT COMPANY LIMITED…….APPLICANT

MOTION ON NOTICE

BROUGHT PURSUANT TO ORDER 15 RULE 5 AND ORDER 43 RULE 1 OF THE LAGOS STATE HIGH COURT (CIVIL PROCEDURE) RULES 2019 AND UNDER THE INHERENT JURISDICTION OF THE COURT

TAKE NOTICE that this Honourable Court will be moved on the …… day of ……. 2022 at the Hour of 9 O' clock in the forenoon or so soon thereafter as Counsel for the Defendant/Applicant will be heard praying this Tribunal for:

1. **AN ORDER** striking out Assets Management Company Limited As Co-Defendant in this Suit
2. **AND FOR SUCH FURTHER ORDER OR ORDERS** as the honourable Court may deem fit to make in the circumstances.

DATED THIS …… DAY OF …….. 2020

……

ORJI COSMOS

Applicant's Solicitor

ORJI & CO,

No. 10 Ade Street, Victoria-Island, Lagos

FOR SERVICE ON:

Hezekiah Desmond .I

Claimant/Respondent's Solicitor

IJEBU & CO

No 1 Ademola Way, Victoria-Island, Lagos

1ST DEFENDANT

Samuel Odutayo

1st Defendant Solicitor

Exclusive Associates

No. 15 Adeosun Close, Ikoyi, Lagos

<u>Drafts from Commencement of Action at the High Court</u>

7. **Writ of summons:** writ of summons is a Form. Usually, students are either given the Writ to fill or they will be given a defective writ to correct. See sample Below:

IN THE HIGH COURT OF LAGOS STATE

IN THE LAGOS JUDICIAL DIVISION

HOLDEN AT LAGOS

SUIT NO……

BETWEEN

A. B.....Claimant

AND

C. D..... Defendant

To C. D.....in the.....of……

You are hereby commanded that within …….. (42 days) or (14 days Abuja) after the service of this writ on you, inclusive of the day of such service, you do cause an appearance to be entered for you in an action at the suit of …(claimant's name)……; and take notice that in default of your so doing the claimant may proceed therein and judgment may be given in your absence.

DATED this.....day of.....20.....

…….…….

Registrar

MEMORANDUM TO BE SUBSCRIBED ON THE WRIT

This writ is to be served **within six (6)** calendar months from the date thereof, or, if renewed, **within three** (3) calendar months from the date of the, last renewal, including the day of such date and not afterwards.
The defendant may enter appearance personally or by legal practitioner either by handing in the appropriate forms, duly completed, at the Registry of the High Court in which the action is brought or by sending them to the Registrar by registered post.

ENDORSEMENTS TO BE MADE ON THE WRIT BEFORE ISSUE THEREOF

The claimant's claim against the defendant is for:

a. ……..
b. ……..
c. ……etc.(itemize the reliefs according to the scenario)

This writ was issued by ……..(name of counsel) of.....(his **firm**)..... whose address for service is……...(**address of firm**)..... Legal practitioner for the said claimant who resides at.....(**address** of **claimant**).....

Endorsement to Be Made On Copy of Writ Forthwith After Service:
This writ was served by me at.....on the defendant (here insert mode of service) on the .....day of.....20.....

Endorsed the ..... day of.....20.....

(Signed).....

Address for service.....

(**In the exam, the highlighted parts are usually omitted for students to fill it up, so learn what should be on each space. You can check your various textbooks or the Rules of court for an un-filled sample of the Writ.)**

2. Memorandum of Appearance (see August 2017 Q 1b)

IN THE HIGH COURT OF THE FEDERAL CAPITAL TERRITORY
IN THE ABUJA JUDICIAL DIVISION
HOLDEN AT ABUJA

SUIT NO…….

BETWEEN:
MR. ONWA SIMON……. CLAIMANT
AND
MR DARLINGTON IGWEKOHA.....DEFENDANT

MEMORANDUM OF APPEARANCE

Please enter appearance for **Mr Darlington Igwekoha** sued as defendant in this suit.

DATED…….DAY OF…….20……..

……

Njoku Sly, Esq.
Counsel to the Defendant
No 15 Okon Street, Wuse Zone 5, Abuja

FOR SERVICE ON:
(Put address of claimant)

3. Notice of Preliminary Objection:

IN THE HIGH COURT OF LAGOS STATE
IN THE IKEJA JUDICIAL DIVISION
HOLDEN AT IKEJA

SUIT NO……

BETWEEN:
K & T LTD……DEFENDANT/APPLICANT
AND
CROWN KITCHEN LTD……. CLAIMANT/RESPONDENT

NOTICE OF PRELIMINARY OBJECTION
BROUGHT PURSUANT TO ORDER 24 RULE 2 OF THE HIGH COURT OF LAGOS STATE (CIVILPROCEDURE) RULES 2019 AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that at the hearing of the above suit the Defendant/Applicant intends by way of preliminary objection to challenge the competence of this suit, and may be heard praying this Honourable Court for an Order dismissing or alternatively striking out the suit.

AND TAKE FURTHER NOTICE that the grounds on which the Defendant/Applicant intends to rely on are as follows:

1. The matter/dispute had not first been submitted to Arbitration based on Clause 2 of the Partnership Agreement of the parties.
2. That the action was commenced in the wrong Judicial Division.

DATED THIS……DAY OF……. 2022

……..

Samuel Ayodeji Esq.

Counsel to the Defendant

10 Yaba Road, Lagos

FOR SERVICE ON:

Counsel to the Claimant

No 1 Ikoyi Hall, Lagos.

4. Motion on Notice for Extension of time to Enter Appearance

IN THE HIGH COURT OF LAGOS STATE

IN THE IKEJA JUDICIAL DIVISION

HOLDEN AT IKEJA

SUIT NO……

MOTION NO…….

BETWEEN:

CROWN KITCHEN LTD ……CLAIMANT/RESPONDENT

AND

K & T LTD.....……. DEFENDANT/APPLICANT

MOTION ON NOTICE

BROUGHT PURSUANT TO ORDER 43 RULE 1 OF THE HIGH COURT OF LAGOS STATE (CIVIL PROCEDURE) RULES 2019 AND WITHIN THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that this Honourable Court will be moved on the …… day of ……. 2022 at the Hour of 9 o' clock in the forenoon or so soon thereafter as Counsel for the defendant (Applicant) will be heard praying this Court for:

1. **AN ORDER for** extension of time within which the Applicant will enter appearance and file his defence**.**
2. **AN ORDER** deeming as duly filed the defendant/Applicant statement of defence and all other processes
3. **AND FOR SUCH FURTHER ORDERS** as this honourable court may deem fit to make in the circumstances.

DATED THIS …….. DAY OF…….2022

……..
SIMBI GABRIELLA
Applicant's Solicitor
Grace High Chambers
10 Yaba Road, Lagos

FOR SERVICE ON:
KOME AKODO
Claimant's Solicitor
Plot 2, Ikoyi Road, Lagos

5. Motion Ex parte for Substituted Service

IN THE HIGH COURT OF LAGOS STATE

IN THE LAGOS JUDICIAL DIVISION

HOLDEN AT LAGOS

SUIT NO…….

MOTION NO……..

BETWEEN

MRS JAMES ADA……CLAIMAINT/APPLICANT

AND

MR ZACK THOMAS……DEFENDANTS/RESPONDENT

MOTION EX PARTE

BROUGHT PURSUANT TO ORDER 43 RULE 3 OF THE LAGOS STATE HIGH COURT CIVIL PROCEDURE RULES, 2019 AND UNDER THE INHERENT JURISDICTION OF THIS COURT

TAKE NOTICE that this Honourable Court will be moved on the ___ day of _____ 20…. at the hour of 9 o'clock in the forenoon or soon thereafter as counsel on behalf of the claimant/applicant may be heard praying this Honourable Court for the following orders:

1. **AN ORDER** for leave of court to serve the Defendant/Respondent by substituted service by pasting same at his last known address No……

2. **AND FOR SUCH ORDER OR FURTHER ORDERS** this Honourable Court may deem fit to make in the circumstances.

Dated this …… day of ……2022

_____

OKOKO JEMENI ESQ.
CLAIMANT'S SOLICITOR
COMPOS MENTIS CHAMBERS
18 WUSE STREET, IKOYI
LAGOS STATE

ORIGINATING SUMMONS - **Focus**

IN THE HIGH COURT OF LAGOS STATE
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

Suit No.LD/.....

BETWEEN
MR. BEN AJUWA ..... CLAIMANT
AND
MR. TOBI SILAS ..... DEFENDANT
(2MKS)

ORIGINATING SUMMONS

LET **Mr. Tobi Silas** of **Address** within 42 days of service of this summons inclusive of the day of such service cause appearance to be entered for him to this summons which is issued upon the application of the claimant for the determination of the following question:

Whether the purchase receipt in respect of the land situate at No. 1 Ajasa Street, Lagos qualifies as a valid document of title in accordance with Clause 4 of

the Development Lease Agreement between the claimant and the defendant?

(2mks)

And upon the determination of the above question the claimant will seek the following reliefs:

1. A declaration that the purchase receipt in respect of the land at No. 1 Ajasa Street, Lagos qualifies as a valid document of title in accordance with clause 4 of the Development Lease Agreement between the claimant and the defendant
2. An order compelling the defendant to commence construction work on the land in accordance with clause 4 of the Agreement
3. Such other orders as the Court may deem fit to make in the circumstance of the case

(1 ½ mks)

Dated this .....day of.....2011

This summons is issued out of Lagos State of Nigeria for service at the Federal Capital Territory, Abuja. (1mark)

This summons was taken out by Sunday Abutu, Legal Practitioner to the claimant whose address for service is C/O his counsel, Abutu & co, No. 1, Law School Drive, Victoria Island, Lagos.

For Service on
Defendant
Mr. Tobi Silas
No. 2, Wuse Street,
FCT, Abuja.

Sample Drafts on Interlocutory Applications: As earlier noted, all interlocutory applications are either by motion on notice (it must have address for service) or motion ex parte (there will be no address for service).

1. **Application For Third Party Proceedings:(August 2016 Q. 1c, 2017 Q. 1c, 2018 Q. 4e)**

IN THE HIGH COURT OF THE FEDERAL CAPITAL TERRITORY,
IN THE ABUJA JUDICIAL DIVISION
HOLDEN AT ABUJA

SUIT NO…….
MOTION NO……..

BETWEEN:

MR. ONWA SIMON……. CLAIMANT/RESPONDENT
AND
MR DARLINGTON IGWE…….…...DEFENDANTS/APPLICANTS
AND
ZENITH INSURANCE PLC……THIRD PARTY

MOTION EX PARTE

BROUGHT PURSUANT TO ORDER 13 RULE 21 OF THE HIGH COURT OF THE FEDERAL CAPITAL TERRITORY (CIVIL PROCEDURE) RULES 2018 AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT.

Commented [MOU81]: Lagos order 15 rule 19

TAKE NOTICE that this Honourable Court will be moved on the …… day of ……. 2022 at the hour of 9 O' clock in the forenoon or so soon

thereafter as Counsel for the Defendants/Applicants will be heard praying this Court for:

2. **AN ORDER** for leave to serve third party notice joining **Zenith Insurance Company PLC** as a third party in this suit

OR

3. **AN ORDER** for granting leave to issue third party notice against **Zenith Insurance Company PLC** of ……
4. **AND** FOR SUCH FURTHER ORDERS AND ORDERS as this Court may deem fit to make in the circumstances.

Dated this …… day of ……2022

…….

Njoku Sly, Esq.

Counsel to the Applicant

No. 15 Okon Street, Wuse Zone 5

FCT, Abuja.

2. Application For Leave to Sue In Representative Action (August 2017 Q 4c, April 2018 Q 4e, 2021)

IN THE HIGH COURT OF LAGOS STATE

IN THE IKEJA JUDICIAL DIVISION

HOLDEN AT IKEJA

SUIT NO…..

MOTION NO……..

BETWEEN:

1. ALHAJI ASMAU OLA
2. CHIEF DEDE SANYAOLU **CLAIMANTS/APPLICANTS**
(Suing for themselves and on Behalf of the Odofin family)

AND

CHIEF MOGAJI CHUKWU……..DEFENDANT/RESPONDENT

MOTION EX PARTE
BROUGHT PURSUANT TO ORDER[5] 15 RULE 12 OF THE HIGH COURT OF LAGOS STATE (CIVIL PROCEDURE) RULES 2019 AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT.

TAKE NOTICE that this Honourable Court will be moved on the …… day of……. 2020 at the Hour of 9 O' clock in the forenoon or so soon thereafter as Counsel for the Claimants/Applicants will be heard praying this Court for:

1. **AN ORDER** granting leave to the Applicants to sue for themselves and on behalf of the Odofin family of Ikotun, Lagos State.
2. **AND FOR SUCH FURTHER OR OTHER ORDERS** as this Court may deem fit to make in the circumstances.

DATED THIS ……DAY OF ……2020.

……..

[5] Ors 13 rule 14

Bello Adamu Tope Esq
Counsel to the Claimants/Applicants
No. 10 Bagaga Street Ikeja
Lagos State

3. **Application for Interim Injunction:**

IN THE HIGH COURT OF LAGOS STATE
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO……..
MOTION NO……..

BETWEEN
MRS KAYUBA ADA……CLAIMAINT/APPLICANT
AND
SKYE BANK PLC ……DEFENDANTS/RESPONDENT

MOTION EX PARTE

BROUGHT PURSUANT TO ORDER 43 RULE 3 OF THE LAGOS STATE HIGH COURT CIVIL PROCEDURE RULES, 2019 AND UNDER THE INHERENT JURISDICTION OF THIS COURT

TAKE NOTICE that this Honourable Court will be moved on the ___ day of _____ 20…. at the hour of 9 o'clock in the forenoon or soon thereafter as counsel on behalf of the claimant/applicant may be heard praying this Honourable Court for the following orders:

1. **AN ORDER OF INTERIM INJUNCTION** restraining the defendant/respondent, from destroying the subject matter of the dispute pending the hearing of the Motion on Notice for interlocutory injunction already filed before this court.
2. **AND FOR SUCH ORDER OR FURTHER ORDERS** this Honourable Court may deem fit to make in the circumstances.

DATED THIS.....DAY OF.....2022

_____

OKOKO JEMENI ESQ.
Claimant's Solicitor
Compos Mentis Chambers
No. 18 Wuse Street, Ikoyi,
Lagos State

4. Interlocutory Injunction: motion on notice (April 2018 Q 4h, April 2019 Q 1a)

IN THE HIGH COURT OF LAGOS STATE
IN THE IKEJA JUDICIAL DIVISION
HOLDEN AT IKEJA

SUIT NO……
MOTION NO…….

BETWEEN:
CROWN KITCHEN LTD …… CLAIMANT/ APPLICANT
AND

K & T LTD.....……. DEFENDANT/RESPONDENT

MOTION ON NOTICE

BROUGHT PURSUANT TO ORDER 42 RULE 8 OF THE HIGH COURT OF LAGOS STATE (CIVIL PROCEDURE) RULES 2019 AND WITHIN THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that this Honourable Court will be moved on the …… day of ……. 2020 at the Hour of 9 o' clock in the forenoon or so soon thereafter as Counsel for the Claimant/Applicant will be heard praying this Court for:

1. **AN ORDER for interlocutory injunction** restraining the defendant/Respondent, from dealing with the subject matter of the dispute pending the determination of the substantive suit.
2. **AND FOR SUCH FURTHER ORDERS** as this honourable court may deem fit to make in the circumstances.

DATED THIS …….. DAY OF…….2020

……..

SIMBI GABRIELLA

Claimant's solicitor

Grace High Chambers

10 Yaba Road, Lagos

FOR SERVICE ON:

KOME AKODO

Defendant's Solicitor

Plot 2, Ikoyi Road, Lagos

Sample Drafts on Summary Judgment Procedure/Undefended List

1. **Notice Of Intention To Defend Under Undefended List (September 2015 Q 4e, April 2019 Q 3d)**

IN THE HIGH COURT OF THE FEDERAL CAPITAL TERRITORY,
IN THE ABUJA JUDICIAL DIVISION
HOLDEN AT ABUJA

SUIT NO…….

BETWEEN:
MR. ONWA SIMON……..……. CLAIMANT
AND
MR DARLINGTON IGWE….....DEFENDANT

NOTICE OF INTENTION TO DEFEND

TAKE NOTICE that the Defendant intends to defend the action at the hearing of this suit.

DATED……DAY OF…….2020

…….
NJOKU SLY, ESQ.
Counsel to the Defendants
Greater Grace Law Frm
No. 15 Okon Street, Wuse Zone 5
FCT, Abuja

FOR SERVICE ON:

KOME AKODO

Claimant's Solicitor

No. 12 MAITAMA CLOSE

FCT, Abuja

2. Motion on Notice for Summary Judgment Order 13 Lagos

IN THE HIGH COURT OF LAGOS STATE

IN THE IKEJA JUDICIAL DIVISION

HOLDEN AT IKEJA

SUIT NO……

MOTION NO…….

BETWEEN:

CROWN KITCHEN LTD ……CLAIMANT/ APPLICANT

AND

K & T LTD.....…… DEFENDANT/RESPONDENT

MOTION ON NOTICE

BROUGHT PURSUANT TO ORDER 13 RULE 1 OF THE HIGH COURT OF LAGOS STATE (CIVIL PROCEDURE) RULES 2019 AND WITHIN THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

Commented [MOU82]: ORS 11 ABUJA

TAKE NOTICE that this Honourable Court will be moved on the …… day of ……. 2020 at the Hour of 9 o' clock in the forenoon or so soon

thereafter as Counsel for the Claimant/Applicant will be heard praying this Court for:

1. AN ORDER entering summary judgment in favour of the Claimant in the above **suit**.

AND FOR SUCH FURTHER ORDERS as this honourable court may deem fit to make in the circumstances.

DATED THIS …….. DAY OF…….2022

……..

SIMBI GABRIELLA

Claimant's solicitor

Grace High Chambers

10 Yaba Road, Lagos

FOR SERVICE ON:

KOME AKODO

Defendant's Solicitor

Plot 2, Ikoyi Road, Lagos

SAMPLE DRAFTS OF AFFIDAVITS: The format of all affidavits is the same, however, the facts to be included therein depends on what the application is all about. Here are some samples: The green is their marking guide

5. Affidavit in support of motion ex parte for Third Party proceedings

IN THE HIGH COURT OF THE FEDERAL CAPITAL TERRITORY,

IN THE ABUJA JUDICIAL DIVISION

HOLDEN AT ABUJA

SUIT NO…….

BETWEEN:

MR. ONWA SIMON ……..……CLAIMANT/RESPONDENT

AND

MR DARLINGTON IGWE.....DEFENDANTS/APPLICANT

AND

ZENITH INSURANCE PLC……..THIRD PARTY

Affidavit In Support of the Motion For Third Party Notice ½

Commented [MOU83]:
STRUCTURE PARAS
1.CAPACITY AND COVERSANT
2.AUTHORITY TO DEPOSE
3.PRINCIPAL ISSUE
4.THAT THE THIRD PARTY IS TO INDEMNIFY ANY LIABILITY
5.COMPLIANCE WITH THE OATHS ACT

I, Daniel Ikemson, ,Male, Adult Managing Director, Christian, and a Nigerian Citizen OF No. 15 Kuje, FCT Abuja do hereby make oath and state as follows: ½

1. I am the Managing Director of the 2nd Defendant/Applicant and by virtue of which I am conversant with the facts of this case.
2. **I have the consent and authority of my employer to depose to this affidavit.**
3. On the 10 day of August 2010, the 1st Defendant, a driver of one of the insured vehicles with registration number XL 252 KUJ had a collision with the Plaintiff.
4. The Third party is to indemnify the 2nd defendant of any liability arising from such accidents as a term in the insurance policy.
5. **I make this oath in good faith believing its content to be true and correct in accordance with the Oaths Act 2004.**

……

DEPONENT ½

Sworn to at the High Court of Federal Capital Territory, Registry, Abuja

This**……day of …….2022 ½**

BEFORE ME

_____

COMMISSIONER FOR OATHS ¼

6. <u>Affidavit in support of Motion Ex parte for Interim Injunction</u>

IN THE HIGH COURT OF LAGOS STATE
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO……
MOTION NO……..

BETWEEN
MRS KAYUBA ADA……..CLAIMANT/APPLICANT
AND
SKY BANK PLC……DEFENDANT/RESPONDENT

AFFIDAVIT IN SUPPORT OF MOTION FOR INTERIM INJUNCTION

I, Mrs Kayuba Ada, a Female, Nigerian citizen of No 15 Asokoro Road, Ikoyi, Lagos do hereby make oath and state as follows:

1. That I am the claimant/applicant in this case and by virtue whereof I am conversant with the facts deposed to in this affidavit.
2. That the defendant intends to burn the goods within a matter of days and I received this information via Mr. Johnson Ayoade, credible source as he works at the defendant's warehouse

3. That I, the **claimant will suffer irreparable damage or injury if the application is not granted**.
4. That the defendant's **right will not be affected in any way if the application is granted but the claimant will suffer if this application is not granted**
5. That the claimant undertakes to pay all damages caused to the defendant if this application ought not to have been granted
6. That I swear to this affidavit is made in good faith believing same to be true and in accordance with the provisions of the Oath Law of Lagos State

_____

DEPONENT

Sworn to at the High Court Registry of Lagos state
THIS…..DAY OF ……2020

BEFORE ME

_____

COMMISSIONER FOR OATHS

INTERPLEADER

IN THE HIGH COURT OF THE FEDERAL CAPITAL TERRITORY, ABUJA

IN THE ABUJA JUDICIAL DIVISION

HOLDEN AT ABUJA

½mk

Suit
No…… ½mk

BETWEEN:

SAMATHA OKOLI APPLICANT

AND

MR. EMEKA MASU

CLAIMANT

CHIJIOKE MASU CLAIMANT

1mk

AFFIDAVIT IN SUPPORT OF INTERPLEADED SUMMONS ½mk

I, SAMATHAN OKOLI, Nigerian, female, teacher, of House no 13 Glover Driver Asokoro, Abuja, hereby do make oath and state as follows: ½mk

1. That I am the applicant in this application by virtue of which fact I am conversant with of the facts case.
2. That I rented the house no 13 Glover Drive, Asokoro, Abuja (hereinafter known s "the demised premises") from Alhaji Musa, until his death in 2012.
3. That on the death of Alhaji Musa I was approached separately by Emeka Musa the eldest son to the late Alhaji Musa my deceased landlord and one Chijioke Musa, who is also another son of the diseased landlord, each claimant to be my new landlord in respect of my rented premises, asking to pay the rent due on the subject matter to him. 1mk
4. That I claim no interest in the demised premises the subject matter of this application 1mk
5. That I am willing to pay the rent on the demised premises, the subject matter, as this honourable court may direct. ½mk
6. That I make this affidavit in good faith believing the content to be true and correct to the best of my knowledge 1mk

Deponent ½mk

Sworn to the High Court Registry, Abuja

This ……..day of …….…….2022 1mark

Before me

Commissioner for Oath

IN THE HIGH COURT OF LAGOS STATE

IN THE LAGOS JUDICIAL DIVISION

HOLDEN AT LAGOS

SUIT NO …….

BETWEEN

ADE DOUGLAS …… JUDGMENTCREDITOR/APPLICANT

AND

REAL MADRID OIL AND GAS LTD ……..…… JUDGMENT DEBTOR

AND

NEWLIFE INTERNATIONAL BANK ……. GARNISHEE/RESPONDENT

AFFIDAVIT TO SHOW CAUSE

I, Usman Dankabba, male, Muslim, Nigerian citizen and banker of No. 1Tinubu Square, Lagos do make oath and state as follows:

1. I am the Manager at the Tinubu Square Branch of the Garnishee and by virtue of my position I am familiar with the facts deposed to in this affidavit.
2. I have the authority of the Garnishee to depose to this affidavit.
3. Upon the service of the garnishee order nisi issued by this honourable Court on the Garnishee, the Garnishee went through its records and has confirmed that the judgment debtor has the sum of N40million in its account with the Garnishee.
4. The Garnishee is prepared and willing to abide by the garnishee order made by this Honourable Court.
5. I depose to this affidavit in good faith, conscientiously believing sane to be true and correct and in accordance with the Oaths Act.

……

Deponent

SWORN TO AT THE HIGH COURT REGISTRY LAGOS

THIS ……DAY OF……..2022

BEFORE ME

…….

COMMISSIONER FOR OATH

BAILIFF AFFIDAVIT

IN THE HIGH COURT OF LAGOS STATE

IN THE LAGOS JUDIICIAL DIVISION

HOLDEN AT LAGOS

SUIT NO. ……..

BETWEEN

EVELYN OKAFOR …….. CLAIMANT/ APPLICANT

AND

ARTFILL DODGER …….. DEFENDANT/ RESPONDANT

1 Mark)

AFFIDAVIT IN SUPPORT OF MOTION

I Ladi Okon, Christian, Male, Nigerian, Bailiff of the High Court of Lagos of No. 273 Igbosere Road Lagos, hereby make oath and state as follows:

1) That I am a bailiff of the High Court of Lagos State in the Lagos Judicial Division.
2) That by virtue of my position above I am conversant with the facts of this case.
3) That I have the authority of the Claimant/ Applicant to depose to this affidavit.
4) That I have made 3 attempts on 3/8/09; 6/8/09 and 8/8/09 respectively to serve the originating process on the Defendant/ Respondent by personal service but all efforts at personal service proved abortive.
5) That on all the occasions that I attempted to serve personally, the Defendant/ Respondent was evading service
6) That it is therefore necessary to effect service on the Defendant/ Respondent by substituted means in order to ensure that justice is done in the matter.
7) That the Defendant/ Applicant will not be prejudiced if this application is granted
8) That I make this solemn declaration conscientiously believing the same to be true and by virtue of the provisions of the Oaths Act.

(1 Mark).

……
DEPONENT

SWORN TO AT THE HIGH COURT REGISTRY

LAGOS, THIIS ……. DAY OF ……..... 20.....

BEFORE ME

COMMISSIONER FOR OATHS

(1 Mark)

(NOTE: The facts used here are fictitious, therefore you are meant to only study the format and apply the facts given to you in your exams)

SAMPLE DRAFTS ON PLEADINGS

1. **Statement of claim;** In drafting the statement of claim, after heading of court and parties, the first paragraph will introduce the claimant while the second paragraph will introduce the defendant. Other paragraphs will present the facts in chronological order **(See 2017 Q1f, 2018 Q1a, Jan 2020 Q4c): EXAMPLE**

IN THE HIGH COURT OF LAGOS STATE

IN THEIKEJA JUDICIAL DIVISION

HOLDEN AT LAGOS

SUIT NO…….

MOTION NO…...

BETWEEN

MRS REMI YELWA

YOMI YELWA (MINOR)..... CLAIMANTS

(Suing Through the Guardian Mrs Remi Yelwa)

AND

GOODSIDE NIGERIA LIMITED

JOHN TAJUDEEN ……. DEFENDANTS

STATEMENT OF CLAIM

1. The 1st Claimant is a Business woman who lives at No 215 Apek Road, Ikeja, Lagos State.
2. The 2nd Claimant is a minor and a son of the 1st claimant who lives at the same address as the 1st Claimant.
3. The 1st Defendant is an incorporated company involved in the business of sales and supply of cements with its registered office address at No 10 Akemu Road, Ikeja, Lagos
4. The 2nd Defendant is a driver and an employee of the 1st Defendant.
5. The 1st Claimant avers that on 1st December, 2019, she was driving in her Mercedes Benz car together with the 2nd Claimant who was on his way to school, along Apek Road, Ikeja, Lagos State.
6. The Claimants further avers that, the 2nd defendant suddenly hit their car from the rear with an articulated vehicle (also known popularly as trailer) with registration No xx000377 driven by the 2nd Defendant.
7. The 1st Claimant avers that as result of the accident she sustained a lot of severe injuries including a fractured limb.
8. The Claimant avers that she was hospitalized at IIunla Hospital, Ikeja, Lagos for 3 months. Copies of the Hospital Bills and other receipts will be relied on during trial.

9. The claimant further avers that the incident was captured by a surveillance camera placed on the road which showed clearly that the 2nd defendant was negligent in driving the car. The Surveillance footage will be relied on during trial.
10. WHEREFORE the Claimants claims against the defendants jointly and severally as follows:
    a. The sum of N11,050,000.00 (Eleven Million and Fifty Thousand Naira only), as special damages; particularized as follows:
        i. Surgical Operation = N5,000,000.00
        ii. Drugs and medicals =N4,500,000.00
        iii. In-patient's Bill = N1,500,000.00
        iv. Transportation = N50,000.00

        TOTAL = N11, 050,000.00
    b. The sum of N50, 000,000.00 as general damages for negligence and for all the pains and loss suffered by the claimants.

Dated…….day of…….2020

…….

A.A. Yusuf Esq

Counsel to the Claimants

Name, of the firm

Address

Email

Tel

FOR SERVICE ON:

1ST & 2ND DEFENDANTS

No 10 Akemu Road,
Ikeja, Lagos

2. STATEMENT OF DEFENCE

IN THE HIGH COURT OF JUSTICE OF LAGOS STATE
IN THE IKEJA JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO……

BETWEEN
ENJOY SPECIAL LIMITED…….CLAIMANT
AND
DANGOTE INDUSTRIES LIMITED……..DEFENDANT

STATEMENT OF DEFENCE

1. **SAVE AND EXCEPT** as is herein expressly admitted; the defendant denies each and every allegation of fact as contained in the Claimant's Statement of Claim as if each paragraph were herein set out and traversed seriatim.**(sometimes you may asked to draft only the general traverse see August 2018 Q 1c)**
2. The Defendant admits paragraphs 1,2,3 and 4 of the statement of claim
3. The Defendant denies paragraphs 5,6,7 and 8 of the statement of claim
4. The Defendant denies paragraph 5 and 8 of the statement of claim and in further answer states that the 20 buses were not purchased for the purpose of transporting kitchen utensils (what were purchased for)

5. The Defendant states that it is not liable for the claims of the Claimant and prays the court to dismiss the suit as being frivolous and baseless.

DATED THIS …..DAY OF…..2022

……..

Oluwole Alaja Esq
Defendant's Solicitor
Oluwole & Co
No 10 Akinsway, Victoria
Island, Lagos

FOR SERVICE ON:

(Name and address of claimant' counsel)

3. <u>Motion On Notice For Striking Out of Pleadings</u>

IN THE HIGH COURT OF LAGOS STATE
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO……
MOTION NO……

BETWEEN:
K & T LTD……..DEFENDANT/APPLICANT
AND
CROWN KITCHEN LTD.……CLAIMANT/RESPONDENT

<u>MOTION ON NOTICE</u>

BROUGHT PURSUANT TO ORDER 15 RULE OF THE HIGH COURT OF LAGOS STATE (CIVIL PROCEDURE) RULES 2019 AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT.

TAKE NOTICE, that this Honourable Court will be moved on the ……day of ……2022 at the Hour of 9 O'clock in the forenoon or so soon thereafter as Counsel on behalf of the Applicant can be heard praying for:

1. AN ORDER striking out the Claimant/Respondent's statement of Claim for the non-disclosure of reasonable cause of action.
2. AND FOR SUCH FURTHER ORDERS OR ORDERS as this Court may deem fit to make in the circumstances.

DATED THE ……..DAY OF ……2020

……..

O.K. CHIJIOKE

Applicant's Counsel

Grace Chambers

10 Gwarimpa Road FCT Abuja

Email

Tel

FOR SERVICE ON:

THE CLAIMANT/RESPONDENT

C/O his Counsel

(Address)

<u>Sample Draft of Written Address (Final written address; August 2018 Q 1f, 2019 Q 1e);</u> all written address takes the format below:

IN THE HIGH COURT OF LAGOS STATE
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO:
MOTION NO

BETWEEN
KAYUBA
ADA……CLAIMANT/APPLICANT
AND
AGRIC BANK PLC……. DEFENDANT/RESPONDENT

<u>WRITTEN ADDRESS IN SUPPORT OF MOTION EX PARTE</u>

1. **INTRODUCTION**
2. **BRIEF FACTS OF THE CASE**
   (Just include a summary of the facts here).
3. **ISSUE FOR DETERMINATION**
4. **LEGAL ARGUMENT ON ISSUES**
5. **CONCLUSION**
   Having considered the foregoing, I humbly urge this court to grant our prayers as prayed on the motion paper.
6. **LIST OF AUTHORITIES:**
   Order 38 Rule 1, 4 and 8,High Court of Lagos (Civil Procedure) Rules 2019

DATED THIS ___ DAY OF _____ 20___

_____

JAMES SANI

Counsel to the Applicant

Binghams & Associates

18 Wuse Street, Ikoyi, Lagos State

FOR SERVICE ON:

Respondent's Counsel

(put any Address if none was given)

SAMPLE DRAFTS ON PRE-TRIAL ISSUES

1. <u>Motion On Notice For Leave To Issue Notice To Produce</u>

IN THE HIGH COURT OF THE FEDERAL CAPITAL TERRITORY

IN THE ABUJA JUDICIAL DIVISION

HOLDEN AT ABUJA

SUIT NO……

MOTION NO

BETWEEN:

MRS KAYUBA ADA ……CLAIMANT/APPLICANT

AND

AGRICULTURAL BANK PLC ……DEFENDANT/ RESPONDENT

<u>MOTION ON NOTICE</u>

BROUGHT PURSUANT TO ORDER 28 RULE 9 OF THE HIGH COURT OF THE FCTABUJA (CIVIL PROCEDURE) RULES 2018 AND UNDER THE INHERENT JURISDICTION OFTHIS COURT

TAKE NOTICE, that this Honourable Court will be moved on the ……day of …….. 2019 at the Hour of 9O'clock in the forenoon or so soon thereafter as Counsel on behalf of the Claimant /Applicant can be heard praying for:

1. **AN ORDER** granting leave to the Applicant to file a Notice to produce documents on the Defendant/Respondent.
2. **AN ORDER** directing the Defendant/Respondent to produce the following documents for inspection to wit:
    a. Notice of Supply of substandard goods dated the 1 day of June 2011
    b. Agreement on supply of 500 tons of cashew nuts

3. **AND FOR SUCH ORDERS** this Court may deem fit to make in the circumstances.

DATED THE ……..DAY OF …….2019

O.K CHIJIOKE
Applicant's Counsel
Grace Chambers
10 Gwarimpa Road
FCT Abuja

FOR SERVICE ON:
The Defendant
C/O Counsel

2. Application For Discovery of Documents (By Ordinary Letter)

C.V. CHUKELU LL.P

NO. 1 OSBORNE ROAD IKOYI, LAGOS STATE

TEL: 08135008768 EMAIL: chukelullp@gmail.com WEBSITE: www.chukelullp.com

Our Ref: ZZZ/090/2014 Your Ref.....

21 January, 2018.

Tope Tokan-Lawal Esq.
Tokan-Lawal & Uzuh
(Legal Practitioners and Solicitors)
No. 21 Adebayo Doherty Street Lekki, Lagos.

Dear Madam,

RE: CROWN KITCHEN LTD V. K&T LTD SUIT NO: .....

REQUEST FOR PRODUCTION OF DOCUMENTS

We write on behalf of Crown Kitchen Ltd, our client in the above matter pending before the High Court of Lagos State.

Pursuant to Order 29 Rule 6(1) of the Lagos State High Court (Civil Procedure) Rules 2019, **we request your client to make discovery of the following documents which are within its possession:**

1. The Bank Statement from March 2009 to December 2011 of Zenith Bank Nig. Plc Current a/c no: 00009678, a/c name: K&T Ltd within the possession of your client.

2. The particulars of 20 vehicles (Toyota Hilux trucks 2011 model) jointly purchased by our client and yours and which have been in your client's possession.
3. Any other documents that are or have been in your possession, custody, power or control relating to the matter in question.

Thanks for your cooperation as we expect your early response.

_____

Chukelu Chinedu Esq.
FOR: C.V. Chukelu

3. Affidavit In Answer to Request For Discovery of Documents

IN THE HIGH COURT OF LAGOS STATE
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO.....

BETWEEN:
CROWN KITCHEN LTD.....CLAIMANT
AND
K&T LTD.....DEFENDANT

AFFIDAVIT IN ANSWER TO REQUEST FOR DISCOVERY OF DOCUMENTS

I, Ifeanyi Ututu, male, adult, Christian, Nigerian citizen resident at no. 3 Adeola Odeku Road, Victoria Island, Lagos, do hereby make oath and state as follows:

1. I am the Managing Director of the defendant in this action by virtue of which I am conversant with the facts of this case.
2. I have the consent and the authority of the defendant to depose to this affidavit.
3. The defendant is possession of the bank statement to Zenith Bank Nig. PLC Current a/c no: 00009678, a/c name: K&T Ltd. A copy of the said bank statement is attached to this affidavit and marked "Exhibit A".
4. The defendant is in possession of the particulars of the 20 Toyota Hilux trucks 2011 model. Copies of the particulars all of the cars are hereby attached to this affidavit and marked "Exhibits B1-B20" respectively.
5. I make this oath in good faith believing same to be true and correct and in accordance with the Oaths Law of Lagos State.

_____

DEPONENT

Sworn to at the High Court Registry Lagos

This _____day of _____2020

BEFORE ME

_____

COMMISSIONER FOR OATH

<u>SAMPLE DRAFTS FROM ENFORCEMENT OF JUDGMENT</u>

Motion Ex parte For Garnishee Proceedings (April 2018 Q 1f, August 2018 Q 6d)

IN THE HIGH COURT OF LAGOS STATE

IN THE LAGOS JUDICIAL DIVISION

HOLDEN AT LAGOS

SUIT NO: _____

MOTION NO: _____

BETWEEN

Mrs Kayuba Ada ….. …….Judgment Creditor/ Garnishor/Applicant

AND

AGC Company PLC……Judgment Debtor/Defendant

AND

Trustworthy Bank PLC……Garnishee/Respondent

MOTION EX PARTE

BROUGHT PURSUANT TO SECTIONS 83 AND 86 OF THE SHERIFF AND CIVIL PROCESSES ACT CAP S6 LFN 2004 AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that this Honourable Court will be moved on the ____ day of _____, 20___ at the hour of 9 O' Clock in the forenoon or so soon thereafter as counsel for the Applicant/Garnishor may be heard praying this Honourable Court for the following:

1. **AN ORDER NISI** attaching the Judgment debt of …… from Account No: …….. with account holder: AGC Company PLC with Trustworthy Bank PLC, Ikeja Branch, Lagos State.

2. **AND FOR SUCH FURTHER OR OTHER ORDERS** as this Honourable Court may deem fit to make in the circumstances.

DATED THIS …… DAY OF ……20…..

_____

T.J. GOLD, ESQ
Counsel for Applicant/Garnishor
Liberty Chambers
5 Leedway Street, Ikoyi,
Lagos State

INSTALLMENTAL PAYMENTS DRAFT – FOCUS

IN THE HIGH COURT OF LAGOS STATE

IN THE LAGOS JUDICIAL DIVISION

HOLDEN AT LAGOS

SUIT NO: _____

MOTION NO: _____

BETWEEN

Mrs Kayuba Ada ….. …….Judgment Creditor/ Respondent

AND

AGC Company PLC……Judgment Debtor/ Applicant

MOTION ON NOTICE

BROUGHT PURSUANT TO SECTIONS 21 THE SHERIFF AND CIVIL PROCESSES ACT CAP S6 LFN 2004 AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that this Honourable Court will be moved on the ____ day of _____, 20___ at the hour of 9 O' Clock in the forenoon or so soon thereafter as counsel for the Applicant/Garnishor may be heard praying this Honourable Court for the following:

1. **AN ORDER granting** leave to the judgement debtor/applicant to pay the judgement sum of N…… by instalments of …… weekly/monthly/yearly from the date of the judgement until the final sum payment is made
2. **AND FOR SUCH FURTHER ORDER(S)** as this Honourable Court may deem fit to make in the circumstances.

DATED THIS …… DAY OF ……20…..

_____

T.J. GOLD, ESQ
Counsel for Applicant/Garnishor
Liberty Chambers
5 Leedway Street, Ikoyi,
Lagos State
EMAIL
TEL ½

FOR SERVICE:

<u>Affidavit In Support of the Motion For Third Party Notice ½</u>

I, Daniel Ikemson, ,Male, Adult Managing Director, Christian, and a Nigerian Citizen OF No. 15 Kuje, FCT Abuja do hereby make oath and state as follows: ½

1. I am the Managing Director of the 2nd Defendant/Applicant and by virtue of which I am conversant with the facts of this case.
2. **I have the consent and authority of my employer to depose to this affidavit.**
3. **I make this statement in good faith believing its content to be true and correct in accordance with the Oaths Act 2004.**

……

DEPONENT ½

Sworn to at the High Court of Federal Capital Territory, Registry, Abuja

This**……day of …….2022 ½**

BEFORE ME

_____

COMMISSIONER FOR OATHS ¼

For the purpose of the paras all you need to disclose fact of financial incapacity

SAMPLE DRAFTS OF APPLICATIONS PENDING APPEAL

1. Application For Stay Of Execution; (August 2018 Q 2e, April 2019 Q 4h)

IN THE HIGH COURT OF LAGOS STATE

IN THE LAGOS JUDICIAL DIVISION

HOLDEN AT LAGOS

SUIT NO……..

BETWEEN

AGC COMPANY PLC.....DEFENDANT/JUDEGEMT DEBTOR/ APPLICANT

AND

MRS KAYUBA ADA...……..CLAIMANT/JUDGEMENT CREDITOR/RESPONDENT

MOTION ON NOTICE

BROUGHT PURSUANT TO ORDER 58 RULE 1 OF HIGH COURT OF LAGOS STATE (CIVIL PROCEDURE) RULES 2019 AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that this Honourable Court will be moved on the ____ day of _____, 2020 at the hour of 9 O' Clock in the forenoon or so soon thereafter as the applicant or counsel on his behalf may be heard praying this Honourable Court for the following orders:

1. **AN ORDER** granting stay of execution of the judgment of this Honourable Court delivered on the…….day of……20…..**pending the determination of the appeal of the Defendant/Applicant**, already filed at the Registry of this Honourable Court.
2. **AND FOR SUCH FURTHER OR OTHER ORDERS** as this Honourable Court may deem fit to make in the circumstances.

DATED THIS..... DAY OF .....20……

_____

O. K CHIJIOKE

Applicant's Counsel

Grace Chambers

10 Gwarimpa Road,

FCT Abuja

FOR SERVICE ON:

Counsel for Respondent

No. 6 Lekki Drive, Ikoyi

2. Application For Stay of Proceedings; January 2020 Q 5e

IN THE HIGH COURT OF LAGOS STATE

IN THE LAGOS JUDICIAL DIVISION

HOLDEN AT LAGOS

SUIT NO……

BETWEEN

RIHAMA NIGERIA LIMITED…….....CLAIMANT/RESPONDENT

AND

REDMORE NIGERIA LIMITED.……...DEFENDANT/APPLICANT

MOTION ON NOTICE

BROUGHT PURSUANT TO ORDER 58 RULE 1 OF HIGH COURT OF LAGOS STATE (CIVIL PROCEDURE) RULES 2019 AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that this Honourable Court will be moved on the ____ day of _____, 20___ at the hour of 9 O'clock in the forenoon or so soon thereafter as counsel for the Applicant may be heard praying this Honourable Court for the following:

1. **AN ORDER** granting staying proceedings of this court in the matter **pending the determination of the appeal filed against the**

decision/ruling of this Honourable Court delivered on the ……day of ……, 2020 at the Court of Appeal, Lagos Division.

2. **AND FOR SUCH OTHER ORDERS** as this Honourable Court may deem fit to make in the circumstances.

DATED THIS.... DAY OF 2020

……

O. C. CHUKWU ESQ
Applicant's Counsel
Grace Chambers
Gwarimpa Road,
Lagos State

FOR SERVICE ON:
Kene Ajaegbu, SAN
Counsel for Respondent
No. 6 Lekki Drive
Ikoyi, Lagos

3. Application For Injunction Pending Appeal; (April 2018 Q 6a)

IN THE HIGH COURT OF LAGOS STATE
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO……
MOTION NO_____

BETWEEN

K & T LTD….…… DEFENDANT/ APPLICANT

AND

CROWN KITCHEN LTD...…… CLAIMANT/RESPONDENT

MOTION ON NOTICE

BROUGHT PURSUANT TO ORDER .. RULE .. OF HIGH COURT OF LAGOS STATE (CIVIL PROCEDURE) RULES 2019 AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that this Honourable Court will be moved on the ____ day of _____, 20___ at the hour of 9 O'clock in the forenoon or so soon thereafter as counsel for the Applicant may be heard praying this Honourable Court for the following:

1. **AN ORDER** for injunction restraining the Respondent/Claimant from acting on the judgment or interfering with the property **pending the determination of the appeal** against the judgment of this Honourable Court delivered on the ….day of……2020 filed against it at the Court of Appeal, Lagos Division.
2. **AND FOR SUCH FURTHER OR OTHER ORDERS** as this Honourable Court may deem fit to make in the circumstances.

DATED THIS ....DAY OF.... 2020

……..……

O. C. CHUKWU ESQ

Applicant's Counsel

Grace Chambers

Gwarimpa Road,

Lagos State

FOR SERVICE ON:
Kene Ajaegbu, SAN
Counsel for Respondent
No. 6 Lekki Drive, Ikoyi, Lagos

SAMPLE DRAFTS ON APPEAL

1. NOTICE OF APPEAL; August 2018 Q 5c,

IN THE COURT OF APPEAL OF NIGERIA
HOLDEN AT ABUJA

SUIT NO…..
APPEAL NO….

BETWEEN:
AGRICULTURAL BANK PL…….DEFENDANT/APPELLANT
AND
MRS KAYUBA ADA...…….CLAIMANT/RESPONDENT

NOTICE OF APPEAL

TAKE NOTICE that the Defendant /Appellant being dissatisfied with the decision of the High Court of the Federal Capital Territory Abuja sitting at the Federal Capital Territory, Abuja contained in the judgment of Hon. T. J. Stanley dated the 17th day of October, 2020 **more particularly stated in paragraph 2 hereby appeal to the Court of Appeal upon the grounds set**

out in paragraph 3 and will at the hearing of the appeal seek the reliefs set out in paragraph 4.

And the Appellant further states that the names and addresses of the persons directly affected by the appeal are those set out in paragraph 5.

1. **PART OF THE DECISION OF THE LOWER COURT COMPLAINED OF:** The whole ruling/ judgment including the award of costs.
2. **GROUNDS OF APPEAL**
   a. **GROUND ONE**

The trial judge erred in law when he held that there was no breach of contract.

PARTICULARS OF ERROR

i. The trial judge held that there was no implied term as to merchantability of the goods supplied.

ii. The trial judge failed to evaluate the evidence of the defendant to prove an implied term of merchantability as provided in the Sales of Goods Act 1891.

b. **GROUND TWO**

The trial judge misdirected himself in law when he proceeded to award to the plaintiff the judgment sum of ₦14m.

PARTICULARS OF ERROR

1. There was no credible and legally admissible evidence before the Court to justify the award of damages of ₦14m to the plaintiff.
2. The judgment sum awarded to the plaintiff was unreasonable as items of special damages were not sufficiently particularized and proved strictly.

3. The award of the judgment sum of ₦14m to the claimant on the heads:
    i. Contract balance
    ii. Special damages
    iii. General damages; were neither proved nor specially proved by the claimant.

RELIEFS SOUGHT FROM THE COURT OF APPEAL

i. An order setting aside the decision of the High Court of the FCT Abuja delivered by Hon. T. J. Stanley on the 17th day of October, 2020 and thus allowing the appeal.

ii. An award of ₦2m as costs of litigation.

PERSONS DIRECTLY AFFECTED BY THE APPEAL

1. Agricultural Bank Plc, No. 25, Hopewell Street, Area 1, Garki, Abuja.
2. Mrs. Kayuba Ada, No. 16, Bariga Close, Wuse, Abuja.

DATED…….DAY OF…….2020

……

O.K Chukwu

Applicant's Counsel

Grace Chambers

10 Gwarimpa Road

FCT Abuja

<u>FOR SERVICE ON RESPONDENT</u>:

Mrs. Kayuba Ada No. 16, Bariga, Close,

Wuse, Abuja

2. **Motion On Notice For Extension of Time To Appeal**

IN THE COURT OF APPEAL OF NIGERIA

HOLDEN AT ABUJA

SUIT NO: HC/AJ7/2010

APPEAL NO: ……

BETWEEN:

ZENITH BANK PLC…….DEFENDANT/APPLICANT

AND

DANGOTE MILLS LIMITED…..……CLAIMANT/RESPONDENT

NOTICE OF MOTION FOR EXTENSION OF TIME TO APPEAL BROUGHT PURSUANT TO ORDER 6 RULE 9 OF THE COURT OF APPEAL RULES 2021 AND SECTION 25(4) OF THE COURT OF APPEAL ACT 2007 AND WITHIN THE INHERENT JURISDICTION OF THIS HONOURABLE COURT.

TAKE NOTICE that this Honourable Court will be moved on the …..day of…..2021 at the hour of 9 O'clock in the forenoon or so soon thereafter as Counsel for the Defendant/Applicant will be heard praying this Honourable Court for:

1. **AN ORDER EXTENDING TIME** to appeal against the decision of the High Court of the FCT Abuja contained in the judgment of Hon. T. J. Stanley delivered on the 17th day of October 2020.
2. **AN ORDER** deeming the Exhibit B to wit: Notice and grounds of appeal as properly filed and served on the Respondent.

3. **AND FOR SUCH FURTHER OR OTHER ORDERS** as the Honourable Court may deem fit to make in the circumstances**.**

DATED THIS.....DAY OF.....2021

…….

Moses Abu Esq.

Counsel to the Defendant/Applicant

No. 10 Wuse II Abuja.

<u>FOR SERVICE ON:</u>

Claimant/Respondent

3. **TRINITY PRAYERS (**This is used for appeals requiring leave of court **August 2018 Q 5e)**

IN THE COURT OF APPEAL

HOLDEN AT LAGOS

APPEAL NO……

SUIT NO……

BETWEEN:

FRANCIS DAMUNI……..…..APPELLANT/APPLICANT

AND

EVERGREEN GARDEN LIMITED……CLAIMANT/RESPONDENT

MOTION ON NOTICE

BROUGHT PURSUANT TO ORDER 7 RULE 1 OF THE COURT OF APPEAL RULES 2016 AND UNDER THE INHERENT JURISDICTION OF THIS HONOURABLE COURT

TAKE NOTICE that this Honourable Court will be moved on the ……day of…..20…… at the Hour of 9' o clock in the forenoon or so soon thereafter

as Counsel may be heard on behalf of the Appellant\Applicant herein praying the court for the following orders:

1. **AN ORDER OF COURT EXTENDING TIME** within which the appellant/applicant may seek leave to appeal against the interlocutory decision of the high court of Lagos state delivered by HON justice XYZ on the ……day of…..20…..
2. **AN ORDER SEEKING LEAVE** of the Court to appeal against the interlocutory order of the Lagos State High Court delivered by Hon Justice XYZ delivered on the …..day of……20……
3. **AN ORDER OF COURT EXTENDING TIME** within which the appellant/applicant may appeal against the interlocutory order of the Lagos State High Court delivered by Hon Justice XYZ ……day of…..20……

AND FOR SUCH ORDER OR FURTHER ORDERS this Honourable Court may deem fit to make in the circumstance.

DATED THIS…….DAY OF……20…...

_____

AILERU YINKA
Appellant's Solicitor
7 Bank Avenue
Victoria Island, Lagos.

<u>FOR SERVICE ON</u>
Victor Osiri SAN
Claimant/Respondent's Solicitor

SAMPLE DRAFTS ON RECOVERY OF PREMISES

1. **Letter of Instruction To Recover Premises (August 2016 Q 2c, January 2020 Q 1b)**

No 3, Ikon Close
Off Mega plaza Avenue,
Surulere Lagos.
4 March, 2020

Ken Danladi
Grace Chambers
12 A Queens Close,
Lekki Phase 1,
Lagos.

Dear Sir,

LETTER OF INSTRUCTION TO RECOVER PREMISES

I, Chief Olowo, owner of …….. situate at …….., do hereby give instructions to you as my solicitor to take all necessary steps to recover possession of the said premises and arrears of rent on the said premises currently in occupation by one …… who is occupying the said premises as a yearly tenant with whom I wish to terminate the tenancy in existence.
I shall of course pay the necessary fees. Thank you.
Yours faithfully,

Chief Olowo.
ENCL:
Copy of Tenancy Agreement

SHORTER FORMAT KANO CAMPUS (In case you don't have time)

MALLAM ALLI

4, YOLA ROAD

WUSE ABUJA ½

(landlords address without a letterhead will suffice also)

16th August, 2022 ½

Miss Beverly Naya

(any address)

1 mark

Dear Madam,

INSTRUCTION TO RECOVER POSESSION OF MY 4 BEDROOM DUPLEX AT 6 VALLEY STREET, WUSE ABUJA ½ MARK

I, Malam ALI OF …… hereby authorize you to recover possession of my 4 bedroom duplex at 6 valley street, wuse abuja from Mr freeman (1 Mark)

Yours Faithfully

Malam Ali ½

2. NOTICE TO QUIT; August 2016 Q 2d, 2019 Q 6c

GRACE CHAMBERS

BARRISTERS & SOLICITORS

PLOT 12 A, QUEENS CLOSE LEKKI PHASE 1 LAGOS

TELL: 01-68996543, 01-00865434

Our Ref..... Your Ref.....

June 28, 2020

Mr. Dauda Kareem
37 Koko Lodge, Musa Sauda Street,
Surulere Lagos.

Sir,

NOTICE TO QUIT

I, John Doe legal practitioner to ….., your landlord and on his behalf give you notice to quit and deliver up possession of the …….. together with the appurtenances thereto situate at …….. within the Surulere Magisterial District of Lagos State, which you hold as a yearly tenant to expire on the 31st day of December 2020.

_____

Ken Danladi
For :Grace Chambers
Solicitor to the Landlord

3. Notice Of Owner's Intention To Recover Possession; August 2019 Q 4c, Dec 2020 Q 3f

GRACE CHAMBERS
BARRISTERS & SOLICITORS
PLOT 12 A, QUEENS CLOSE LEKKI PHASE 1 LAGOS
TELL: 01-68996543, 01-00865434

Our Ref: ..... Your Ref.....

January 2, 2021

To: Mr. Dauda Kareem
37 Koko Lodge, Musa Sauda Street,
Surulere Lagos.

Sir,

NOTICE TO TENANT OF OWNER'S INTENTION TO RECOVER POSSESSION

I, John Doe legal practitioners, to ……, (the owner), do hereby give you notice that unless peaceable possession of the premises the 4 bedroom flat together with the appurtenances thereto situate at ……. which you held of the owner under a yearly tenancy, **which tenancy was determined by a notice to quit given on the …day of … 2022 and which premises are now held over and detained from the said owner, be given to the owner on or before the expiration of Seven (7) clear days from the service of this notice.**

Take further notice that at the expiration of the Seven days, i shall apply to the Court (state the court with jurisdiction) for a summons to eject any person from the premises.

Dated this …. day of ….. 2022

_____

JAMES DANLADI
Solicitor to (Landlord)
FOR: Grace Chambers

SAMPLE DRAFTS IN ELECTION PETITION

ELECTION PETITION (N/B It is was recently asked in April 2019 Q 6iv, August 2019 Q 5c and January 2020 Q 2b)

IN THE GOVERNORSHIP ELECTION TRIBUNAL
HOLDEN AT (Name of state)

PETITION NO……

ELECTION TO THE OFFICE OF THE GOVERNOR OF …… STATE OF THE FEDERAL REPUBLIC OF NIGERIA HELD ON 12TH OF SEPTEMBER 2022

BETWEEN

1. ENGINEER. ISAAC ARIJALO
2. DEMOCRATIC PEOPLE ALLIANCE

} PETITIONERS

AND

1. DR ALAN AKINYEMI
2. CITIZEN'S PEOPLES PARTY
3. INDEPENDENT NATIONAL ELECTORAL COMMISSION (INEC)

} RESPONDENTS

PETITION

THE PETITION OF ENGINEER ISAAC ARIJALO OF NO 64 NWEKE STREET, ADO-EKITI NORTH LOCAL GOVERNMENT AREA, EKITI STATE, WHOSE NAME IS SUBSCRIBED

1.0 Your 1st Petitioner Engineer Isaac Arijalo was a candidate at the above election and your petitioners state that the election was held on the 12th day of September, 2020, where the 1st Respondent was a candidate.

1.1 Your 1st Petitioner contested under the platform of the 2nd Petitioner (Democratic People Alliance). The 1st Respondent contested under the platform of the 2nd Respondent (Citizen's Peoples Party).

1.2 The results as released by the 3rd Respondent were as follows (despite the fact that there were no elections in 15 out of the 21 Local Government Areas in Ekiti State)

CANDIDATE	PARTY	VOTES
Dr Alan Akinyemi	DEMOCRATIC PEOPLE ALIANCE	349,288 Votes
Engineer Isaac Arijalo	CITIZEN'S PEOPLES PARTY	226,021 Votes

1.3 The 1st Petitioner states that the Respondent, Dr Alan Akinyemi, was then returned as the elected candidate and or winner of the election (despite the fact that there were no elections in 15 out of the 21 local government areas in Ekiti State)

2.0 GROUNDS FOR THE PETITION:

The petitioners state that the grounds on which they rely for the petition are as follows:

a. The return of the 1st Respondent as winner of the election for the office of the governor of Ekiti State which held on the 12th of September, 2020 was invalid by reason of non-compliance with the provisions of the Electoral Act 2011 and was marred by irregularities and corrupt practices.

b. The 1st Respondent was not duly elected as a majority of lawful votes cast at the election, as no lawful votes were cast in 500 polling stations making up 15 out of the 21 local government areas in Ekiti State.

3.0 FACTS IN SUPPORT OF THE PETITION:

1. The petitioners state that elections did not take place in 500 polling centres making up 15 out of the 21 Local Government Areas in Ekiti State on the 12th of September, 2020.
2. Your petitioners state that there was massive under age voting all geared towards actualizing the planned act of the Respondents and the Electoral body (3rd Respondent).
3. Despite the gross irregularities and the fact that no results were collated by the 3rd respondent, the 1st respondent was declared winner of the election by 6.30 pm at the Secretariat of the 3rd respondent.

4.0 PRAYERS/RELIEFS SOUGHT

Wherefore, your petitioner prays the Tribunal for the following reliefs:

1. **DECLARATION** that the 1st Respondent, DR ALAN AKINYEMI was not duly elected and returned as winner of the rerun election to the office of the Governor of Ekiti State held on the 12th of September, 2020.
2. **AN ORDER DECLARING** the rerun election to the office of the Governor of Ekiti State held on the 12th of September, 2020 was null or void.

DATED . . . . . DAY OF....2020

J.O. Akanbi Esq.

(Petitioner's Counsel)

J.O. Akanbi & Co.

No. 10 Nnamdi Azikiwe Road,

Ado, Ekiti State

SIGNED BEFORE ME

This . . . . . Day of . . . . . 20…….

. . . . . .

SECRETARY

FOR SERVICE ON:

1ST RESPONDENT

(Address)

2nd RESPONDENT:

(Address)

3rd RESPONDENT:

(Address)

SAMPLE DRAFTS ON FUNDAMENTAL RIGHTS ENFORCEMENT

1. **Application For Enforcement of Fundamental Human Right (always asked in the Exam)**

IN THE HIGH COURT OF LAGOS STATE

IN THE IKEJA JUDICIAL DIVISION

HOLDEN AT IKEJA

SUIT NO: .....

IN THE MATTER OF AN APPLICATION BY MR. R FOR AN ORDER OF ENFORCEMENT OF HIS FUNDAMENTAL RIGHTS

BETWEEN

MR. R .....APPLICANT

AND

1. **INSPECTOR GENERAL OF POLICE** } **RESPONDENT**

2. **COMPTROLLER GENERAL OF PRISONS.** **RESPONDENT**

½

ORIGINATING MOTION

BROUGHT PURSUANT TO ORDER II RULE 1 OF THE FUNDAMENTAL RIGHTS (ENFORCEMENT PROCEDURE) RULES 2009, SECTIONS 34 & 35 AND 36 OF THE CONSTITUTION OF THE FEDERAL REPUBLIC OF NIGERIA 1999 (AS AMENDED) AND WITHIN THE INHERENT JURISDICTION OF THIS COURT

TAKE NOTICE that this honourable court will be moved on the ----- day of-------2020 in the hour of 9 o'clock in the forenoon or so soon thereafter as counsel can be heard on behalf of the Applicant praying for the following orders:

1. **AN ORDER FOR** the enforcement of the fundamental rights of the applicant
2. **AN ORDER** restraining the Respondents from further infringing on the rights of the Applicant.

AND FOR SUCH FURTHER ORDERS OR ORDERS which the court will deem fit to make in the circumstance

DATED THIS…..DAY OF….2020

JOHN OYENIYI
Counsel to the Applicant
Grace Chambers
Victoria Island, Lagos

FOR SERVICE ON:

1st Respondent & 2nd Respondents

Inspector General of Police

Police Command Headquarters, Abuja

IN THE HIGH COURT OF LAGOS STATE
IN THE IKEJA JUDICIAL DIVISION
HOLDEN AT IKEJA

SUIT NO: .....

IN THE MATTER OF AN APPLICATION BY MR. R FOR AN ORDER OF ENFORCEMENT OF FUNDAMENTAL RIGHTS BETWEEN

MR. R.....APPLICANT

AND

1. **INSPECTOR GENERAL OF POLICE..... RESPONDENT**
2. **COMPTROLLER GENERAL OF PRISONS..... RESPONDENT**

STATEMENT PURSUANT TO ORDER 2 RULE 3 OF THE FUNDAMENTAL RIGHTS (ENFORCEMENT PROCEDURE) RULES, 2009

1. **NAME AND DESCRIPTION OF THE APPLICANT**

MR. R, a Legal Practitioner who resides at no 12, Garki Layout, Kano

2. **RELIEF SOUGHT**

a. Declaration that the arrest and detention of the Applicant by the 1st Respondent on the 12th of July, 2020 is unconstitutional, null and void and a breach of the fundamental human right of the Applicant

b. Declaration that detaining the Applicant without formally informing him of the reasons for his arrest is unconstitutional and a breach of the fundamental human right of the Applicant

c. 50,000,000.00 (Two-hundred and fifty Million naira) damages for unlawful arrest, detention, torture, trial, and imprisonment of the Applicant

3. GROUNDS UPON WHICH THE RELIEFS ARE SOUGHT

a. The Applicant has fundamental rights to dignity, personal liberty, fair hearing and freedom of movement under sections 34, 35, 36 and 41 of the Constitution of the Federal Republic of Nigeria, 1999 (As amended)

b. The Applicant was arrested on the 12th of July, 2020, detained and tortured without any justification by the 1st Respondent

c. The Applicant was not informed formally of the reason for his arrest nor was he charged to court within a reasonable period of time required by the Constitution of the Federal Republic of Nigeria.

DATED THIS..... DAY OF ....., 2020

JOHN OYENIYI

Counsel to the Applicant

House of Lords Zone

Victoria Island

Lagos

FOR SERVICE ON:

1ST Respondent

Inspector General of Police

Police Command Headquarters,

Abuja

2nd Respondent

Comptroller General of Prisons

Nigerian Prisons Service Headquarters

Abuja

IN THE HIGH COURT OF LAGOS STATE

IN THE IKEJA JUDICIAL DIVISION

HOLDEN AT IKEJA

SUIT NO: .....

N THE MATTER OF AN APPLICATION BY MR. R FOR AN ORDER OF ENFORCEMENT OF FUNDAMENTAL RIGHTS

BETWEEN

MR. R.....APPLICANT

AND

1. **INSPECTOR GENERAL OF POLICE.....1ST RESPONDENT**
2. **DIRECROR GENERAL OF PRISONS.....2ND RESPONDENT**

AFFIDAVIT IN SUPPORT OF APPLICATION

I, Mrs. R, female, Medical practitioner, Nigerian of no 12, Garki Layout, Kano do make oath and state as follows;

1. That I am the wife of the Applicant and by virtue of which I am conversant with the facts of this case
2. That I have the consent and authority of the applicant to depose to this affidavit on his behalf

3. That the Applicant is in the Federal prisons, Abuja by virtue of which he is unable to depose to this Affidavit himself
4. That on the 12th of July, 2020, the Applicant was arrested by men of security forces under the authority of the 1st Respondent
5. That I depose to this affidavit in good faith believing its content to be true and in accordance with the Oaths Act.

_____

DEPONENT

Sworn To At the Lagos State High Court Registry
THIS..... DAY OF....., 2020

BEFORE ME

_____

COMMISSIONER FOR OATH

IN THE HIGH COURT OF LAGOS STATE
IN THE IKEJA JUDICIAL DIVISION
HOLDEN AT IKEJA

SUIT NO: .....

IN THE MATTER OF AN APPLICATION BY MR. R FOR AN ORDER OF ENFORCEMENT OF FUNDAMENTAL RIGHTS
BETWEEN
MR. R.....APPLICANT
AND

1. **INSPECTOR GENERAL OF POLICE.....1ST RESPONDENT**
2. **DIRECROR GENERAL OF PRISONS.....2ND RESPONDENT**

APPLICANT'S WRITTEN ADDRESS IN SUPPORT OF THE APPLICATION

1.0 INTRODUCTION

1.1 This is an Application brought pursuant to Order 2 Rule 3 of the Fundamental Rights (Enforcement Procedure) Rule, 1999 for a redress of the breach of his fundamental.

2.0 FACTS RELEVANT TO THE APPLICATION

On the 12th of 2020, the Applicant was arrested by the security forces acting under the authority of the 1st Respondent and taken to the Mushroom Police Headquarters for questioning. No reason for the arrest was given to the Applicant. In the detention, the Applicant was tortured severally to obtain confessions from him.

3.0 ISSUES FOR DETERMINATION

3.1 Whether in the circumstances of the case, the arrest and detention of the Applicant for over 40 days without being charged to a court does not constitute a breach of the fundamental human right of the accused to personal liberty and freedom of movement by the 1st Respondent

4.0 ARGUMENTS

4.1 ISSUE ONE

4.1.1 My Lord, the Applicant in the affidavit deposed on his behalf by Mrs. R stated in paragraphs 4 and 6 that the applicant was arrested by the men of the security forces on the 12th of July, 2007 and was detained for over 40 days without being charged to court

5.0CONCLUSION

My Lord, we humbly submit that this Honourable court grants the reliefs sought by the Applicant for the following:

1. Declaration that the arrest and detention of the Applicant by the 1st Respondent on the 12th of July, 2007 is unconstitutional, null and void and a breach of the fundamental human right of the Applicant
2. ₦250,000,000.00 (Two-hundred and fifty Million naira) damages for unlawful arrest, detention, torture

6.0 LIST OF AUTHORITIES

6.1 CASES

Maja v. State (1980) 1 NCR 212

6.2 STATUTES

Section 35(1) Constitution of the Federal Republic of Nigeria, 1999

DATED THIS.....DAY OF....., 2020

JOHN OYENIYI
Counsel to the Applicant
House of Lords Zone
Victoria Island
Lagos

FOR SERVICE ON:

1ST RESPONDENT

Inspector General of Police

(Address)

2ND RESPONDENT

Comptroller General of Prisons

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Generally, a petition for dissolution of marriage may be refused even if the factual situation in Section 15(2) MCA is met.

Dissolution of marriage may be refused or barred by **absolute bars** under Sections 26 and 27 MCA or **discretionary bars** under Section 28 MCA.

Absolute Bars

Condonation= Knowledge + Forgiveness + Reinstatement. It is the forgiveness & reinstatement of spouse by the petitioner (against whom the matrimonial misconduct/offence was committed) who has knowledge of the misconduct on the condition of no future matrimonial misconduct by the condoned spouse (as such misconduct may revive the condoned act) **Harrison Obafemi v. Harrison Obafemi**.

Connivance: Express/Implied/acquiescence/encouragement of the matrimonial misconduct. It presupposes the petitioner's consent has been freely given to the matrimonial misconduct. See Godfrey v. Godfrey.

Collusion: Agreement between parties/their agent to procure, commence and prosecute proceedings for divorce, with aim at perverting justice. A decree of dissolution of marriage shall be refused where the petitioner in bringing the or prosecuting the petition is guilty of collusion with intent to cause perversion of justice- Section 27 MCA.

NOTE: A petitioner is required to state in the petition that/he has not condoned or connived at the ground/facts relied on for the petition and is not guilty of collusion in presenting the petition – See Form 6 MCR.

Effects of Condonation/Connivance

The court cannot make a decree of dissolution of marriage where the petitioner has condoned or connived at the conduct constituting the facts upon which the petition is based. Section 26 MCA. The only exception to the above is where spouse/respondent is of unsound mind. See Section 16(1)(g) MCA.